

Polity

Consolidated Must-Score Facts and must-score drill cards for every chapter.

UPPCS + UKPCS Study Library · chapter order follows Subject Notes.

Chapters

1. Daily Read — High-Yield Revision Facts
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1. Borrowed Features of the Indian Constitution (Country-Wise Master Table)

Source Country / Document	Borrowed Features & Principles
Government of India Act 1935 (Major Source — >50% of text)	Federal Scheme, Office of Governor, Judiciary structure, Public Service Commissions (UPSC/SPSC), Emergency provisions (administrative details), Administrative details.
United Kingdom (British Constitution)	Parliamentary form of government, Rule of Law (Art. 14), Legislative procedure, Single Citizenship , Cabinet system, Prerogative Wrists (Art. 32/226), Parliamentary privileges (Art. 105), Bicameralism , Office of Speaker & Deputy Speaker.
United States (American Constitution)	Fundamental Rights (Part III), Independence of Judiciary, Judicial Review (Art. 13), Impeachment of the President (Art. 61), Removal of Supreme Court & High Court judges, Post of Vice-President (ex-officio Chairman of Rajya Sabha), Preamble phrasing ("We the People").
Ireland (Irish Constitution 1937)	Directive Principles of State Policy (DPSP) (Part IV), Nomination of 12 members to Rajya Sabha by President, Method of Election of the President (proportional representation by STV).
Canada	Federation with a strong Centre , Vesting of Residuary Powers in the Centre (Art. 248), Appointment of State Governors by the Centre , Advisory jurisdiction of the Supreme Court (Art. 143).
Australia	Concurrent List (7th Schedule), Freedom of Trade, Commerce, and Intercourse (Part XIII), Joint Sitting of both Houses of Parliament (Art. 108).
Germany (Weimar Constitution)	Suspension of Fundamental Rights during National Emergency (Art. 359). (Note: Emergency itself is from GOI 1935, suspension of FR is from Weimar!)
USSR / Russia (Soviet Constitution)	Fundamental Duties (Art. 51A, Part IVA - 42nd Amd 1976), Ideals of Justice (Social, Economic, and Political) in the Preamble, Five-Year Plans.
France (French Constitution)	Ideals of Liberty, Equality, and Fraternity in the Preamble; Republic character of the Indian State.
South Africa	Procedure for Amendment of the Constitution (Art. 368), Election of members of the Rajya Sabha (by elected MLAs via STV).
Japan	Procedure established by Law (<i>Vidhi dwara sthapit prakriya</i> - Art. 21).

2. Parts of the Indian Constitution (All 25 Parts Cheat-Sheet)

Originally 22 Parts in 1950; currently 25 Parts (counting sub-parts: IVA, IXA, IXB, XIVA; Part VII repealed).

Part	Roman	Subject Matter Covered	Article Span	Key Prelims Takeaway / Recurring Trap
Part I	I	The Union and its Territory	Arts. 1–4	Art. 1: "India, that is Bharat, shall be a Union of States"; Art. 3: Parliament alters state boundaries/names by simple majority
Part II	II	Citizenship	Arts. 5–11	Single citizenship (borrowed from UK); Citizenship Act 1955
Part III	III	Fundamental Rights	Arts. 12–35	" Magna Carta of India "; borrowed from US Bill of Rights; justifiable
Part IV	IV	Directive Principles of State Policy (DPSP)	Arts. 36–51	Borrowed from Ireland; non-justiciable; fundamental in the governance of the country
Part IVA	IV-A	Fundamental Duties	Art. 51A	Added by 42nd Amendment 1976 (Swaran Singh Committee); 10 originally, 11th added by 86th Amendment 2002 ; non-justiciable
Part V	V	The Union Government	Arts. 52–151	Ch. 1: Executive (52–78), Ch. 2: Parliament (79–122), Ch. 3: President's Legislative Power (123), Ch. 4: Union Judiciary (124–147), Ch. 5: CAG (148–151)
Part VI	VI	The State Governments	Arts. 152–237	Governor (153–162), State Legislature (168–212), Governor's Ordinance (213), High Courts (214–232), Subordinate Courts (233–237)
Part VII	VII	States in Part B of First Schedule	Art. 238	REPEALED by 7th Constitutional Amendment Act 1956
Part VIII	VIII	The Union Territories	Arts. 239–242	Administration of UTs by President through Administrator / Lieutenant Governor; Art. 239AA: Special status to NCT of Delhi (69th Amd 1991)
Part IX	IX	The Panchayats	Arts. 243 to 243-O	Inserted by 73rd Amendment 1992 ; 3-tier Panchayati Raj; 11th Schedule (29 functional items)
Part IXA	IX-A	The Municipalities	Arts. 243P to 243ZG	Inserted by 74th Amendment 1992 ; Urban Local Bodies; 12th Schedule (18 functional items)
Part IXB	IX-B	The Co-operative Societies	Arts. 243ZH to 243ZT	Inserted by 97th Amendment 2011 (partially struck down in 2021 for state cooperatives, holds for multi-state)
Part X	X	The Scheduled and Tribal Areas	Arts. 244–244A	5th & 6th Schedules administration
Part XI	XI	Relations between the Union and the States	Arts. 245–263	Ch. 1: Legislative Relations (245–255), Ch. 2: Administrative Relations (256–263); Art. 263: Inter-State Council. Trap: NOT municipalities or tribunals!
Part XII	XII	Finance, Property, Contracts and Suits	Arts. 264–300A	Consolidated Fund (266), Contingency Fund (267), GST Council (279A), Finance Commission (280); Art. 300A : Right to Property (Legal/Constitutional right, NOT fundamental right!)
Part XIII	XIII	Trade, Commerce and Intercourse within India	Arts. 301–307	Freedom of inter-state trade and commerce
Part XIV	XIV	Services under the Union and the States	Arts. 308–323	All India Services (Art. 312 created by Rajya Sabha); UPSC & State PSCs (Arts. 315–323)
Part XIVA	XIV-A	Tribunals	Arts. 323A–323B	Added by 42nd Amendment 1976 (Swaran Singh Committee); 323A: Administrative Tribunals (CAT/SAT), 323B: Other Tribunals
Part XV	XV	Elections	Arts. 324–329A	Art. 324: Election Commission of India; Art. 326: Universal Adult Suffrage
Part XVI	XVI	Special Provisions Relating to Certain Classes	Arts. 330–342A	Reservation of seats in Lok Sabha & State Assemblies (SC: 330/332; ST: 330/332); NCSC (338), NCST (338A), NCBC (338B)
Part XVII	XVII	Official Language	Arts. 343–351	Ch. 1: Official Language of Union (343 - Hindi in Devanagari script), Ch. 2: Regional Languages (345), Ch. 3: Judiciary (348), Ch. 4: Special Directives (350A: Primary instruction in mother tongue, 350B: Special Officer for Linguistic Minorities, 351: Promotion of Hindi)
Part XVIII	XVIII	Emergency Provisions	Arts. 352–360	Art. 352: National Emergency, Art. 356: President's Rule (State Emergency), Art. 360: Financial Emergency
Part XIX	XIX	Miscellaneous	Arts. 361–367	Art. 361: Immunity of President and Governors from criminal prosecution

Part	Roman	Subject Matter Covered	Article Span	Key Prelims Takeaway / Recurring Trap
Part XX	XX	Amendment of the Constitution	Art. 368	Constituent power of Parliament to amend the Constitution (borrowed from South Africa)
Part XXI	XXI	Temporary, Transitional and Special Provisions	Arts. 369–392	Special provisions for states: Art. 371 (Maha & Guj) , 371A (Nagaland) , 371B (Assam) , 371C (Manipur) , 371D & E (Andhra/Telangana) , 371F (Sikkim) , 371G (Mizoram) , 371H (Arunachal) , 371-I (Goa) , 371J (Karnataka - Hyderabad-Karnataka region)
Part XXII	XXII	Short Title, Commencement & Repeals	Arts. 393–395	Short title: "Constitution of India"

3. All 12 Schedules (The Master Mnemonic: TEARS OF OLD PM)

Schedule	Mnemonic Letter	Subject Matter	Key Details / High-Yield Trap
1st	T	Territories	Names of the 28 States and 8 Union Territories and their territorial extents
2nd	E	Emoluments & Salaries	Salaries, allowances, and pensions of: President, Governors, Lok Sabha Speaker/Deputy Speaker, Rajya Sabha Chairman/Deputy Chairman, SC/HC Judges, CAG. PM and Ministers are NOT in the 2nd Schedule!
3rd	A	Affirmations & Oaths	Forms of Oaths for: Union/State Ministers, MPs/MLAs, SC/HC Judges, CAG. President (Art. 60), Vice-President (Art. 69), and Governors (Art. 159) have oaths under separate articles, NOT in the 3rd Schedule!
4th	R	Rajya Sabha Seat Allocation	Allocation of seats in the Council of States to States and UTs. Uttar Pradesh has the highest: 31 seats; Uttarakhand has 3 seats.
5th	S	Scheduled Areas & Tribes	Administration and control of Scheduled Areas and Scheduled Tribes in 10 states (excluding the 4 states of the 6th Schedule); Tribes Advisory Council
6th	O	Other Tribal Areas	Administration of Tribal Areas in 4 North-Eastern States: AMTM = Assam, Meghalaya, Tripura, Mizoram (Autonomous District Councils; Manipur is NOT in the 6th Schedule!)
7th	F	Federal Lists (Division of Powers)	Three legislative lists: 1. Union List: Originally 97, now 100 subjects 2. State List: Originally 66, now 61 subjects 3. Concurrent List: Originally 47, now 52 subjects (Education, Forests, Weights & Measures, Wild animals & birds, Administration of justice transferred by 42nd Amd)
8th	O	Official Languages	22 recognized languages (Originally 14): • 1967 (21st Amd): Added Sindhi • 1992 (71st Amd): Added Konkani, Manipuri, Nepali (KMN) • 2003 (92nd Amd): Added Bodo, Dogri, Maithili, Santhali (BDMS) Traps: English and Bhojpuri are NOT in the 8th Schedule!
9th	L	Land Reforms & Validation	Added by 1st Amendment 1951 to protect land reform laws from judicial review; I.R. Coelho Case (2007) : SC ruled laws placed in 9th Schedule post 24 April 1973 (Kesavananda judgment date) are open to judicial review
10th	D	Defection (Anti-Defection Law)	Added by 52nd Amendment 1985 ; disqualification on ground of defection; decided by Presiding Officer; subject to judicial review (Kihoto Hollohan 1992); split exemption of 1/3 deleted by 91st Amd 2003; merger requires 2/3rd members
11th	P	Panchayati Raj	Added by 73rd Amendment 1992 ; specifies 29 functional subjects within the purview of Panchayats (Article 243G)
12th	M	Municipalities	Added by 74th Amendment 1992 ; specifies 18 functional subjects within the purview of Municipalities (Article 243W)

4. Warrant of Precedence (Order of Precedence, 1979 Notification)

Frequently tested in arrange-order questions in UPPCS/UKPCS:

- Rank 1: President of India**
- Rank 2: Vice-President of India**
- Rank 3: Prime Minister of India**
- Rank 4: Governors of States** (within their respective States)
- Rank 5: Former Presidents** - Rank 5A: **Deputy Prime Minister** (if any)
- Rank 6: Chief Justice of India (CJI)** and **Speaker of Lok Sabha** (Both have equal rank!)
- Rank 7: Cabinet Ministers of the Union, Chief Ministers of States** (within respective states), Deputy Chairman of NITI Aayog (former Planning Commission), **Leaders of Opposition in Rajya Sabha and Lok Sabha** - Rank 7A: **Holders of Bharat Ratna**
- Rank 8: Ambassadors Extraordinary & Plenipotentiary, Chief Ministers** (outside their respective states), Governors (outside their respective states)
- Rank 9: Judges of the Supreme Court of India** - Rank 9A: **Chief Election Commissioner (CEC), Comptroller and Auditor General (CAG)**, Chairperson of UPSC
- Rank 10:** Deputy Chairman of Rajya Sabha, Deputy Speaker of Lok Sabha, Deputy Chief Ministers, Ministers of State of the Union
- Rank 11: Attorney General for India**, Cabinet Secretary, Lieutenant Governors (within their UTs).

5. Parliamentary Terms, Motions & Working Procedure

Parliamentary Term	Core Meaning & Procedural Rules
Question Hour	First hour of every parliamentary sitting (11:00 AM to 12:00 PM): • Starred Questions: Oral answers required; supplementary questions CAN be asked (green paper). • Unstarred Questions: Written answers required; NO supplementary questions allowed (white paper). • Short Notice Questions: Relates to matter of urgent public importance; asked with less than 10 days notice; answered orally (light pink paper).
Zero Hour	Unique Indian parliamentary innovation (introduced in 1962) ; starts immediately after Question Hour (12:00 PM); members raise urgent matters without prior notice; not mentioned in Rules of Procedure .
Adjournment Motion	Introduced in LOK SABHA ONLY to draw attention to a definite matter of urgent public importance; requires support of at least 50 members to be admitted; sitting adjourned for debate ≥ 2.5 hours; involves censure of government.
No-Confidence Motion	Moved in LOK SABHA ONLY under Rule 198; requires support of at least 50 members ; no specific grounds needed; if passed, Council of Ministers must resign.
Censure Motion	Moved in Lok Sabha against specific ministers or entire council for specific policies; requires specific grounds; if passed, government is not obligated to resign immediately but must seek confidence.

Parliamentary Term	Core Meaning & Procedural Rules
Calling Attention Motion	Indian parliamentary innovation (since 1954); calling attention of a Minister to a matter of urgent public importance and seeking an authoritative statement. Mentioned in Rules of Procedure.
Cut Motions	Moved during Budget debate (Lok Sabha only): 1. Disapproval of Policy Cut: Amount reduced to Re 1 (shows complete policy rejection). 2. Economy Cut: Amount reduced by a specific lump sum. 3. Token Cut: Amount reduced by Rs 100 to express specific grievance.
Guillotine	When time allotted for discussion on demands for grants concludes, all remaining undiscussed demands are put to vote immediately without debate.
Lame-Duck Session	Refers to the last session of the existing Lok Sabha after a new Lok Sabha has been elected. Those existing MPs who failed to get re-elected are called "Lame Ducks".
Quorum	Minimum number of members required to be present to conduct a sitting: 1/10th of total membership of the House (55 in Lok Sabha, 25 in Rajya Sabha) per Article 100(3) .

6. Parliamentary Committees (Must-Memorize Facts)

Committee Name	Total Strength	Lok Sabha Members	Rajya Sabha Members	Term	Chairperson Rules & Key Functions
Public Accounts Committee (PAC)	22	15	7	1 year	Set up first in 1921 (GOI Act 1919); scrutinizes CAG Audit Reports ; elected by PR by STV; Ministers CANNOT be members ; by convention since 1967 , Chairperson is appointed by the Speaker from the Opposition ; known as "Twin sister" of Estimates Committee and "Friend, Philosopher, and Guide" of the CAG.
Estimates Committee	30	30	0 (NO RSI!)	1 year	Set up in 1950 on recommendation of Finance Minister John Mathai ; LARGEST PARLIAMENTARY COMMITTEE ; all 30 members from Lok Sabha only; examines budget estimates and suggests alternative policies ("Continuous Economy Committee"); Chairperson appointed by Speaker from ruling party.
Committee on Public Undertakings (COPU)	22	15	7	1 year	Created in 1964 on recommendation of Krishna Menon Committee ; examines reports of CAG on public undertakings; Chairperson appointed by Speaker from Lok Sabha members only.
Departmentally Related Standing Committees (DRSCs)	31 (each)	21	10	1 year	Total 24 DRSCs (16 work under Lok Sabha, 8 under Rajya Sabha); examine demands for grants, bills, and annual reports of respective ministries.

7. Constitutional Offices: Age Limits, Tenures & Appointments

Office / Position	Minimum Age Required	Retirement Age / Term of Office	Appointed By	Resignation Submitted To	Removal Procedure
President of India	35 years	5 years (eligible for re-election)	Electoral College (Elected MPs of LS/RS + Elected MLAs of States/UTs - Art. 54)	Vice-President	Impeachment under Art. 61 (Quasi-judicial, 14 days notice, 2/3rd of total membership of both Houses; nominated MPs participate!)
Vice-President of India	35 years	5 years	Electoral College (All MPs of LS & RS, both elected & nominated - Art. 66; no MLAs!)	President	Resolution in Rajya Sabha by effective majority + agreed to by Lok Sabha (Art. 67)
Governor of a State	35 years	5 years (Holds office during pleasure of President)	President of India	President	Removed by President at any time without constitutional procedure
Prime Minister / Union Minister	25 yrs (LS) / 30 yrs (RS)	No fixed tenure (during pleasure of President / confidence of LS)	President	President	Loss of majority in Lok Sabha
Member of Parliament (Lok Sabha)	25 years	5 years (unless dissolved earlier)	Direct Election (First-past-the-post)	Speaker of Lok Sabha	Disqualification under Art. 102 or 10th Schedule
Member of Parliament (Rajya Sabha)	30 years	6 years (Permanent body; 1/3rd members retire every 2 years)	Indirect Election by elected MLAs (STV)	Chairman of Rajya Sabha	Disqualification under Art. 102 or 10th Schedule
Member of Legislative Assembly (MLA)	25 years	5 years	Direct Election	Speaker of Assembly	Disqualification under Art. 191
Member of Legislative Council (MLC)	30 years	6 years (1/3rd retire every 2 years)	Indirect (MLAs 1/3, Local bodies 1/3, Teachers 1/12, Grads 1/12, Gov nominates 1/6)	Chairman of Council	Disqualification under Art. 191
Panchayat / Municipality Member	21 years	5 years	Direct Election	Presiding Officer	Disqualification under state municipal/panchayat laws
Voter (Universal Adult Suffrage)	18 years (lowered from 21 by 61st Amd)	—	Enrolled in electoral roll	—	Ineligibility under Art. 326 (unsound mind, crime)
Supreme Court Judge / CJI	No min age	65 years	President (Collegium recommendation)	President	Removed by Presidential order supported by special majority of both Houses for proved misbehaviour or incapacity (Art. 124(4))
High Court Judge / Chief Justice	No min age	62 years (15th Amd raised from 60)	President (after consulting CJI, Governor, HC CJ)	President	Same manner and grounds as Supreme Court Judge
Comptroller & Auditor General (CAG)	No min age	6 years or 65 years (whichever earlier)	President	President	Same manner and grounds as Supreme Court Judge (Art. 148(1))
Chief Election Commissioner (CEC)	No min age	6 years or 65 years	President	President	Same manner and grounds as Supreme Court Judge (Art. 324(5))
Attorney General for India	Qualified as SC Judge	No fixed term (pleasure of President)	President	President	Removed by President at pleasure
Advocate General for the State	Qualified as HC Judge	No fixed term (pleasure of Governor)	Governor	Governor	Removed by Governor at pleasure
UPSC Chairman / Member	No min age	6 years or 65 years	President	President	Removed by President on ground of misbehaviour after inquiry by Supreme Court (Art. 317)
State PSC Chairman / Member	No min age	6 years or 62 years	Governor appoints	Governor	REMOVED ONLY BY PRESIDENT (Not Governor!) on SC inquiry under Art. 317

Office / Position	Minimum Age Required	Retirement Age / Term of Office	Appointed By	Resignation Submitted To	Removal Procedure
Central Vigilance Commissioner	No min age	4 years or 65 years (whichever earlier)	President on 3-member panel (PM, Home Min, LoP LS)	President	Removed by President on SC inquiry

8. High-Frequency Articles Must-Revise Daily

A. Fundamental Rights (Part III, Arts. 12–35)

- **Art. 12:** Definition of “State” (includes Union/State Governments, Parliament/Legislatures, Local authorities, other statutory authorities like LIC, ONGC).
- **Art. 13:** Laws inconsistent with or in derogation of Fundamental Rights shall be void (*Doctrine of Judicial Review, Doctrine of Severability, Doctrine of Eclipse*).
- **Art. 14:** Equality before law (British origin, negative concept) & Equal protection of the laws (American origin, positive concept).
- **Art. 15:** Prohibition of discrimination **ONLY** on grounds of religion, race, caste, sex, place of birth.
- **Art. 15(4):** Special provisions for SC/ST/OBC (1st Amd 1951).
- **Art. 15(6):** 10% EWS reservation in educational institutions (103rd Amd 2019).
- **Art. 16:** Equality of opportunity in matters of public employment.
- **Art. 16(4):** Reservation for backward classes not adequately represented.
- **Art. 16(6):** 10% EWS reservation in public employment (103rd Amd 2019).
- **Art. 17: Abolition of Untouchability** (Absolute right; enforced via Protection of Civil Rights Act 1955).
- **Art. 18:** Abolition of titles (Bharat Ratna/Padma awards are decorations, not titles — *Balaji Raghavan Case 1996*).
- **Art. 19:** Protection of **Six Democratic Freedoms**: 1. *19(1)(a):* Freedom of speech and expression (includes freedom of press, right to remain silent). 2. *19(1)(b):* Freedom to assemble peaceably and without arms. 3. *19(1)(c):* Freedom to form associations, unions, or co-operative societies (97th Amd). 4. *19(1)(d):* Freedom to move freely throughout the territory of India. 5. *19(1)(e):* Freedom to reside and settle in any part of the territory of India. 6. *19(1)(g):* Freedom to practice any profession, trade, or business.
- (*Note: 19(1)(f) Right to acquire, hold, and dispose of property was REPEALED by 44th Amd 1978*).
- **Art. 20:** Protection in respect of conviction for offences:
 - *20(1):* No ex-post-facto criminal law.
 - *20(2):* No double jeopardy (cannot be prosecuted twice for the same offence).
 - *20(3):* No self-incrimination (cannot be compelled to be a witness against oneself).
- **Art. 21: Protection of Life and Personal Liberty** (*Procedure Established by Law* → *Due Process of Law* via *Maneka Gandhi Case 1978*; encompasses Right to Privacy - *Puttaswamy 2017*, Right to clean environment, Right to livelihood, Right to sleep, Right to die with dignity / passive euthanasia - *Common Cause 2018*).
- **Art. 21A: Right to Free and Compulsory Education** for children aged 6 to 14 years (Inserted by **86th Amendment 2002**; RTE Act enacted in 2009, in force 1 April 2010).
- **Art. 22:** Protection against arrest and detention (production before magistrate within 24 hours; preventive detention max 3 months without advisory board approval).
- **Art. 23:** Prohibition of traffic in human beings and **Begar** (forced labour).
- **Art. 24:** Prohibition of employment of children **below 14 years in factories, mines, or hazardous employment**.
- **Arts. 25–28:** Freedom of Religion:
 - *Art. 25:* Freedom of conscience, free profession, practice, and propagation of religion.
 - *Art. 26:* Freedom to manage religious affairs.
 - *Art. 27:* Freedom from payment of taxes for promotion of any particular religion.
 - *Art. 28:* Freedom from attendance at religious instruction in state-funded educational institutions.
- **Arts. 29–30:** Cultural and Educational Rights of Minorities:
 - *Art. 29:* Protection of language, script, and culture of minorities.
 - *Art. 30:* Right of religious and linguistic minorities to establish and administer educational institutions.
- **Art. 32: Right to Constitutional Remedies:** Power of Supreme Court to issue 5 Writs (**Habeas Corpus, Mandamus, Prohibition, Certiorari, Quo-Warranto**); Dr. B.R. Ambedkar called Article 32 the “**Heart and Soul of the Constitution**”.

NON-SUSPENDABLE RIGHTS: Under **Article 359 (as amended by 44th Amd 1978)**, the President **CANNOT suspend the enforcement of Articles 20 and 21** even during a National Emergency!

B. Directive Principles of State Policy (DPSP, Part IV, Arts. 36–51)

- **Art. 38:** State to secure a social order for the promotion of welfare of the people (minimize inequalities).
- **Art. 39(b) & (c):** Equitable distribution of material resources of the community to subserve common good (39b); prevention of concentration of wealth (39c) — *Articles 39(b) and 39(c) take precedence over Articles 14 and 19 per Art. 31C!*
- **Art. 39A: Equal justice and free legal aid** (Added by 42nd Amd 1976; Legal Services Authorities Act 1987 / NALSA).
- **Art. 40: Organization of Village Panchayats** (Gandhian principle).
- **Art. 41:** Right to work, to education, and to public assistance in cases of unemployment, old age, sickness.
- **Art. 42:** Provision for just and humane conditions of work and **Maternity relief**.
- **Art. 43:** Living wage and decent standard of life for workers.
- **Art. 43A: Participation of workers in management of industries** (Added by 42nd Amd 1976).
- **Art. 43B:** Promotion of **Co-operative societies** (Added by 97th Amd 2011).
- **Art. 44: Uniform Civil Code (UCC)** for all citizens (**Goa** had Portuguese civil code; **Uttarakhand became the first state in post-independence India to pass a UCC bill in 2024!**).
- **Art. 45:** Provision for early childhood care and education for all children until they complete the age of **6 years** (Amended by 86th Amd 2002).
- **Art. 48:** Organization of agriculture and animal husbandry; prohibiting slaughter of cows, calves, and milch cattle.
- **Art. 48A: Protection and improvement of environment, and safeguarding of forests and wildlife** (Added by 42nd Amd 1976).
- **Art. 50: Separation of Judiciary from the Executive** in the public services of the State.
- **Art. 51:** Promotion of international peace and security.

C. Union & State Executive / Legislature Comparisons

Constitutional Matter	Union Article (President / Parliament)	State Article (Governor / State Legislature)	Key Distinction / Comparison
Office of Head	Art. 52: President of India	Art. 153: Governor of a State	7th Amd 1956: Same person can be appointed Governor for two or more states
Executive Power	Art. 53: Vested in President	Art. 154: Vested in Governor	Governor is appointed by President (Canadian model); holds office during pleasure
Pardoning Power	Art. 72: President of India	Art. 161: Governor of a State	President alone can pardon Death Sentences and Court Martial (Military) sentences. Governor can suspend/remit, but cannot grant full pardon for death sentence
Council of Ministers	Art. 74: CoM to aid & advise	Art. 163: CoM to aid & advise	Governor has broader constitutional discretionary powers (Art. 163(2))
Appointment of PM/CM	Art. 75: PM appointed by President	Art. 164: CM appointed by Governor	CoM size capped at max 15% of Lower House membership (91st Amd 2003); State min = 12
Top Legal Officer	Art. 76: Attorney General for India	Art. 165: Advocate General for the State	AG has right to speak in both Houses of Parliament but NO right to vote (Art. 88)
Joint Sitting	Art. 108: Joint Sitting of Parliament	NO PROVISION for Joint Sitting in State Legislature!	Summoned by President; presided over by Lok Sabha Speaker (simple majority)
Money Bill Definition	Art. 110: Money Bill in Parliament	Art. 199: Money Bill in State Assembly	Speaker's decision is final; Rajya Sabha / Legislative Council has only 14 days to suggest
Annual Budget	Art. 112: Annual Financial Statement	Art. 202: Annual Financial Statement	Word "Budget" is nowhere used in the Constitution!
Ordinance Power	Art. 123: President	Art. 213: Governor	Can only be promulgated when legislature is not in session; max lifespan: 6 weeks from reassembly (absolute maximum lifespan = 6 months + 6 weeks)
Assent to Bills	Art. 111: President's Assent	Art. 200: Governor's Assent	Governor can reserve bill for consideration of President (Art. 201)
Creation/Abolition of Council	—	Art. 169: Legislative Council	State Assembly passes resolution by special majority → Parliament approves by simple majority

9. Constitutional vs Statutory vs Executive Bodies

Body Name	Category	Governing Article / Parent Act	Head / Composition	Appointed By	Removal / Tenure
Election Commission of India (ECI)	Constitutional	Art. 324	Chief Election Commissioner + 2 Election Commissioners	President (per 2023 Act: panel of PM, LoP, Cabinet Min)	Same grounds and manner as Supreme Court Judge (6 yrs or 65 yrs)
Union Public Service Commission (UPSC)	Constitutional	Arts. 315–323	Chairman + Members (usually 9–11)	President	6 yrs or 65 yrs; removed by President on SC enquiry under Art. 317
Finance Commission	Constitutional	Art. 280	Chairman + 4 Members	President every 5th year	Recommends devolution of net tax proceeds between Union & States
Comptroller & Auditor General (CAG)	Constitutional	Art. 148	Single-member office	President	6 yrs or 65 yrs; removed like a Supreme Court Judge; " Guardian of the Public Purse "
Attorney General for India	Constitutional	Art. 76	Single-member office	President	Holds office during the pleasure of the President ; must be qualified to be an SC Judge
Advocate General for the State	Constitutional	Art. 165	Single-member office	Governor	Holds office during the pleasure of the Governor ; qualified to be an HC Judge
National Commission for SC (NCSC)	Constitutional	Art. 338	Chairperson, Vice-Chairperson + 3 Members	President	3 years tenure
National Commission for ST (NCST)	Constitutional	Art. 338A	Separated by 89th Amd 2003; Chairperson + 4	President	3 years tenure
National Commission for BC (NCBC)	Constitutional	Art. 338B	Accorded constitutional status by 102nd Amd 2018	President	3 years tenure
GST Council	Constitutional	Art. 279A	Chaired by Union Finance Minister; members: MoS Finance + State Finance Ministers	-	Voting weight: Centre = 1/3rd, States = 2/3rd; 3/4th majority needed to pass decisions
Inter-State Council	Constitutional	Art. 263	Set up in 1990 (Sarkaria Commission); chaired by Prime Minister	-	CMs of all states + 6 Union Cabinet Ministers
National Human Rights Commission (NHRC)	Statutory	Protection of Human Rights Act (PHRA) 1993	Retired CJI or Judge of SC (Chairperson) + Members	President on panel (PM, Speaker, Home Min, LoP LS, LoP RS, Dy Chairman RS)	3 years or 70 years
Central Vigilance Commission (CVC)	Statutory	CVC Act 2003 (set up 1964 on Santhanam Committee)	Central Vigilance Commissioner + max 2 Vigilance Commissioners	President on panel (PM, Home Minister, LoP LS)	4 years or 65 years (Unique tenure!)
Central Information Commission (CIC)	Statutory	Right to Information (RTI) Act 2005	Chief Information Commissioner + max 10 ICs	President on panel (PM, LoP LS, Union Cabinet Min)	Set by Central Govt or 65 yrs
Lokpal of India	Statutory	Lokpal and Lokayuktas Act 2013	Chairperson (CJI/SC Judge/eminent person) + max 8 Members	President on panel (PM, Speaker LS, LoP LS, CJI or nominee, eminent jurist)	5 years or 70 years
National Green Tribunal (NGT)	Statutory	NGT Act 2010	Chairperson (retired SC judge or HC CJ) + Judicial/Expert members	Central Govt in consultation with CJI	5 years; not eligible for reappointment
NITI Aayog	Non-Constitutional (Executive Body)	Created by Union Cabinet Resolution on 1 Jan 2015 (replacing Planning Commission 1950)	Chairperson: Prime Minister; Vice-Chairperson + CEO + Ex-officio members	PM appoints	Think tank; promotes Cooperative & Competitive Federalism

10. Landmark Constitutional Amendments (The Complete PCS Sheet)

Amendment Act & Year	Prime Minister / Context	Landmark Provisions / Changes Made
1st (1951)	J.L. Nehru	Added 9th Schedule to protect land reform laws from judicial review; placed reasonable restrictions on freedom of speech (public order, friendly relations with foreign states, incitement to an offence)
7th (1956)	J.L. Nehru	Implemented States Reorganisation Act 1956 (Fazal Ali Commission); abolished Part A, B, C, D classification; created 14 States & 6 UTs; allowed common High Court for two or more states; allowed same person as Governor of multiple states
24th (1971)	Indira Gandhi	Affirmed Parliament's power to amend any part of the Constitution, including Fundamental Rights; made it obligatory for the President to give assent to a Constitutional Amendment Bill
42nd (1976)	Indira Gandhi (Swaran Singh Committee)	Known as the " Mini-Constitution ": 1. Preamble: Added words " SOCIALIST, SECULAR, INTEGRITY " 2. Added Part IVA (Fundamental Duties, Art. 51A) with 10 duties 3. Added Part XIVA (Tribunals, Arts. 323A–323B) 4. Added DPSPs: Arts. 39A (Free legal aid), 43A (Workers' participation), 48A (Environment) 5. Transferred 5 subjects from State List to Concurrent List : Education, Forests, Weights & Measures, Protection of Wild Animals & Birds, Administration of Justice
44th (1978)	Morarji Desai (Janata Party)	Undid emergency excesses of 42nd Amendment: 1. Replaced "Internal Disturbance" with " Armed Rebellion " in Art. 352 2. Mandated that President can declare National Emergency only on written advice of the Cabinet 3. Right to Property deleted from Fundamental Rights (Art. 19(1)(f) & Art. 31 deleted; made a legal right under Art. 300A) 4. Provided that Articles 20 and 21 CANNOT be suspended during emergency
52nd (1985)	Rajiv Gandhi	Added 10th Schedule (Anti-Defection Law) ; disqualified MPs/MLAs defecting from their political party
61st (1988)	Rajiv Gandhi	Lowered voting age from 21 years to 18 years for Lok Sabha and Legislative Assembly elections (amended Art. 326)
69th (1991)	P.V. Narasimha Rao	Conferred special status on Union Territory of Delhi as National Capital Territory of Delhi (NCT) with Legislative Assembly and 7-member Council of Ministers (inserted Art. 239AA)
73rd (1992)	P.V. Narasimha Rao	Accorded constitutional status to Panchayati Raj Institutions (PRIs) ; inserted Part IX (Arts. 243 to 243-O) and 11th Schedule (29 subjects) ; 33% mandatory reservation for women
74th (1992)	P.V. Narasimha Rao	Accorded constitutional status to Urban Local Bodies (Municipalities) ; inserted Part IXA (Arts. 243P to 243ZG) and 12th Schedule (18 subjects)
86th (2002)	A.B. Vajpayee	1. Inserted Article 21A (Right to free and compulsory education for children aged 6–14 as a Fundamental Right) 2. Substituted Article 45 (Early childhood care) 3. Added 11th Fundamental Duty under Art. 51A(k)
91st (2003)	A.B. Vajpayee	1. Capped the size of the Council of Ministers to maximum 15% of the total strength of Lok Sabha / State Legislative Assembly (minimum 12 in states) 2. Deleted 1/3rd split provision from 10th Schedule (only 2/3rd merger protected)
99th (2014)	Narendra Modi	Established National Judicial Appointments Commission (NJAC); struck down as unconstitutional by Supreme Court in 2015 (<i>Fourth Judges Case</i>), restoring the Collegium system
101st (2016)	Narendra Modi	Introduced Goods and Services Tax (GST) ; inserted Art. 246A, 269A, and 279A (GST Council chaired by Union Finance Minister); in force from 1 July 2017
102nd (2018)	Narendra Modi	Accorded constitutional status to the National Commission for Backward Classes (NCBC) ; inserted Articles 338B and 342A
103rd (2019)	Narendra Modi	Provided 10% reservation for Economically Weaker Sections (EWS) in educational admissions and civil posts; amended Articles 15(6) and 16(6)
104th (2020)	Narendra Modi	Extended reservation of seats for SC and ST in Lok Sabha and State Assemblies for another 10 years (until 2030) ; discontinued the nomination of 2 Anglo-Indian members in Lok Sabha and 1 in Assemblies
105th (2021)	Narendra Modi	Clarified that State Governments maintain the power to prepare and maintain their own list of Socially and Educationally Backward Classes (SEBCs / OBCs)
106th (2023)	Narendra Modi	Nari Shakti Vandan Adhiniyam : Provides 33% reservation for women in Lok Sabha, State Legislative Assemblies, and NCT of Delhi Assembly (inserted Arts. 330A, 332A, 239AA(2)(b)); effective after the next delimitation exercise

11. Panchayati Raj Committees Chronological Ladder

Committee Name	Year	Landmark Recommendation / Impact
Balwant Rai Mehta Committee	1957	Recommended Three-Tier Panchayati Raj System : 1. Gram Panchayat (Village) 2. Panchayat Samiti (Block - executive body) 3. Zilla Parishad (District - advisory body) First implemented in Nagaur (Rajasthan) on 2 October 1959 by J.L. Nehru; second state was Andhra Pradesh
K. Santhanam Committee	1963	Panchayati Raj finances and budgetary powers
Ashok Mehta Committee	1977 (Janata Govt)	Recommended Two-Tier System : 1. Mandal Panchayat (group of villages, pop. 15,000–20,000) 2. Zilla Parishad (District executive body) Advocated official participation of political parties in elections
G.V.K. Rao Committee	1985 (Planning Commission)	Critiqued bureaucratic takeover, describing PRIs as " Grass without Roots "; recommended strengthening Zilla Parishad and creating post of District Development Commissioner (DDC)
L.M. Singhvi Committee	1986 (Rajiv Gandhi)	FIRST TO STRONGLY RECOMMEND CONSTITUTIONAL RECOGNITION FOR PANCHAYATI RAJ ; advocated Nyaya Panchayats and financial autonomy
P.K. Thungon Committee	1988	Sub-committee of Parliamentary Consultative Committee; strongly urged Constitutional status , 3-tier system, fixed 5-year tenure, Zilla Parishad as main planning agency
V.N. Gadgil Committee	1988	Blueprint for the 73rd Amendment bill: 3 tiers, fixed 5-yr tenure, reservation for SC/ST/Women, State Election Commission, State Finance Commission

12. Landmark Supreme Court Judgments (Chronological Table)

Case Name & Year	Key Issue / Doctrine Established
Shankari Prasad Case (1951)	Parliament can amend any part of the Constitution, including Fundamental Rights under Article 368.

Case Name & Year	Key Issue / Doctrine Established
Golaknath Case (1967)	11-Judge bench; ruled that Fundamental Rights are transcendental and sacrosanct ; Parliament CANNOT amend or take away Fundamental Rights.
Kesavananda Bharati Case (1973)	13-Judge bench (largest ever, 7:6 verdict on 24 April 1973) ; upheld Parliament's power to amend the Constitution, BUT established the "Basic Structure Doctrine" — Parliament cannot alter the basic framework/features of the Constitution.
Indira Nehru Gandhi v. Raj Narain (1975)	Struck down 39th Amendment (Article 329A); held that Free and Fair Elections and Judicial Review are part of the Basic Structure .
Maneka Gandhi Case (1978)	Reinterpreted Article 21; replaced rigid "Procedure Established by Law" with "Due Process of Law" ; procedure must be <i>just, fair, and reasonable</i> . Golden Triangle: Articles 14, 19, and 21 are interrelated.
Minerva Mills Case (1980)	Struck down clauses of 42nd Amendment; held that limited amending power and judicial review are basic features ; Indian Constitution is founded on the bedrock of balance between Fundamental Rights and DPSPs .
Waman Rao Case (1981)	Reaffirmed Basic Structure Doctrine; set cutoff date of 24 April 1973 for applying Basic Structure scrutiny to the 9th Schedule.
Shah Bano Case (1985)	Upheld divorced Muslim woman's right to maintenance under Section 125 CrPC; urged enactment of a Uniform Civil Code.
Indira Sawhney Case (1992) (Mandal Case)	9-Judge bench; upheld 27% OBC reservation; introduced "Creamy Layer" exclusion; capped total reservations at 50% ; no reservation in promotions.
S.R. Bommai Case (1994)	9-Judge bench; curbed misuse of Article 356 (President's Rule) ; held that Secularism is part of the Basic Structure ; floor test in Assembly is the only valid test of majority.
Vishaka v. State of Rajasthan (1997)	Formulated Vishaka Guidelines to prevent sexual harassment of women at workplaces (precursor to POSH Act 2013).
I.R. Coelho Case (2007)	9-Judge bench; held that all laws inserted into the 9th Schedule after 24 April 1973 are subject to judicial review if they violate Fundamental Rights forming part of the Basic Structure.
Justice K.S. Puttaswamy Case (2017)	9-Judge bench unanimously held that the Right to Privacy is a Fundamental Right intrinsically protected under Article 21.
Navtej Singh Johar Case (2018)	Decriminalized consensual homosexual acts between adults by reading down Section 377 of the Indian Penal Code (IPC) .
Jarnail Singh Case (2018)	Held that the "Creamy Layer" principle applies to SC/ST when extending reservation in promotions.
Janki Janak v. UOI (2022)	Upheld the constitutional validity of the 103rd Constitutional Amendment (10% EWS reservation) by 3:2 majority.

13. State Reorganization Chronology (Post-Independence India)

- 1953: Andhra State** created (first linguistic state, separated Telugu-speaking areas of Madras after 56-day fast unto death of **Potti Sreeramulu**; Kurnool capital).
- 1956: States Reorganisation Act 1956** (Fazal Ali Commission with H.N. Kunzru and K.M. Panikkar); created **14 States and 6 Union Territories**.
- 1960: Bilingual Bombay State bifurcated into Maharashtra and Gujarat** (Gujarat became the 15th state).
- 1961: Dadra & Nagar Haveli** (10th Amd) and **Goa, Daman & Diu** (12th Amd) integrated via Operation Vijay.
- 1962: Pondicherry** (Puducherry) integrated via 14th Amd (ceded by French in 1954).
- 1963: Nagaland** created as 16th state (incorporating Naga Hills-Tuensang Area).
- 1966: Punjab bifurcated** into Punjab (Punjabi) and **Haryana** (17th state, Hindi) on recommendation of **Shah Commission**; **Chandigarh** made common UT.
- 1971: Himachal Pradesh** elevated from UT to 18th State.
- 1972:** North-Eastern reorganization: **Manipur (19th), Tripura (20th), and Meghalaya (21st)** became full states; Mizoram and Arunachal Pradesh created as UTs.
- 1975: Sikkim:** 35th Amd 1974 made it "Associate State" (10th Schedule added); **36th Amendment 1975 made Sikkim 22nd full State of India**.
- 1987: Mizoram (23rd), Arunachal Pradesh (24th), and Goa (25th state)** elevated to full statehood.
- 2000 (November):** Three new states carved out:
 - Chhattisgarh (26th state):** 1 Nov 2000 (carved from MP).
 - Uttarakhand (Uttaranchal, 27th state): 9 Nov 2000** (carved from Uttar Pradesh, 13 hill districts; renamed Uttarakhand on 1 Jan 2007).
 - Jharkhand (28th state):** 15 Nov 2000 (carved from Bihar on Birsa Munda's birth anniversary).
- 2014 (2 June): Telangana (29th state)** carved out of Andhra Pradesh (Sri Krishna Committee).
- 2019 (31 October): Jammu & Kashmir Reorganisation Act 2019:** State of J&K bifurcated into **two Union Territories: J&K (with assembly) and Ladakh (without assembly)**; total count: **28 States and 8 Union Territories**.
- 2020 (26 Jan):** Merged **Dadra & Nagar Haveli and Daman & Diu** into a single Union Territory.

From-to (do not stop at the birth year): Uttarakhand as a state runs **9 Nov 2000 → present** (name **Uttaranchal** till **1 Jan 2007**). **Jammu & Kashmir as a State** ran till **31 Oct 2019; Art. 370** operative **1950 → 5/6 Aug 2019**. Goa was a UT **1961–1987**, then the **25th state**.

14. UP & Uttarakhand State Legislature Quick Facts

State	Legislative Assembly (Vidhan Sabha)	Legislative Council (Vidhan Parishad)	Lok Sabha Seats	Rajya Sabha Seats	High Court & Benches
Uttar Pradesh	403 seats (SC: 84, ST: 2)	100 seats (Bicameral!)	80 seats (Highest in India; SC reserved: 17, ST: 0)	31 seats (Highest in India)	Allahabad High Court (Established 1866 at Agra, shifted to Allahabad 1869; Lucknow Bench created 1948)
Uttarakhand	70 seats (SC: 13, ST: 2)	Unicameral (No Council)	5 seats (Tehri, Garhwal, Almora - SC, Haridwar, Nainital-US Nagar)	3 seats	Uttarakhand High Court (Established 9 Nov 2000 at Nainital; shifting to Haldwani approved)

15. The Five Types of Writs (Articles 32 & 226)

Power to issue prerogative writs: Supreme Court (Article 32 — *only for Fundamental Rights*) and High Courts (Article 226 — *for Fundamental Rights AND ordinary legal rights; HC writ jurisdiction is wider than SC!*)

Writ Name	Literal Latin Meaning	Purpose & Grounds for Issue	Against Whom Issued	Exceptions (Cannot be Issued Against)
Habeas Corpus (बन्दी प्रत्यक्षीकरण)	“To have the body of”	Remedy against unlawful detention or illegal custody ; court orders the detaining authority to produce the detained person before it to examine legality of detention	Both Public Authorities and Private Individuals	1. Detention is lawful 2. Proceeding is for contempt of court/legislature 3. Detention is by competent court 4. Outside court's territorial jurisdiction
Mandamus (परमादेश)	“We Command”	Order issued to a public official/body directing them to perform an official public duty which they have failed or refused to perform	Public officials, Public Corporations, Inferior Courts, Tribunals, Government	1. Private individuals or private bodies 2. Discretionary duties (not mandatory) 3. To enforce private contracts 4. President of India or State Governors (Art. 361) 5. Chief Justice of HC acting in judicial capacity
Prohibition (प्रतिषेध)	“To Forbid”	Issued by a higher court to a lower court/tribunal to prevent it from exceeding its jurisdiction or usurping a jurisdiction not vested in it; preventive in nature	Judicial and Quasi-Judicial Authorities only	Administrative authorities, legislative bodies, and private individuals/bodies
Certiorari (उत्प्रेषण)	“To be Certified” / “To be Informed”	Issued by a higher court to a lower court/tribunal to quash an order already passed in excess of jurisdiction, lack of jurisdiction, or violation of natural justice; both preventive and curative	Judicial, Quasi-Judicial, and Administrative Authorities (SC expanded to administrative bodies in 1991)	Legislative bodies and private individuals/bodies
Quo-Warranto (अधिकार-पृच्छा)	“By What Authority or Warrant”	Issued to enquire into the legality of the claim of a person to a public office ; prevents illegal usurpation of a substantive public office	Substantive Public Offices of a permanent nature created by statute/Constitution	Ministerial offices (PM/Minister), private offices. <i>(Can be sought by ANY interested person, not necessarily the aggrieved party!)</i>

16. Constituent Assembly Committees & Drafting Committee Members

A. Major Committees & Their Chairpersons (High-Frequency Match)

Committee Name	Chairperson	Scope & Responsibility
Drafting Committee (प्रारूप समिति)	Dr. B.R. Ambedkar	Prepared the draft of the Constitution; appointed on 29 August 1947
Union Powers Committee	Jawaharlal Nehru	Defined the extent of Union legislative authority
Union Constitution Committee	Jawaharlal Nehru	Drafted structure of the Union Executive and Parliament
States Committee (Committee for Negotiating with States)	Jawaharlal Nehru	Negotiations with Princely States
Provincial Constitution Committee	Sardar Vallabhbhai Patel	Drafted structure of State Governors and Legislatures
Advisory Committee on Fundamental Rights, Minorities & Tribal Areas	Sardar Vallabhbhai Patel	Apex advisory body with 5 sub-committees: <i>Fundamental Rights Sub-Committee:</i> J.B. Kripalani <i>Minorities Sub-Committee:</i> H.C. Mukherjee <i>North-East Frontier Tribal Areas:</i> Gopinath Bardoloi <i>Excluded & Partially Excluded Areas:</i> A.V. Thakkar
Rules of Procedure Committee	Dr. Rajendra Prasad	Formulated rules for conduct of assembly business
Steering Committee	Dr. Rajendra Prasad	Steered legislative agenda and debates
Ad-hoc Committee on the National Flag	Dr. Rajendra Prasad	Adopted the National Flag on 22 July 1947
Order of Business Committee	Dr. K.M. Munshi	Scheduled daily proceedings

B. The 7 Members of the Drafting Committee (Must-Memorize List)

Set up on 29 August 1947 under the chairmanship of Dr. B.R. Ambedkar:

- Dr. B.R. Ambedkar** (Chairman)
- N. Gopalaswami Ayyangar**
- Alladi Krishnaswamy Iyer**
- Dr. K.M. Munshi** (Only original Congress politician member)
- Syed Mohammad Saadulla** (Only Muslim League member)
- N. Madhava Rau** (Replaced **B.L. Mitter** who resigned due to ill-health)
- T.T. Krishnamachari** (Replaced **D.P. Khaitan** who died in 1948)

Constitutional Adviser: Sir **B.N. Rau** (prepared original constitutional draft).
Chief Draftsman: **S.N. Mukherjee**.
Calligrapher of English text: Prem Behari Narain Raizada (flowery italic style).
Illuminator / Decorator: **Nandalal Bose** and **Beohar Rammanohar Sinha** (Santiniketan artists).
Hindi Calligrapher: **Vasant Krishan Vaidya** (decorated by Nandalal Bose).

17. Center-State Relations & Inter-State River Water Dispute Tribunals

A. Major Commissions on Center-State Relations

Commission / Committee	Year	Appointed By / State	Key Recommendations / Landmark Findings
Administrative Reforms Commission (ARC-I)	1966	Central Govt (Morarji Desai → K. Hanumanthaiah)	Recommended setting up of an Inter-State Council under Article 263 ; non-partisan Governors
Rajamannar Committee	1969	Tamil Nadu Govt (DMK, Dr. P.V. Rajamannar)	Strongly advocated State Autonomy; recommend immediate deletion of Articles 356 and 365 ; vesting residuary powers in States; abolishing All-India Services (IAS/IPS)

Commission / Committee	Year	Appointed By / State	Key Recommendations / Landmark Findings
Anandpur Sahib Resolution	1973	Akali Dal (Punjab)	Demanded restriction of Central jurisdiction strictly to Defence, Foreign Affairs, Currency, and Communications
West Bengal Memorandum	1977	Left Front Govt (WB)	Demanded word "Union" be replaced by "Federation"; 75% of central revenues to states
Sarkaria Commission	1983–1987	Central Govt (Justice R.S. Sarkaria , B. Sivaraman, Dr. S.R. Sen)	MOST INFLUENTIAL COMMISSION: 1. Article 356 must be used sparingly, only as a measure of last resort 2. Institutionalize Inter-State Council under Art. 263 (established 1990) 3. Governor should be an eminent person from outside the state, detached from active politics, appointed after consulting CM 4. Opposed abolishing All-India Services, advocated strengthening them 5. Residuary legislative powers should remain with Centre (except taxation)
Punchhi Commission	2007–2010	Central Govt (Justice M.M. Punchhi)	1. Localized emergency (targeted under Art. 355/356 without dissolving state assembly) 2. Governor's tenure: fixed 5 years, removal only through impeachment by State Legislature 3. Governor should not be Chancellor of state universities

B. Inter-State River Water Disputes (Article 262)

Inter-State River Water Disputes Act 1956 empowers Central Govt to set up ad-hoc tribunals; jurisdiction of Supreme Court is barred:

Water Dispute Tribunal	Year Set Up	Riparian States Involved in Dispute
Krishna Water Dispute Tribunal I & II	1969 / 2004	Maharashtra, Karnataka, Andhra Pradesh, Telangana
Godavari Water Dispute Tribunal	1969	Maharashtra, Andhra Pradesh, MP, Chhattisgarh, Odisha, Karnataka
Narmada Water Dispute Tribunal	1969	Gujarat, Madhya Pradesh, Maharashtra, Rajasthan
Ravi & Beas Water Dispute Tribunal	1986	Punjab, Haryana, Rajasthan
Cauvery Water Dispute Tribunal	1990	Tamil Nadu, Karnataka, Kerala, Puducherry
Mahadayi (Mandovi) Tribunal	2010	Goa, Karnataka, Maharashtra
Vansadhara Water Dispute Tribunal	2010	Odisha and Andhra Pradesh
Mahanadi Water Dispute Tribunal	2018	Chhattisgarh and Odisha

Confused Pairs & Common Traps

⚡ Confused Pairs & Common Examiner Traps

Pair	Correct Concept	Common Examiner Trap	Hindi Key
Art. 32 vs Art. 226	SC writ is for Fundamental Rights only ; HC writ is for FR + ordinary legal rights (wider)	Believing SC writ power is wider than High Court	अनु. 32 (केवल मूल अधिकार) vs अनु. 226 (विस्तृत)
Habeas Corpus vs Mandamus	Habeas Corpus lies against public AND private ; Mandamus lies only against public bodies/officials	Claiming Mandamus can be issued against private firms	बंदी प्रत्यक्षीकरण (निजी भी) vs परमादेश (केवल लोक)
Estimates vs PAC	Estimates Committee has 30 members (all Lok Sabha) ; PAC has 22 members (15 LS + 7 RS)	Saying Estimates Committee includes Rajya Sabha members	प्राक्कलन (30 केवल लोकसभा) vs लोक लेखा (15+7)
State PSC Appointment vs Removal	Governor appoints ; but REMOVED ONLY BY THE PRESIDENT under Art. 317	Marking Governor as the removing authority for SPSC	नियुक्ति: राज्यपाल; निष्कासन: राष्ट्रपति
Emergency Origin vs FR Suspension	Emergency framework from GOI Act 1935 ; Suspension of FRs from Weimar Germany	Crediting Germany with creating the emergency provisions	आपातकाल: 1935 एक्ट; मू.अ. निलंबन: वाइमर
Non-Suspendable Rights	Articles 20 and 21 can NEVER be suspended during emergency (44th Amd 1978)	Claiming all Fundamental Rights are suspended in emergency	अनु. 20 व 21 कभी निलंबित नहीं
Right to Property Status	Legal/Constitutional right under Art. 300A (Part XII); deleted from FRs by 44th Amd 1978	Calling Right to Property a Fundamental Right	विधिक अधिकार (Art. 300A)
Precedence: CJI vs Speaker	Both hold EQUAL Rank 6 in official Warrant of Precedence	Ranking CJI above Speaker or vice-versa	CJI = लोकसभा अध्यक्ष (समान रैंक 6)
Precedence: Ministers vs SC Judges	Cabinet Ministers = Rank 7 ; Supreme Court Judges = Rank 9	Putting Supreme Court Judges ahead of Union Cabinet Ministers	कैबिनेट मंत्री (रैंक 7) vs सुप्रीम कोर्ट जज (रैंक 9)
Inter-State Council vs Zonal Council	Inter-State Council = Constitutional (Art. 263) ; Zonal Councils = Statutory (SRA 1956)	Mixing constitutional and statutory status of councils	अंतर-राज्य परिषद (संवैधानिक) vs क्षेत्रीय परिषद (सांविधिक)
CVC vs NCBC	CVC = Statutory Body (2003 Act) ; NCBC = Constitutional Body (Art. 338B via 102nd Amd)	Marking CVC as a constitutional body	CVC (सांविधिक) vs NCBC (संवैधानिक)
NITI Aayog Status	Non-Constitutional, Non-Statutory (Executive Body by Cabinet Resolution 2015)	Calling NITI Aayog a statutory body created by Parliament	नीति आयोग (कार्यकारी निकाय)
Panchayat vs Municipality Subjects	11th Schedule = 29 subjects ; 12th Schedule = 18 subjects	Swapping 29 and 18 between Panchayats and Municipalities	11वीं अनुसूची (29) vs 12वीं अनुसूची (18)
6th Schedule vs 5th Schedule	6th Schedule = Assam, Meghalaya, Tripura, Mizoram (AMTM) ; 5th = Other 10 states	Including Manipur or Nagaland in the 6th Schedule	छठी अनुसूची (केवल AMTM; मणिपुर बाहर)
8th Schedule Exclusions	English and Bhojpuri are NOT in the 22 languages of the Eighth Schedule	Assuming English or Bhojpuri are officially recognized in 8th Sch	अंग्रेजी व भोजपुरी 8वीं अनुसूची में नहीं
Voting Age: 21 to 18	Enacted by 61st Constitutional Amendment Act 1988 (in force 1989)	Confusing with 42nd or 44th Amendment	मतदान आयु 18 वर्ष: 61वां संशोधन
Council of Ministers Ceiling	Max 15% of Lok Sabha / Vidhan Sabha strength (91st Amendment 2003); State min = 12	Stating 10% or 20% limit for Council of Ministers	मंत्री परिषद अधिकतम 15% (91वां संशोधन)
Art. 2 vs Art. 3	Art. 2 = Admission/Establishment of NEW (foreign) states ; Art. 3 = Alteration of EXISTING states	Conflating external admission with internal reorganization	अनु. 2 (नया राज्य) vs अनु. 3 (विद्यमान राज्य)
Kesavananda vs Golaknath	<i>Golaknath</i> (1967) = FR unamendable; <i>Kesavananda</i> (1973) = Amending power intact BUT Basic Structure limited	Confusing which case introduced the Basic Structure	गोलकनाथ (अपरिवर्तनीय) vs केशवानंद (मूल ढाँचा)
S.R. Bommai vs Minerva Mills	<i>Bommai</i> (1994) = Curbs on Art. 356 & Secularism; <i>Minerva Mills</i> (1980) = Balance between FR and DPSP	Swapping case holdings on federalism and judicial review	बोम्माई (अनु. 356) vs मिनेर्वा मिल्स (सन्तुलन)

Pair	Correct Concept	Common Examiner Trap	Hindi Key
Ordinance Max Duration	6 weeks from reassembly of Parliament; absolute max without approval = 6 months + 6 weeks	Stating ordinance maximum lifespan is strictly 6 months	6 सप्ताह (सत्रारंभ से) / अधिकतम 7.5 माह
Money Bill Certifier	Speaker of Lok Sabha alone certifies; Rajya Sabha has only 14 days	Stating President or Finance Minister certifies a Money Bill	धन विधेयक: अध्यक्ष का अंतिम निर्णय
UP Legislative Strength	Vidhan Sabha = 403 ; Vidhan Parishad = 100 ; Lok Sabha = 80 ; Rajya Sabha = 31	Writing 404 for Assembly (Anglo-Indian nomination abolished)	विधानसभा: 403, विधान परिषद: 100, LS: 80, RS: 31
104th vs 106th Amendment	104th (2020) = End of Anglo-Indian nomination; 106th (2023) = 33% Women reservation	Confusing women quota amendment number	104वां (एंग्लो-इंडियन अंत) vs 106वां (नारी शक्ति)

Practice Zone — UPPCS Format Drill

Topic 1 — Constitutional Development

Consolidated — 35 Must-Score Facts

- 1. The **Regulating Act, 1773** created the **Governor-General (गवर्नर-जनरल) of Bengal** (Warren Hastings (वारेन)) and a Supreme Court at Calcutta in **1774**. It did **not** create the Governor-General of India.
- 2. The **Charter Act, 1833** made the Governor-General of Bengal the **Governor-General of India**; William Bentinck (बेंटिंक) was the first holder of that title.
- 3. Under **Pitt's India Act, 1784**, the **Board of Control** handled political affairs and the **Court of Directors** handled commercial affairs. Do not swap the two.
- 4. The **Act of 1786** let the Governor-General **overrule** his Council on safety/peace grounds; **Lord Cornwallis** was the first Governor-General who was also Commander-in-Chief.
- 5. Open competitive examination for the **ICS** was implemented under the **Charter Act, 1853**. The **1833** Act only carried the spirit of open competition.
- 6. The **Charter Act, 1813** ended the Company's trade monopoly except **tea and China trade**, and set aside **₹1 lakh** for education. Territory and revenue stayed with the Company for another **20 years**.
- 7. The **Government of India Act, 1858** ended Company rule. The Crown took over; a **Secretary of State** and a **Viceroy** (वायसरॉय) replaced Company control. **Lord Canning** was the first Viceroy (कैनिंग).
- 8. The **portfolio system** got legal recognition (मान्यता) under the **Indian Councils Act, 1861** (practice had begun around **1859**). Do not fact it to 1858, 1892, or 1909.
- 9. The **Indian Councils Act, 1892** introduced **indirect elections** and allowed **budget discussion without voting**. Supplementary questions arrived with **1909**, not 1892.
- 10. **Muslim separate electorates** began with the **Indian Councils Act, 1909** (Morley-Minto). The Communal Award of **1932** was not the first such device.
- 11. **S.P. Sinha** was the first Indian member of the Viceroy's Executive Council under the **1909** reforms.
- 12. The **Government of India Act, 1919** introduced **Dyarchy** (द्वैध शासन) in the provinces, a bicameral legislature at the Centre, and the **Chamber of Princes**.
- 13. The **Government of India Act, 1935** introduced **Provincial Autonomy**, which **operated**. The proposed **Federation** and **Dyarchy at the Centre never operated**.
- 14. Under the **1935** Act, residuary (अवशिष्ट) powers rested with the **Viceroy / Governor-General**, not with the Federal Legislature.
- 15. The **Federal Court** under the 1935 scheme began in **1937**. The **RBI** was created by the **RBI Act, 1934**; the 1935 Act only provided for a central bank.
- 16. The **Communal Award** came in **1932** (not 1933). The **Poona Pact** (पूना पैक्ट) replaced separate electorates for Depressed Classes with **reserved seats and a joint electorate**.
- 17. Gandhi (गांधी) attended the **Second Round Table Conference**; **Rajendra Prasad** did not go as the Congress (कांग्रेस) delegate.
- 18. The **August Offer (1940)** (Viceroy Linlithgow) offered dominion status after the war and accepted in principle the idea of a constitution framed by Indians — the **1935** Act itself did not provide a written Constitution.
- 19. The **Cripps Mission (March 1942)** offered a Constituent Assembly after the war and dominion status; Congress rejected it. Chronology: Cripps (**1942**) → Wavell/Shimla (**1945**) → Cabinet Mission (**1946**).
- 20. The **Wavell Plan (1945)** proposed equal Hindu-Muslim seats on the Governor-General's Executive Council (except Defence); the **Shimla Conference** failed to break the deadlock.
- 21. The **Cabinet Mission (1946)** (Pethick-Lawrence, Stafford Cripps, A.V. Alexander) rejected a sovereign Pakistan, proposed a **three-tier** Union with **Sections A/B/C**, and framed the path to the Constituent Assembly.
- 22. The Interim Government was **announced on 24 August 1946** and took **office on 2 September 1946**. Do not mix the two dates.
- 23. The **Mountbatten Plan** (माउंटबेटन योजना) was announced on **3 June 1947**. The **Indian Independence Act** received assent on **18 July 1947**.
- 24. The first clear demand for a Constituent Assembly (संविधान सभा) is linked to **M.N. Roy (1934)** and then the **Congress (1935)**.
- 25. The Constituent Assembly's original strength was **389 (292 + 93 + 4)**, later reduced to **299**. Election was **indirect** by provincial assemblies through **PR-STV**. About **15 women** were members. **Gandhi was not a member**.
- 26. The Assembly first met on **9 December 1946**. The **Objectives Resolution** was moved on **13 December 1946** and adopted (अंगीकृत) on **22 January 1947**.
- 27. The **Drafting Committee** was set up on **29 August 1947** with **B.R. Ambedkar** (बी.आर. अम्बेडकर) as Chairman. **B.N. Rau** was the **Constitutional Adviser**, not the Drafting Chair.
- 28. The **Minorities Sub-Committee** was chaired by **H.C. Mukherjee**. The parent **Advisory Committee** was chaired by **Sardar Patel** (सरदार पटेल).
- 29. The Constitution was **adopted on 26 November 1949** (284 signatures) and **enforced on 26 January 1950**. The last Assembly sitting (बैठक) was on **24 January 1950**. The national flag was adopted on **22 July 1947**.
- 30. **C. Rajagopalachari** was the first Indian Governor-General (**1948–50**). Mountbatten was the last British Governor-General, not the first Indian one.
- 31. Borrowed-feature facts: **UK** — parliamentary system; **USA** — Fundamental Rights (मौलिक अधिकार); **Ireland** — DPSP (राज्य के नीति निर्देशक तत्व); **Canada** — residuary powers; **Australia** — Concurrent List (समवर्ती सूची); **Germany** — emergency suspension model; **Japan** — procedure (प्रक्रिया) established by law (Art. 21 style); **GOI Act 1935** — structural (संरचनात्मक) skeleton.
- 32. The **Simon Commission (1927)** was all-British. The **Nehru Report** followed in **1928**, then the Round Table Conferences, the Award/Poona Pact, and the **1935** Act.
- 33. Under **1919**, a path toward a Public Service Commission led to the **Central PSC in 1926**.
- 34. Six provinces became bicameral under the 1935 scheme: **Bengal, Bombay, Madras, Bihar, Assam, and the United Provinces**.
- 35. Constitution Day is remembered on **26 November** as the adoption anniversary, not as the enforcement date.

Constitutional Development Acts Chronology (1773–1947)

1773: Regulating Act (GG of Bengal: Warren Hastings; SC at Calcutta 1774)
1784: Pitt's India Act (Dual Government: Board of Control & Court of Directors)
1793: Charter Act (Company monopoly extended 20 yrs; Home charges from India)
1813: Charter Act (Trade monopoly ended except Tea & China; 1 Lakh for education)
1833: Charter Act (GG of India: William Bentinck; trade ended; Law Member Macaulay)
1853: Charter Act (Separated Executive & Legislature; Open competition for ICS)
1858: Government of India Act (Crown Rule; Secretary of State & Council; Viceroy Canning)
1861: Indian Councils Act (Portfolio system; Ordinance power; Decentralization restored)

1892: Indian Councils Act (Indirect elections; Budget discussion without voting)

|

1909: Morley-Minto Reforms (Separate electorates for Muslims; S.P. Sinha in Council)

|

1919: Montagu-Chelmsford Reforms (Dyarchy in Provinces; Bicameral Centre; Central PSC 1926)

|

1935: Government of India Act (Provincial Autonomy; Federal Court 1937; Federation proposed)

|

1947: Indian Independence Act (Assent 18 July; Partition into India & Pakistan Dominions)

Must-score facts — Acts, missions, CA dates

Act ↔ year / lock

Act	Lock
Regulating Act	1773 — GG of Bengal ; SC Calcutta 1774
Pitt's India Act	1784 — Board of Control (political) / Court of Directors (commercial)
Charter 1833	GG of India (Bentinck first)
Charter 1853	Open ICS competition
GOI Act 1858	Crown rule (क्राउन शासन); first Viceroy Canning
Councils Act 1861	Portfolio system legal recognition
Councils Act 1909	Muslim separate electorates; S.P. Sinha first Indian EC member
GOI Act 1919	Dyarchy (द्वैध शासन) in provinces; Chamber of Princes
GOI Act 1935	Provincial Autonomy (worked); Federation / Centre Dyarchy did not
Communal Award	1932 (not 1933); Poona Pact = reserved seats + joint electorate

CA / transfer tags

Item	Lock
Interim announced / office	24 Aug 1946 / 2 Sep 1946
CA first meet	9 Dec 1946
Drafting Committee	29 Aug 1947 ; Chair Ambedkar (अम्बेडकर); Adviser B.N. Rau
CA strength	389 → 299 ; ~15 women; 284 signed
Adopt / Enforce	26 Nov 1949 / 26 Jan 1950
Flag	22 Jul 1947

Borrowed features (quick)

Feature	Source
Residuary	Canada
Concurrent List	Australia
Fundamental Rights	USA
DPSP	Ireland

Topic 2 — Features of the Constitution

Consolidated — 32 Must-Score Facts

1. India's Constitution is the **lengthiest written** Constitution of any sovereign country. It is a **single** Constitution for both the Union and the States (except earlier J&K anomaly).
2. India's **type of government** is **Parliamentary** plus a **Democratic Republic**. Its **polity structure** is a **quasi-federal Union** — not a Presidential system and not a pure classical federation.
3. **B.R. Ambedkar** (बी.आर. अम्बेडकर) described the design as **federal in form but unitary in spirit**. Indian federation did **not** arise from an agreement among States, and States have **no right to secede**.
4. In the parliamentary model the **President** is the **nominal** executive and the **Prime Minister** with the Council of Ministers is the **real** executive. Collective responsibility is to the **Lok Sabha** (लोकसभा).
5. The Constitution blends **rigidity and flexibility**. Many changes use **Article 368** (अनुच्छेद 368), but paths such as **Articles 2–4** and **Article 169** use only a **simple majority** of Parliament and are **outside** Article 368.
6. Three amendment tracks exist: **simple majority** (e.g., Arts. 2–4, 169); **special majority** under Article **368**; and **special majority plus ratification by half the States** for federal provisions.
7. **Article 1** calls India a **Union of States**. The word “**federation**” is not used anywhere in the Constitution. Parliament may alter State areas, boundaries, and names under **Article 3**.
8. Dual polity with a **strong Centre** is labelled **quasi-federal**. Scholar facts: **Wheare** = quasi-federal; **Austin** = cooperative; **Morris-Jones** = bargaining; **Jennings** = centralising tendency; **Alexandrowicz** = sui generis.
9. Salient package facts: **Fundamental Rights** (मौलिक अधिकार) + **DPSP** + **Fundamental Duties** (मौलिक कर्तव्य); a **Secular** State; **single citizenship**; **universal adult franchise**; an **independent** and **integrated** judiciary; Emergency provisions; and independent constitutional bodies.
10. The third tier of government arrived with the **73rd and 74th Amendments in 1992** (Panchayats and Municipalities).
11. Voting (गणपूर्ति) age became **18** (from 21) by the **61st Amendment (1988)**. Universal adult franchise is supported by **Article 326**.
12. The **Basic Structure** doctrine from **Kesavananda (केशवानंद भारती 1973) Bharati (1973)** limits amending power. Later **Minerva Mills** (1980) reinforced that Parliament cannot destroy that core.
13. Basic-structure chronology (Must know): **Shankari Prasad** (1951) → **Sajjan Singh** (1965) → **Golaknath** (गोलकनाथ 1967) (1967) → **24th Amendment (1971)** → **Kesavananda (1973)** → **Indira Nehru (नेहरू) Gandhi (गांधी)** (1975) → **42nd (1976)** → **Minerva Mills** (1980).
14. The Preamble opens with “**We, the People**” and describes India as a **Sovereign Socialist Secular Democratic Republic**. The word **Federal** is **not** in the Preamble.
15. Preamble keyword counts: **Justice** has **three** limbs (social, economic, political); **Liberty** has **five** (thought, expression, belief, faith, worship); **Equality** has **two** (status, opportunity); **Fraternity** aims at **two** (dignity of the individual, and the unity and integrity of the Nation).
16. The Preamble's date line is **26 November 1949** (Miti Margashirsha Shukla Saptami, Samvat 2006 Vikrami). On **26 January 1950** the constitutional status in force was only **Sovereign Democratic Republic**.
17. The **42nd Amendment (1976)** added **Socialist** and **Secular**, and inserted **integrity** alongside unity. Do not push those words back to 1950.
18. The Preamble is a **part** of the Constitution after **Kesavananda** (earlier rejected in *Berubari*), but it is **not enforceable (non-justiciable)**. **N.A. Palkhivala** called it the Constitution's **identity card**, **K.M. Munshi** called it **political horoscope**.
19. Borrowed-feature facts: **UK** — parliamentary system, writs, rule of law, bicameralism; **USA** — Fundamental Rights, judicial review, independent judiciary (स्वतंत्र), impeachment of President; **Ireland** — DPSP, RS nominations; **Canada** — residuary powers with Centre, advisory jurisdiction of SC.
20. Extended Borrowings: **Australia** — Concurrent List (समवर्ती सूची), joint sitting (संयुक्त बैठक); **Germany (Weimar)** — Emergency FR suspension; **Japan** — procedure (प्रक्रिया) established by law; **South Africa** — amendment procedure, RS elections; **USSR** — Fundamental Duties, justice ideals; **France** — Republic, liberty, equality, fraternity.
21. The **GOI Act 1935** provided the structural (संरचनात्मक) skeleton (federal scheme, judiciary, governors, emergency powers, PSCs).
22. **Universal adult franchise** and the **Basic Structure** politics are treated as **Indian originality**, not a copy of the 1935 Act.
23. Residuary powers rest with the **Centre** on the **Canada** pattern (Article 248). Do not place them with the States as in the USA.
24. Independent judiciary means freedom from organ control; **integrated** judiciary means **one hierarchy** (SC at apex → HC → Subordinate courts). Do not swap the two meanings.
25. Rule of law means no one is above the law (Dicey); **constitutional supremacy** means the Constitution is the highest law.
26. India synthesises **parliamentary law-making** with **judicial review** — neither pure UK parliamentary sovereignty nor pure USA judicial supremacy.
27. Originally (1950) there were **395 Articles**, **22 Parts**, and **8 Schedules**. Now it has 12 Schedules and 25 Parts.
28. In normal times the system works **federally**; in Emergency it becomes **unitary** — a unique flexibility Ambedkar stressed against rigid federations.
29. Cooperative federalism stresses Centre–State collaboration (Austin's line); competitive federalism stresses States competing for growth — both appear in current-affairs (GST (वस्तु एवं सेवा कर) Council (जीएसटी परिषद), NITI (नीति) Aayog (नीति आयोग)).
30. The Ideals of **Justice** in Preamble are inspired by the **Russian Revolution (1917)**, while **Liberty, Equality, Fraternity** are inspired by the **French Revolution (1789)**.
31. The **National Flag** (Pingali Venkayya; Ashoka Chakra with **24** spokes; ratio **3:2**) was adopted by the Assembly on **22 July 1947**. The **State Emblem** (Sarnath Lion Capital; motto **Satyameva Jayate** from the Mundaka Upanishad) was adopted on **26 January 1950**.
32. **Jana Gana Mana** (National Anthem) and **Vande Mataram** (National Song) were adopted on **24 January 1950**; full anthem rendition is about **52 seconds**. The **National Calendar** follows the **Saka** era (from **22 March 1957**), not Vikram.

Must-score facts — type, Preamble, scholars

Type / design tags

Item	Lock
Type of government	Parliamentary + Democratic Republic
Polity structure	Quasi-federal Union (not Presidential)
Ambedkar line	Federal in form, unitary in spirit
Dual executive	President nominal; PM real; responsible to Lok Sabha
Art. 1	Union of States (word “federation” unused)
Third tier	73rd / 74th, 1992
Voting age 18 (from 21)	61st Amendment (1988, enforced 1989)
Parts and Schedules	Originally 22 Parts, 8 Schedules ; Now 25 Parts, 12 Schedules

Federalism scholars

Scholar	Label
K.C. Wheare	Quasi-federal / Federation with strong centralizing tendency
Granville Austin	Cooperative
Morris-Jones	Bargaining
Ivor Jennings	Centralising tendency
C.H. Alexandrowicz	Sui Generis (Unique)

Preamble locks

Item	Lock
Counts	Justice 3 · Liberty 5 · Equality 2 · Fraternity 1 (with 2 aims)
Word Federal	Not in Preamble
26 Jan 1950 text	Sovereign Democratic Republic only
42nd (1976)	Added Socialist + Secular (+ integrity)
Status	Part of Constitution; non-justiciable / not enforceable
Palkhivala	Identity card (Preamble)
K.M. Munshi	Political Horoscope (Preamble)
Ambedkar “heart and soul”	Art. 32 (not Preamble)
Objective Resolution	Moved by JL Nehru (13 Dec 1946), Adopted (अंगीकृत) 22 Jan 1947
French Revolution	Source of Liberty, Equality, Fraternity
Russian Revolution	Source of Justice (Social, Economic, Political)

Borrowed map

Feature	Source
Parliamentary, Writs, Rule of Law	UK
FR, Judicial review, Independent Judiciary, President Impeachment	USA
DPSP, RS nominations by President	Ireland
Residuary with Centre, Advisory SC jurisdiction	Canada
Concurrent List, Joint sitting	Australia
Emergency model (FR suspension)	Germany (Weimar)
Procedure established by law (Art. 21)	Japan
Constitution amendment, RS members election	South Africa
Fundamental Duties, Ideals of Justice	USSR (Russia)
Republic, Ideals of Liberty/Equality/Fraternity	France

Topic 3 — Parts, Articles & Schedules

Consolidated — 40 Must-Score Facts

- 1. The Constitution is organised into **Parts**. Originally there were **22 Parts**; today there are about **25 Parts** (including IVA, IXA, IXB, XIVA). **Part VII** stands **repealed**.
- 2. **Part III** (मौलिक अधिकार) is **Fundamental Rights** (मौलिक अधिकार) (justiciable). **Part IV** (नीति निर्देशक) is **DPSP** (राज्य के नीति निर्देशक तत्व) (non-justiciable). **Part IVA** is **Fundamental Duties** (मौलिक कर्तव्य).
- 3. **Part IX** (भाग IX) is Panchayats, **Part IXA** is Municipalities, and **Part IXB** is Cooperative Societies. Do not park Municipalities in Part XI.
- 4. **Part XI** is **Relations between the Union and the States**. **Part XIVA** (भाग XIVA) is **Tribunals**. Confusing XI with Municipalities or Tribunals is a classic wrong-match trap.
- 5. **Part V** is the Union; **Part VI** is the States; **Part VIII** is Union Territories; **Part X** is Scheduled and Tribal (आदिवासी) Areas; **Part XV** is Elections; **Part XVII** is Official Language; **Part XVIII** is Emergency; **Part XX** is Amendment; **Part XXI** holds temporary, transitional and special provisions (**371–371J**).
- 6. The **Attorney General** (महान्यायवादी) sits under **Part V**, not under **Part XIII** (Trade (पण्याध्यक्ष), Commerce and Intercourse). Citizenship sits in **Part II**, not Part I.
- 7. Schedule facts: **First** = territories of States and UTs; **Second** = emoluments (President, CJI, CAG (भारत के नियंत्रक-महालेखापरीक्षक), etc.); **Third** = oaths and affirmations (President's oath is NOT here, it is in Art. 60); **Fourth** = Rajya Sabha (राज्यसभा) seat allocation.
- 8. **Fifth Schedule** covers Scheduled Areas and Scheduled Tribes in many States. **Sixth Schedule** covers tribal areas of **Assam, Meghalaya (मेघालय), Tripura and Mizoram (AMTM)** with Autonomous Councils. (Manipur is NOT in 6th Schedule (6वीं अनुसूची)).
- 9. **Seventh Schedule** holds the Union, State and Concurrent Lists (**Article 246**). **Eighth Schedule** (आठवीं अनुसूची) lists **22** official languages.
- 10. **Ninth Schedule** (नौवीं अनुसूची) validates certain Acts (added by **1st Amendment, 1951**). **Tenth Schedule** is anti-defection (added by **52nd Amendment, 1985**).
- 11. **Eleventh Schedule** lists **29** Panchayat subjects (**73rd**). **Twelfth Schedule** lists **18** Municipality subjects (**74th**). Do not swap 29 and 18.
- 12. In the Eighth Schedule, 14 original languages. **Sindhi** (21st Amd), **Konkani, Manipuri (मणिपुरी), Nepali** (71st Amd), and **Bodo, Dogri, Maithili, Santhali** (92nd Amd) were added later. **Bhojpuri and English** are out.
- 13. **Article 1** declares India a **Union of States**. **Article 3** lets Parliament form or alter States. **Article 12** defines **State** for Fundamental Rights. **Article 13** voids inconsistent laws.
- 14. Equality cluster: **Articles 14–18**. Freedom cluster: **Article 19**'s **six** freedoms. Life and personal liberty: **Article 21** (अनुच्छेद 21). Free and compulsory education ages **6–14**: **Article 21A**.
- 15. **Article 32** (अनुच्छेद 32) is the Supreme Court remedy for Fundamental Rights. **Article 226** is the High Court's wider writ power. **Article 51A** holds Fundamental Duties.
- 16. Pardon facts: **Article 72** (President) and **Article 161** (Governor). Ordinance facts: **Article 123** (President) and **Article 213** (Governor).
- 17. Union executive articles: **74** (aid and advice), **75** (Council of Ministers), **76** (Attorney General). **Article 110** defines a Money Bill (धन विधेयक). **Article 112** is the Annual Financial Statement (वार्षिक वित्तीय विवरण) (Budget). **Article 148** is the CAG.
- 18. **Article 249** lets Rajya Sabha empower Parliament to legislate on a State List (राज्य सूची) subject.
- 19. **Article 263** is the Inter-State Council. **Article 280** is the Finance Commission (वित्त आयोग). **Article 300A** is the legal right to property (44th (44वां संशोधन) Amendment). **Article 312** enables All-India Services. **Article 315** is UPSC (संघ लोक सेवा आयोग) / SPSC. **Article 324** is the Election Commission (निर्वाचन आयोग).
- 20. Commission Articles: **338** (NCSC (राष्ट्रीय अनुसूचित जाति आयोग)), **338A** (NCST (राष्ट्रीय अनुसूचित जनजाति आयोग) - 89th Amd), **338B** (NCBC (राष्ट्रीय पिछड़ा वर्ग आयोग) - 102nd Amd), **340** (Backward Classes Commission).
- 21. Emergency articles: **352** (national), **356** (State / President's Rule), **360** (financial). **Article 368** (अनुच्छेद 368) is amendment of the Constitution (Part XX).
- 22. Special-State articles run **371–371J** in Part XXI (e.g. 371A (अनु. 371A) Nagaland, 371G Mizoram, 371J Kalyana Karnataka). **Article 393** is the short title.
- 23. Part III article span is **12–35**. Part IV is **36–51**. Duties sit at **51A** (added by the **42nd (42वां) Amendment**; eleventh duty by the **86th Amendment, 2002**).
- 24. Panchayats (**Part IX**, Arts. **243–243O**) came with the **73rd Amendment, 1992**. Municipalities (**Part IXA**) came with the **74th Amendment, 1992**. Cooperatives (**Part IXB**) came with the **97th Amendment, 2011**.
- 25. Elections (**Part XV**, Arts. **324–329**) include adult suffrage under **Article 326** (voting (राणपूर्ति) age reduced from 21 to 18 by **61st Amendment, 1988**) and a bar on court interference under **Article 329**.
- 26. **Article 32** writs are for **Fundamental Rights only**. **Article 226** writs can protect Fundamental Rights **and** other legal rights — that is why 226 is called wider.
- 27. President's pardon (**72**) and Governor's pardon (**161**) must not be swapped on death sentence and court-martial (those stay with the President).
- 28. National Emergency (राष्ट्रीय आपात) is **352**; State Emergency / President's Rule is **356**; Financial Emergency (वित्तीय आपात) is **360**. Do not mix the three codes.
- 29. Fourth Schedule is **Rajya Sabha seats**, not validation of Acts. Ninth Schedule is **validation of Acts**, not RS seats.
- 30. Part match trap set: Municipalities ≠ Part XI; Tribunals ≠ Part XI; Attorney General ≠ Part XIII; Citizenship = Part II.
- 31. **Vice-President** cluster: Arts. **63–69** (office, RS Chair, acting President, election, term/removal, vacancy, oath). VP is elected by **Parliament only** (Art. **66**). President's college includes **State MLAs** (Art. **54**).
- 32. **High Court** cluster: Art. **214** (HC for each State), **215** (court of record), **217** (appointment; age **62**), **226** (writs — wider than 32), **227** (superintendence), **231** (common HC). Do not swap **226** with **227**.
- 33. **Article 21** is one sentence in the text, but courts have read into it dignity, livelihood, privacy (*Puttaswamy*), and related rights. **Article 21A** is the separate RTE for ages **6–14**.
- 34. **Article 51A** lists **11** Fundamental Duties (**a–k**). Ten came with the **42nd**; **51A(k)** came with the **86th**. Advocate-General of a State is Art. **165** (parallel to Union AG under Art. **76**).
- 35. The **Anti-Defection** law (Tenth Schedule) triggers disqualification for defection, decided by the Presiding Officer (पीठासीन अधिकारी) of the House (originally subject to no judicial review, later struck down in *Kihoto Hollohan*).
- 36. **7th Schedule** lists: Union (e.g., Defence, Foreign Affairs, Census), State (e.g., Police, Public Health, Agriculture), Concurrent (e.g., Education, Forests, Marriage — shifted by 42nd Amd).
- 37. **DPSP specific traps**: Art 39A (Free Legal Aid), Art 40 (Village Panchayats), Art 44 (UCC), Art 50 (Separation of Judiciary & Executive).
- 38. **Financial specific traps**: Art 266 (Consolidated Fund & Public Account (लोक लेखा)) vs Art 267 (Contingency Fund (आकस्मिकता निधि)).
- 39. **Panchayat specific traps**: Art 243D (Reservation of seats) and Art 243I (State Finance Commission).
- 40. **Art 371 series shortcuts**: 371 (MH & GJ), 371A (Nagaland), 371B (Assam), 371C (Manipur), 371D/E (AP & Telangana), 371F (Sikkim), 371G (Mizoram), 371H (Arunachal), 371I (अनु. 371I) (Goa (गोवा)), 371J (Karnataka). MNEMONIC: **No Agriculture Makes Andhra Sikkim More Ardent Go** Karnataka (NAMASMAGK).

Must-score facts — Parts, Schedules, Articles

Part ↔ subject

Part	Subject
II	Citizenship

Part	Subject
III	Fundamental Rights
IV	DPSP
IVA	Fundamental Duties (42nd Amd)
V / VI / VIII	Union / States / UTs
IX / IXA / IXB	Panchayats / Municipalities / Cooperatives
XI	Centre–State relations
XIV	Services under Union and States (UPSC)
XIVA	Tribunals (42nd Amd)
XV	Elections
XVII	Official Language
XVIII	Emergency
XX	Amendment (Art. 368)
XXI	Temporary / special (371–371J)

Schedule ↔ subject

Schedule	Lock
1st	Territories of States / UTs
2nd	Emoluments / Salaries (President, CJI, CAG, etc.)
3rd	Oaths (President's oath is NOT here)
4th	Rajya Sabha seats
5th	Scheduled Areas / STs (many States)
6th	AMTM : Assam, Meghalaya, Tripura, Mizoram Autonomous Councils
7th	Union / State / Concurrent Lists
8th	22 languages (Sindhi, Konkani, Manipuri, Nepali, Bodo, Dogri, Maithili, Santhali added later. Bhojpuri/English out)
9th	Validation of Acts (1st Amd, 1951)
10th	Anti-defection (52nd Amd, 1985)
11th	29 Panchayat subjects (73rd Amd)
12th	18 Municipality subjects (74th Amd)

High-yield Articles

Article	Lock
1 / 3	Union of States / form–alter States
14-18 / 19 / 21	Right to Equality / Freedom / Life & Liberty
32 / 226	SC FR remedy / HC wider writs
40 / 44	Village Panchayats / Uniform Civil Code
72 / 161	President / Governor pardon
110 / 112	Money Bill / Annual Financial Statement (Budget)
123 / 213	President / Governor ordinance
148	CAG
249	RS power to legislate on State List subject
263 / 280 / 324	ISC / Finance Commission / Election Commission
300A	Legal right to property
312 / 315	All-India Services / UPSC
338 / 338A / 338B	NCSC / NCST / NCBC
352 / 356 / 360	National / State / Financial Emergency
368	Amendment procedure (प्रक्रिया)

Topic 4 — Union & Territory

Consolidated — 32 Must-Score Facts

- 1. **Part I (Articles 1–4):** India, that is Bharat, is a **Union of States**. The term “Federation” is nowhere used. Names and territorial extent are in the **First Schedule**.
- 2. Territory of India under **Article 1(3)** comprises **States, Union Territories**, and such other territories as may be **acquired** (e.g., Puducherry, Goa (गोवा) initially).
- 3. **Article 2 vs Article 3:** Art 2 allows Parliament to **admit or establish new** States (foreign territory, e.g., Sikkim). Art 3 allows forming/altering *existing* States (boundary/name changes).
- 4. **Article 4:** Laws under Art 2 & 3 amend the First and Fourth Schedules by a **simple majority**; they are **not** constitutional amendments under **Article 368** (अनुच्छेद 368).
- 5. **Article 3 Procedure (प्रक्रिया):** Bill needs prior **President’s recommendation**. The concerned State Legislature’s views are sought but are **not binding**. The State Legislature **cannot** itself change its name.
- 6. **Acquisition vs Cession:** Acquisition requires ordinary law. **Cession** of Indian territory requires a **Constitutional Amendment** (*Berubari Union* case, 1960).
- 7. **Cession Amendments:** 9th Amendment (9वाँ संशोधन) (1960) ceded Berubari to Pakistan. 100th Amendment (2015) executed India–Bangladesh Land Boundary Agreement (exchange of 162 enclaves).
- 8. **Dhar Commission (June 1948)** and **JVP Committee (Dec 1948)** both purely **rejected** immediate linguistic reorganisation, prioritizing national unity.
- 9. **Andhra State:** Formed on **1 Oct 1953** following Potti Sriramulu’s fast unto death. It was the **first linguistic State**. First capital was **Kurnool** (not Hyderabad (हैदराबाद)).
- 10. **States Reorganisation Commission (SRC (आयोग), 1953):** Chaired by **Justice Fazl Ali**, with **K.M. Panikkar** and **H.N. Kunzru**. (K.T. Shah and P. Sitaramayya were *not* members).
- 11. **States Reorganisation Act, 1956:** Combined with the **7th Amendment (1956)**, it abolished Part A (ए)/B/C/D states, establishing **14 States and 6 UTs** on 1 Nov 1956.
- 12. **Zonal Councils:** They are **statutory** bodies established by the States Reorganisation Act, 1956. The **Union Home Minister** is the common chairman. (North Eastern Council was formed by a separate 1971 Act).
- 13. **Formation Chronology:** Gujarat (1960), Nagaland (1963), Haryana (1966), Himachal (हिमाचल) (1971), Manipur/Tripura/Meghalaya (मेघालय) (1972), Sikkim (1975).
- 14. **Sikkim:** Created via **Article 2**. 35th Amd (1974) made it an ‘Associate State’; **36th Amd (1975)** made it a full 22nd State (inserted Art. 371F).
- 15. **UP/UK trivia:** United Provinces renamed to **Uttar Pradesh** (उत्तर प्रदेश) on **24 Jan 1950** (UP Diwas). **Uttarakhand** (उत्तराखंड) was carved out on **9 Nov 2000** as the 27th State.
- 16. **Current Map:** India has **28 States and 8 Union Territories**. Dadra (दादरा) & Nagar Haveli and Daman & Diu merged into one UT in **Jan 2020**. J&K and Ladakh (लद्दाख) formed on 31 Oct 2019.
- 17. **UT Administration (Part VIII):** Administered directly by the President through an Administrator or **Lieutenant Governor (LG)** under **Article 239**.
- 18. **Legislatures in UTs:** **Art. 239A** (14th Amd) enables Puducherry’s legislature. **Art. 239AA** (69th Amd, 1991) designates Delhi as **NCT** with special provisions.
- 19. **NCT Delhi Exceptions:** Public order, police, and land remain strictly with the Union (unlike Puducherry). Maximum LS seats from UTs is **20** (Article 81). Delhi has 70 MLAs.
- 20. **Citizenship (Part II, Articles 5–11):** India follows **single citizenship** (unlike USA’s dual system). Constitution left citizenship regulation to Parliament (**Article 11**).
- 21. **Citizenship Act, 1955:** Provides 5 modes of **acquisition** (Birth, Descent, Registration, Naturalisation, Territory Incorporation) and 3 of **loss** (Renunciation, Termination, Deprivation).
- 22. **Dual Citizenship:** Strictly **not allowed**. Voluntary acquisition of foreign citizenship results in automatic **termination** (**Article 9**).
- 23. **Deprivation:** A compulsory Central order against **registered/naturalised** citizens (for fraud, disloyalty, or 7-year overseas residence). Birth citizens cannot be ‘deprived’.
- 24. **Birth-citizenship evolution:** Birth plus: -> 1987 (one parent must be Indian) -> **3 Dec 2004** (both parents citizens, or one citizen & other not an *illegal migrant*).
- 25. **PIO / OCI:** PIO scheme merged into **OCI in 2015**. OCI is **not** dual citizenship—OCI cardholders cannot vote, hold constitutional office, or routinely buy agricultural land.
- 26. **Pravasi Bharatiya Divas:** Celebrated on **9 Jan** (Gandhi (गान्धी)’s return), inspired by the **L.M. Singhvi Committee (2000)** on Indian diaspora.
- 27. **Citizenship Amendment Act (CAA), 2019:** Protects 6 persecuted minorities (Hindu, Sikh, Buddhist, Jain, Parsi, Christian) from 3 countries (Pak, Afghan, Bangladesh) entering on/before **31 Dec 2014**.
- 28. **National Integration Council (NIC, 1961):** PM is the chairman. It is completely **extra-constitutional** (unlike the Inter-State Council under Art. 263).
- 29. **Fundamental Rights (मौलिक अधिकार) (Citizens Only):** Articles **15, 16, 19, 29, 30**. Non-citizens also get Arts. 14, 20, 21, 22, 25-28.
- 30. **Minority / Treaties Trivia:** French enclaves (Puducherry de jure 1962), Portuguese enclaves (Goa/Daman/Diu liberated in 1961 via *Operation Vijay*).
- 31. **Article 240** lets the President make **regulations** for peace, progress and good government of listed UTs without a legislature (or when the legislature is dissolved/suspended). Living list includes Andaman & Nicobar, Lakshadweep, Dadra & Nagar Haveli and Daman & Diu, and **Puducherry** when its Assembly is not functioning. **Goa is a State** — not on the Art. 240 list.
- 32. **Article 241** enables a High Court for a Union Territory; Parliament may also place a UT under a neighbouring State’s High Court (e.g. Chandigarh with Punjab & Haryana HC).

Must-score facts — Arts. 1–4, SRC, citizenship

Article & Constitutional Tags

Entity	Core Lock
Art. 1	India = Union of States; Territory = States + UTs + Acquired
Art. 2	Admit / establish new States (e.g., Sikkim entry)
Art. 3	Form / alter existing States; President’s recommendation mandatory; State views not binding
Art. 4	Changes to 1st & 4th Schedules not deemed Art. 368 amendment
Art. 5–11	Citizenship (Part II); Single citizenship
Art. 239	UT administered via Administrator / LG
Art. 239AA	NCT Delhi (69th Amd) — public order / police / land strictly with Centre

Quick Chronology & Committees

Item	Core Lock
Dhar & JVP (1948)	Rejected immediate linguistic States; focus on unity
Andhra (1953)	First linguistic State (1 Oct 1953); capital Kurnool
SRC (1953)	Fazl Ali (Chair), K.M. Panikkar, H.N. Kunzru (Sitaramayya NOT a member)
SRA (1956) + 7th Amd	1 Nov 1956 — 14 States + 6 UTs scheme

Item	Core Lock
Sikkim	35th Amd (Associate State), 36th Amd 1975 (Full State)
Uttarakhand (UP focus)	Carved from UP on 9 Nov 2000 (27th State)

Citizenship Locks

Item	Core Lock
Statute & Power	Citizenship Act 1955 ; Parliament's absolute (निरपेक्ष) power (Art. 11)
Citizen-only FRs	Arts. 15, 16, 19, 29, 30
Acquisition (5 modes)	Birth, descent, registration, naturalisation, incorporation of territory
Loss (3 modes)	Renunciation, termination (automatic on foreign passport), deprivation (Central order)
Pravasi Bh. Divas	9 Jan ; L.M. Singhvi Committee (2000) recommendation
CAA 2019	6 minority religions from Pak, Afghan, Bangladesh entering before 31 Dec 2014

Topic 5 — Fundamental Rights & Duties

Consolidated — 32 Must-Score Facts

- 1. **Part III (मौलिक अधिकार) (Articles 12–35)** holds Fundamental Rights. They are **justiciable**. Part III is called the **Magna Carta of India**. Originally there were **seven** groups; after the **44th (44वाँ संशोधन) Amendment (1978)** removed the Right to Property, **six** groups remain. Pre-1950 demand spine: **1895** Tilak (तिलक) Bill → **Nehru (नेहरू) Report (नेहरू रिपोर्ट) 1928** (नेहरू रिपोर्ट) → **Karachi 1931** (Patel).
- 2. **Article 12** defines **State** for Part III (Union and State governments and legislatures, local authorities, and other authorities under the instrumentality test).
- 3. Rights available only to **citizens: Articles 15, 16, 19, 29 and 30**. Rights available to **all persons** (citizens and foreigners): **14, 20, 21, 21A, 22, 23, 24, 25–28 and 32**.
- 4. **Article 14** (equality before law / equal protection) covers **any person**. **Article 16** (equality of opportunity in public employment) covers **citizens only**.
- 5. Reservation / special-provision facts: **15(4)** is the first explicit special provision; **15(5)** is the **93rd**; **15(6) / 16(6)** are the **103rd** (EWS). Promotion facts include **16(4A) (77th)** and **16(4B) (81st / related 85th teaching)**.
- 6. **Article 17** abolishes **untouchability** (absolute (निरपेक्ष) equality fact). **Article 18** bans titles; national awards such as **Bharat Ratna** (भारत रत्न) are **not** “titles” in that sense.
- 7. **Article 19** gives **six** freedoms to **citizens**. The old property freedom **19(1)(f)** was deleted by the **44th Amendment** (44वाँ संशोधन); property now sits as a **legal right** under **Article 300A**.
- 8. The six freedoms are speech and expression, assembly, association (cooperatives reinforced by the **97th**), movement, residence, and profession — each with reasonable restrictions under **19(2)–(6)**.
- 9. **Article 20** protects **all persons** against ex post facto criminal law, double jeopardy, and self-incrimination. Torture and privacy questions are **not** solved only by Article 20.
- 10. **Article 21** (अनुच्छेद 21) protects life and personal liberty for **all persons**. After *Maneka Gandhi (गंधी)*, procedure (प्रक्रिया) must be **fair, just and reasonable**. **Privacy** was treated as a Fundamental Right in *Puttaswamy* (2017).
- 11. **Article 21A** (Right to Education) covers free and compulsory education for ages **6–14**, inserted by the **86th Amendment**. Do not stretch 21A to every age group.
- 12. **Article 22**: ordinary arrest needs production before a magistrate within **24 hours**. Preventive detention has a separate code (Advisory Board and three-month rhythm in the usual teaching).
- 13. **Articles 23–24** are rights against **exploitation** (begar (बेगार), trafficking, child labour under 14 in hazardous work). Do not park untouchability here — that is **Article 17** under equality.
- 14. Religion cluster **25–28**: **25** includes the right to **propagate**; **26** is to manage religious affairs; **27** bars a **tax** for promotion of a religion (a regulatory **fee** is different); **28** covers religious instruction in certain institutions.
- 15. **Article 29** protects culture of **any section** of citizens. **Article 30** protects **minorities’** right to establish and administer educational institutions. “Minority” is not exhaustively defined in the text (*T.M.A. Pai* line).
- 16. **Article 32** (अनुच्छेद 32) is the Supreme Court writ remedy for **Fundamental Rights only** — Ambedkar (अम्बेडकर)’s “heart and soul.” **Article 226** is **wider**: Fundamental Rights **plus** other legal rights.
- 17. Five writs (पाँच प्रकार की रिटें): **Habeas Corpus** (बन्दी प्रत्यक्षीकरण), **Mandamus** (परमादेश), **Prohibition** (प्रतिषेध), **Certiorari** (उत्प्रेषण), **Quo Warranto** (अधिकार-पृच्छा). **Prohibition** comes **before** the decision; **Certiorari** comes **after** to quash. Mandamus does **not** run against the President or a Governor in the usual fact.
- 18. High Court Habeas Corpus can reach even a **private** person in the classic teaching. Quo Warranto tests illegal occupation of a **public office**.
- 19. Under a National Emergency (राष्ट्रीय आपात), **Article 358** automatically suspends **Article 19** freedoms (subject to later refinements). **Article 359** can suspend enforcement of other rights by order, but **Articles 20 and 21** cannot be suspended.
- 20. **DPSP** (राज्य के नीति निर्देशक तत्व) sit in **Part IV (नीति निर्देशक) (Articles 36–51)**, borrowed in form from **Ireland**, and are **non-justiciable** (**Article 37**) though fundamental in governance.
- 21. High-yield DPSP map: **39A** legal aid; **40** village panchayats; **43A** workers’ participation; **43B** cooperatives (**97th**); **44** Uniform Civil Code; **45** early childhood care (under-6 after 86th shift); **48A** environment (पर्यावरण); **50** separation of judiciary; **51** international peace.
- 22. Do not swap **43A** (workers) with **43B** (cooperatives), or **48** (cattle / agriculture) with **50** (separation of judiciary).
- 23. **Fundamental Duties** (मौलिक कर्तव्य) sit in **Part IVA, Article 51A**, added by the **42nd Amendment (1976)** — originally **10**, raised to **11** by the **86th (51A(k))** education of child). Duties bind **citizens**.
- 24. **Article 51A(g)** (protect environment) pairs with DPSP **48A** — same idea in two Parts.
- 25. Fundamental Rights are justiciable (USA-style Bill of Rights form); DPSP are non-justiciable (Ireland-style directives). Conflict cases later balanced them without erasing either Part.
- 26. **Article 13** voids inconsistent laws. Constitutional amendments sit outside via **13(4)** after the **24th Amendment**. Doctrines: eclipse, severability, and generally **no waiver** of Fundamental Rights.
- 27. Exceptions to equality include **Article 361** immunities of the President and Governors — Article 14 does not apply fully to those official-act shields.
- 28. S. Radhakrishnan’s Constituent Assembly (संविधान सभा) line: Fundamental Rights are “a **pledge** to our people and a **pact** with the civilized world.”
- 29. Some rights (notably **17, 23, 24**) also bind private persons; most Part III rights primarily bind the **State** under Article 12.
- 30. Property is **not** a Fundamental Right after the 44th; it is a **constitutional legal right** under **300A** — State can deprive only by authority of law.
- 31. **Articles 31A, 31B and 31C** save certain laws from Fundamental Rights attack: **31B** works with the **Ninth Schedule** (1st Amendment, 1951); **31C** protects laws giving effect to Articles **39(b)/(c)**. The **42nd** tried to stretch 31C to **all** DPSPs; *Minerva Mills* struck that stretch and kept the FR–DPSP balance as Basic Structure.
- 32. **Articles 33–35** let Parliament restrict or modify Fundamental Rights for the armed forces and similar forces (**33**), allow indemnity related to martial law (**34**), and reserve certain Part III powers exclusively to Parliament (**35**).

Must-score facts — FR groups, writs, DPSP, Duties

Citizens-only vs all persons

Only citizens	All persons
15, 16, 19, 29, 30	14, 20, 21, 21A, 22, 23–24, 25–28, 32

Six FR groups (present)

Group	Articles
Equality	14–18
Freedom	19–22
Against exploitation	23–24
Religion	25–28

Group	Articles
Culture & education	29–30
Constitutional remedies	32

Key article locks

Article	Lock
17	Untouchability (≠ exploitation 23–24)
19	Six freedoms; property 19(1)(f) deleted by 44th → 300A
20	Ex post facto · double jeopardy · self-incrimination (torture ≠ 20 alone)
21	Life / liberty; privacy = <i>Puttaswamy</i> 2017
21A	RTE ages 6–14 (86th)
32 vs 226	FR only / FR + other legal rights
Prohibition vs Certiorari	Before decision / After to quash
358 / 359	Art. 19 auto-suspend (war/external); 20 & 21 never suspended

DPSP / Duties

Item	Lock
DPSP	Part IV 36–51 ; Ireland; non-justiciable (37)
43A vs 43B	Workers' participation vs cooperatives
48 vs 50	Cattle/agriculture vs separation of judiciary
48A + 51A(g)	Environment in both Parts
Duties	42nd (10) + 86th 51A(k); vote is NOT a Duty
Monuments	DPSP 49 (not a Duty)

Topic 6 — Union Executive

Consolidated — 30 Must-Score Facts

- 1. **Part V** covers the Union: Executive (**Articles 52–78** — President, Vice-President, Prime Minister, Council of Ministers, Attorney General) plus Parliament, and the **CAG under Articles 148–151**.
- 2. India follows a parliamentary system: the **President** is the **nominal / de jure** head; the **real / de facto** executive is the **Council of Ministers headed by the Prime Minister**.
- 3. **Article 53** vests executive power of the Union in the **President**, exercised in practice on the **aid and advice** of the Council of Ministers under **Article 74**.
- 4. The President is elected **indirectly** by an Electoral College of **elected** MPs of both Houses, **elected** MLAs of the States, and **elected** MLAs of **Delhi and Puducherry (70th Amendment)**.
- 5. **Nominated** members of Parliament and members of State **Legislative Councils** do **not** vote in the Presidential election. They **do** vote in the Vice-President’s election.
- 6. Election uses **proportional representation by single transferable vote** and a secret ballot. Vote-value population (जनसंख्या) is frozen at the **1971 census** until the first census after **2026**.
- 7. Presidential qualifications (**Article 58**): citizen, completed **35 years**, and qualified for election to the **Lok Sabha** (लोकसभा) (not Rajya Sabha). Oath is before the **Chief Justice of India**.
- 8. Term is **five years**; re-election is allowed any number of times. A vacancy by death, resignation or removal must be filled within **six months**; the Vice-President acts until then.
- 9. Impeachment under **Article 61** is for **violation of the Constitution**. Nominated MPs **can** vote in impeachment; **State MLAs do not**. No President has ever been impeached.
- 10. Veto types in India: **absolute, suspensive, and pocket** (no fixed time limit). There is **no qualified veto** of the USA type.
- 11. On a **Money Bill**, the President may only **assent or withhold** — he **cannot return** it for reconsideration. After the **24th Amendment**, he **must assent** to a Constitution Amendment Bill.
- 12. **Article 72** (President) covers Union offences, court-martial sentences, and **death sentences**. **Article 161** (Governor) does **not** cover death sentence or court-martial.
- 13. **Article 123** ordinances: Houses not in session (पेगु सत्र); must be laid and lapse if not approved within **six weeks** of reassembly. An ordinance **cannot amend the Constitution**.
- 14. The Vice-President is **ex-officio Chairman of the Rajya Sabha** but is **not a member** of the House. Removal under **Article 67** starts in the Rajya Sabha (effective majority) and needs Lok Sabha agreement, with **14 days’** notice — not a full “impeachment” label.
- 15. Vice-President’s Electoral College is **both Houses of Parliament**, including **nominated** members; **State legislatures do not** take part.
- 16. **Article 74** aid and advice is **binding** on the President (42nd (42वाँ) / 44th (44वाँ संशोधन) line). **Article 78** is the Prime Minister’s duty to communicate information to the President.
- 17. Council of Ministers size is capped at **15% of the Lok Sabha** by the **91st Amendment**. Collective responsibility under **Article 75(3)** is to the **Lok Sabha only**.
- 18. Individual ministers hold office during the **pleasure of the President (Article 75(2))**. Rank order: Cabinet Ministers → Ministers of State → Deputy Ministers. Cabinet Committees are **extra-constitutional**.
- 19. The **Attorney General** (महान्यायवादी) (**Article 76**) is the first law officer, needs Supreme Court judge qualifications, holds office **during the pleasure of the President**, and may **speak in both Houses** but **cannot vote**.
- 20. The **CAG (Articles 148–151)** is appointed by the President for **six years or age 65**, removed **like a Supreme Court judge** (not pleasure tenure), and is barred from further Union or State office. Union reports go to the **President** then Parliament; State reports go to the **Governor**. Contrast: **AG = pleasure; CAG = SC-judge security**.
- 21. The **Warrant / Table of Precedence (1979)** is **ceremonial only**. It is **not** the constitutional line of succession.
- 22. Precedence ranks to fact: **1** President, **2** Vice-President, **3** Prime Minister, **4** Governors (within their State), **5** former Presidents, **6** CJI = Speaker, **7** Cabinet Ministers / CMs (in State) / former PMs / Leaders of Opposition, **11** Attorney General.
- 23. Do not place the Speaker below Cabinet Ministers: Speaker shares **rank 6** with the CJI; Cabinet Ministers are **rank 7**. AG at **11** does **not** outrank Cabinet Ministers.
- 24. **CEC / CAG (भारत के नियंत्रक-महालेखापरीक्षक) / UPSC (संघ लोक सेवा आयोग) Chair** sit at **9A**; Supreme Court judges sit at **9** — do not swap those bands.
- 25. The PMO is headed by the **Principal Secretary** to the PM. The **Cabinet Secretariat** is headed by the **Cabinet Secretary** — different offices.
- 26. Nomination for President needs **50** proposers and **50** seconders; disputes go to the **Supreme Court** under **Article 71**.
- 27. Resignation of the President is addressed to the **Vice-President**. The President shall not be a member of either House; if a sitting (बैठक) member is elected, the seat is vacated.
- 28. Kitchen / inner Cabinet and most Cabinet Committees are political practice, not constitutional offices. Deputy Prime Minister is also a political designation, not a separate constitutional post.
- 29. **Doctrine of Pleasure** (Article **310**) is the general rule for civil servants, but it is **restricted** by Article **311** and by the hard removal routes for judges, CAG, CEC and similar offices.
- 30. **Droupadi Murmu** became the **15th President** (office from **25 July 2022**) — first tribal President and second woman President.

Must-score facts — President, VP, PM, ordinances

Frame	
Item	Lock
Part / Arts.	Part V, 52–78
Nominal / real	President / PM + CoM
Executive power	Art. 53; aid & advice Art. 74

President election / office	
Item	Lock
Electoral College	Elected MPs + elected MLAs of States/UTs with Assemblies
Do not vote	Nominated MPs; Legislative Council members
Method	PR-STV; secret ballot
Age	35; qualified for Lok Sabha
Term	5 years; re-election unlimited

Item	Lock
Impeachment	Art. 61
Pardon	Art. 72 (death + court-martial stay with President)
Ordinance	Art. 123

VP / PM tags

Item	Lock
VP election	Parliament only (Art. 66) — no State MLAs
VP role	Ex-officio RS Chair
PM	Appointed by President; real executive; collective responsibility to LS
AG	Art. 76 ; may speak both Houses; no vote

Topic 7 — Parliament

Consolidated — 30 Must-Score Facts

- 1. **Article 79:** Parliament of the Union = the **President + Rajya Sabha** (राज्यसभा) + **Lok Sabha** (लोकसभा). The President is an integral part of Parliament even though he sits in neither House.
- 2. Rajya Sabha maximum under **Article 80** is **250** (238 States/UTs + 12 nominated). Present strength is **245** (233 + 12). Seats follow the **Fourth Schedule** and are **not** equal per State.
- 3. Rajya Sabha members are elected by **elected MLAs** through **PR-STV**. Term is **six years; one-third retire every two years**. The House is **never dissolved**.
- 4. The President nominates **12** members with special knowledge in **literature, science, art, or social service**. **Sport** is **not** in that list. Nominated members vote in the **Vice-President** election but **not** in the **President** election.
- 5. Rajya Sabha special powers: **Article 249** (State List (राज्य सूची) for one year), **Article 312** (All-India Services — **2/3 of members present and voting** (गणपूर्ति)), and the start of **Vice-President removal**.
- 6. High-yield Rajya Sabha seat facts: **Uttar Pradesh** (उत्तर प्रदेश) **31**, Maharashtra 19, Tamil Nadu (तामिल) 18, Bihar/West Bengal 16; UTs with seats include **Delhi 3, Puducherry 1, Jammu & Kashmir 4**.
- 7. Lok Sabha maximum under **Article 81** is **550** (530 States + 20 UTs). Present elected strength is **543**. Election is **FPTP**; minimum age is **25**.
- 8. Anglo-Indian nomination to the Lok Sabha ended with the **104th Amendment**. SC/ST reservation continues till **25 January 2030**. Seat freeze uses the **1971** census (84th) until the first census after **2026**.
- 9. **Uttar Pradesh** (उत्तर प्रदेश) has **80** Lok Sabha seats — the highest Leading state in the usual map.
- 10. Qualifications sit in **Article 84**; disqualifications in **Article 102**. Office of profit is decided by the **President on binding Election Commission** (निर्वाचन आयोग) **advice**, not by the Speaker alone.
- 11. Dual-membership clocks: both Houses of Parliament — choose within **10 days**; Parliament and a State legislature — Parliament seat goes after **14 days**. *Lily Thomas*: conviction of **two years or more** brings **instant** disqualification.
- 12. The **Speaker** is elected by the House (**Article 93**), resigns to the Deputy Speaker, and can be removed by **14 days’** notice plus a majority of **all then members**. The Speaker gives the **Money Bill certificate** and presides over a **joint sitting** (संयुक्त बैठक).
- 13. The **Vice-President** is *ex-officio* **Chairman** of the Rajya Sabha and is **not a member**. The Deputy Chairman is elected **from among** Rajya Sabha members. **Pro Tem Speaker** is appointed by the **President**.
- 14. Sessions under **Article 85**: Budget, Monsoon, Winter; gap between two sittings of a House must not exceed **six months**. **Adjournment** (स्थगन) ends a sitting; **prorogation** (सत्रावसान) ends a session (Bills survive); **dissolution** (विघटन) ends the Lok Sabha’s life.
- 15. **Quorum** (गणपूर्ति / कोरम) is **one-tenth** (1/10) of total membership (सदन की कुल सदस्य संख्या का) (**Article 100**). A **lame-duck** session (पेंगु सत्र) is the last sitting of an outgoing Lok Sabha after a new House has been elected.
- 16. **Joint sitting** (संयुक्त बैठक) is **Article 108** (not 109). It is for **ordinary Bills** only. The **Speaker** presides. There is **never** a joint sitting for a **Money Bill**, Appropriation Bill, or **Constitution Amendment Bill**.
- 17. **Article 110** defines a Money Bill (धन विधेयक); **Article 109** is the **procedure** (प्रक्रिया). A Money Bill can originate **only in the Lok Sabha**. The Speaker’s certificate is **final**. Rajya Sabha gets **14 days** and may only **recommend** (सिफारिश).
- 18. **Financial Bill I (117(1))** has money-matter clauses plus other matter: only Lok Sabha origin; Rajya Sabha can amend; joint sitting **possible**. **Financial Bill II (117(3))** involves expenditure from the Consolidated Fund: either House; joint sitting **possible**.
- 19. **Finance Bill** is the annual tax Bill (usually certified as a Money Bill). **Appropriation Bill (Article 114)** is a Money Bill. Do not treat “Financial Bill” and “Finance Bill” as the same label.
- 20. Funds: **Consolidated Fund of India** (भारत की संचित निधि) and **Public Account** (लोक लेखा) sit under **Article 266**; the **Contingency Fund** (आकस्मिकता निधि) sits under **Article 267** (at the President’s disposal). Charged expenditure is **discussed but not voted**.
- 21. Budget is the **Annual Financial Statement** (वार्षिक वित्तीय विवरण) under **Article 112**. Lok Sabha may **reduce or refuse** a Demand for Grants — it **cannot increase** it. Guillotine (गिलोटिन - बिना चर्चा के सभी अनुदान मांगों पर मतदान) closes undiscussed demands at the time limit.
- 22. Devices: **Question Hour** (प्रश्न काल) is the first hour; **Zero Hour** (शून्य काल - Indian innovation, 1962 teaching) comes **after** Question Hour. **Adjournment motion** (स्थगन प्रस्ताव) and **no-confidence** (अविश्वास प्रस्ताव) are **Lok Sabha only**.
- 23. Cut motions (कटौती प्रस्ताव): **policy cut** (नीतिगत कटौती) reduces a demand to **₹1**; **economy cut** (मितव्ययिता कटौती) reduces by a specified amount; **token cut** (सांकेतिक कटौती) reduces by **₹100**.
- 24. **Public Accounts Committee: 22** members (**15 Lok Sabha + 7 Rajya Sabha**), conventionally chaired by an **opposition** member, and examines **CAG** reports.
- 25. **Estimates Committee: 30** members, **all from the Lok Sabha** — the largest of the three classic financial committees and with **no** Rajya Sabha members. **COPU** is also **22**.
- 26. Parliamentary privileges under **Article 105** cover freedom of speech in the House and protection from **civil** arrest in the session window (**40 days** before/after plus during). They do **not** cover ordinary **criminal** process.
- 27. Prorogation does **not** kill Bills — notices and pending motions may lapse, but Bills remain. Only dissolution ends the Lok Sabha’s unfinished ordinary business in the usual way.
- 28. Leader of Opposition rests on the **1977** statutory recognition (मान्यता) with a practical **~10%** strength convention. Party **whips** (one-/two-/three-line) are **extra-constitutional**.
- 29. Each House has its own **Secretariat** under **Article 98**. Ministers and the Attorney General may **speak in both Houses (Article 88)** but vote only in the House where they are members.
- 30. **Meira Kumar** is the first woman Speaker of the Lok Sabha. Business Advisory Committee is chaired by the **Speaker**.

Must-score facts — RS, LS, Money Bill, seats

Composition

House	Lock
Parliament	President + RS + LS (Art. 79)
Rajya Sabha max	250 (238 + 12 nominated)
RS election / term	Elected MLAs; PR-STV; 6 years ; 1/3 retire every 2 years
Nominated 12	Literature, science, art, social service
Lok Sabha max	550 (530 States + 20 UTs)
Anglo-Indian LS nomination	Ended by 104th

Special RS powers

Article	Lock
249	State List for national interest (1 year)
312	All-India Services

High-yield seats / Money Bill

Item	Lock
UP in RS	31 (highest)
Money Bill	Art. 110 ; Speaker's certificate; RS 14 days only
Joint sitting	Art. 108 (not for Money / Constitution amendment Bills)
Quorum	1/10 of total membership

Topic 8 — State Government

Consolidated — 28 Must-Score Facts

1. **Part VI** covers the State Executive: **Governor + Chief Minister + Council of Ministers + Advocate General**. The Governor is the **nominal** head; the CoM headed by the CM is the **real** executive.
2. **Article 153** creates the office of Governor. The **7th Amendment** proviso allows the **same person** to be Governor of **two or more States**.
3. **Article 155** is **appointment** by the President — **not** removal. Removal / tenure sits under **Article 156** (five-year outer term during the **pleasure of the President**; no impeachment).
4. Qualifications (**Article 157**): citizen and completed **35 years**. Oath (**Article 159**) is before the **Chief Justice of the High Court**.
5. **Article 154** vests State executive power in the Governor. **Article 162** only states the **extent** of that power — do not call 162 the vesting article.
6. **Article 163**: the Governor acts on CoM aid and advice **except** where the Constitution gives **discretion**. Dual role: constitutional head of the State and the Centre's agent.
7. Classic discretionary situations: choosing a CM in a hung House (त्रिशंकु सदन); dismissing a CoM that has lost the House; dissolving the Assembly; reserving a Bill under **Article 200**; recommending **Article 356** (अनुच्छेद 356); and certain **Article 371** special responsibilities.
8. **Bommai** fact: majority is tested on the **House floor**, not in Raj Bhavan by private claim alone.
9. **Article 161** pardoning power of the Governor does **not** cover **death sentence** or **court-martial** — those stay with the President under **Article 72**.
10. Under **Article 200** the Governor may assent, withhold assent, return a non-Money Bill, or **reserve** the Bill for the President. A Bill that cuts High Court powers **must** be reserved.
11. Under **Article 201**, if a reserved Bill is returned and the State re-passes it, the **President is still not bound** to assent — unlike the Governor's position after re-passage under Article 200.
12. **Article 213** ordinances: House(s) not in session (पेगु सत्र); same **six-week** reassembly rhythm as at the Centre. In listed cases the Governor needs the **President's instructions** before promulgating.
13. The Chief Minister is appointed by the Governor (**Article 164**) and has a communication duty under **Article 167** (parallel to the PM's Article 78).
14. State Council of Ministers: collective responsibility to the **Legislative Assembly only**. Size under the **91st Amendment**: maximum **15% of the Assembly**, with a floor of **12** ministers including the CM.
15. The **Advocate General** (महाधिवक्ता) (**Article 165**) needs High Court judge qualifications, holds office during the **pleasure of the Governor**, and may speak in both Houses but **cannot vote**.
16. Legislative Assembly: maximum **500**, minimum **60**; term **five years**. **Uttar Pradesh** (उत्तर प्रदेश) Assembly strength is **403**. Quorum (गणपूर्ति) is **10 members or one-tenth**, whichever is greater.
17. MLA disqualification under **Article 191** is decided by the **Governor on binding Election Commission** (निर्वाचन आयोग) advice (**Article 192**), except the anti-defection track handled by the Speaker.
18. Legislative Council under **Article 171**: maximum **one-third of the Assembly**, minimum **40**. Members' term is **six years** with one-third retiring; the Council is **never dissolved**, but it **can be abolished**.
19. Creation or abolition of a Council uses **Article 169**: the Assembly passes a resolution by **special majority**, then Parliament acts by **simple majority** — this is **not** an Article 368 (अनुच्छेद 368) amendment.
20. Council composition mix to fact: about **1/3** local bodies, **1/12** graduates, **1/12** teachers, **1/3** MLAs, **1/6** nominated (including co-operatives in the teaching list).
21. There is **no joint sitting** (संयुक्त बैठक) in a State legislature. Deadlocks follow **Article 197** — the **Assembly prevails**. A Bill that **originates in the Council** and is **rejected by the Assembly** dies.
22. Bicameral States now: **Andhra Pradesh, Bihar, Karnataka, Maharashtra, Telangana, and Uttar Pradesh**. UP Council strength is **100**.
23. A minister for **tribal** (आदिवासी) welfare is **compulsory** in **Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha** (**Article 164**).
24. **State PSC** members are **appointed by the Governor** but **removed by the President** (after Supreme Court enquiry) — classic appointment/removal swap trap.
25. The Governor is a **constituent part of the State legislature** (**Article 168**), just as the President is of Parliament, even though he sits in neither House.
26. The office is on the **Canada** model (appointed by the Centre), **not** the USA model of elected governors. The Constituent Assembly (संविधान सभा) dropped an elected Governor.
27. The CM need not be from the Assembly alone: a Council member can be CM, and a non-member may be CM for up to **six months** while getting elected.
28. Sarkaria (सरकारिया आयोग) conventions (outsider, detached from active politics, consult CM) are political expectations, often broken; Punchhi (पुंछी आयोग)'s fixed-tenure / impeachment-like removal idea was **not implemented**.

Must-score facts — Governor, CM, AG, legislature

Governor

Article	Lock
153	Office of Governor (same person for ≥ 2 States — 7th Amd)
155 / 156	Appointment by President / tenure-removal
157	Citizen; age 35
163	Aid & advice except constitutional discretion
161	Pardon (no court-martial / death like President's 72)
213	Ordinance

Discretion / majority

Item	Lock
Hung House / floor test	Bommai — majority on House floor
Classic discretion	Choose CM; dismiss lost CoM; reserve Bill; dissolve

State legislature / AG

Item	Lock
Advocate General	Art. 165 ; HC-judge qualification
Bicameral States	Include UP (Council exists)

Item	Lock
Money Bill in State	Similar Speaker role; Council limited time

Consolidated — 30 Must-Score Facts

- 1. India's judiciary is **integrated** (one hierarchy from district courts to the Supreme Court) and **independent** (separate from the executive and legislature). The United States uses a **dual** court system; India does not.
- 2. The Supreme Court was inaugurated on **28 January 1950**. Its first Chief Justice was **H.J. Kania**. The Federal Court under the Government of India Act, 1935 had begun on **1 October 1937**.
- 3. **Article 124** establishes the Supreme Court. It sits in **Delhi** under **Article 130**. Strength moved from **8** (CJI plus 7) to **34** judges in **2019**. Retirement age for an SC judge is **65**.
- 4. An SC judge resigns to the **President** and takes oath before the **President**. Qualification is citizen plus **5 years** as High Court judge, or **10 years** as High Court advocate, or a **distinguished jurist**. The jurist route exists for the **Supreme Court only**, not for High Courts.
- 5. Collegium is **judge-made**, not written in the Constitution. **First Judges Case (प्रथम) (1981)** gave the executive primacy. **Second Judges Case (द्वितीय न्यायाधीश) (1993)** created the Collegium (CJI plus two). **Third Judges Case (1998)** fixed **CJI plus four (चातुर्थी)** for Supreme Court appointments and **CJI plus two** for High Court appointments.
- 6. The **99th Amendment** created the **NJAC** (six members: CJI, two senior SC judges, Law Minister, two eminent persons). The Supreme Court struck it down in **2015**. Any **two** NJAC members could have vetoed a name.
- 7. Removal of an SC judge needs a motion by **100 Lok Sabha (लोकसभा)** or **50 Rajya Sabha (राज्यसभा)** members, a three-member inquiry under the **1968 Act**, then a **special majority in both Houses in the same session (पंगु सत्र)**. No judge has ever been fully removed; **V. Ramaswami** (1993) failed in the Lok Sabha and **Soumitra Sen** (2011) resigned after the Rajya Sabha passed the motion.
- 8. **Article 129** makes the Supreme Court a **court of record**. **Article 141** makes its law binding on all courts. **Article 142** allows complete justice and is available to the **Supreme Court only**, not High Courts. A Constitution Bench under **145(3)** needs at least **five** judges.
- 9. **Article 131** is the Supreme Court's **exclusive original** jurisdiction in federal disputes between the Union and States or among States. It does **not** cover Fundamental Rights (मौलिक अधिकार), private parties, or river-water disputes where Parliament has barred the Court.
- 10. Disputes over **President or Vice-President elections** go to the Supreme Court under **Article 71**, not Article 131. River-water disputes fall under **Article 262**; the **Inter-State River Water Disputes Act, 1956** bars Supreme Court jurisdiction under Article 131.
- 11. **Article 32** (अनुच्छेद 32) is a Fundamental Right and gives the Supreme Court writ jurisdiction for **Fundamental Rights only**. **Article 226** is **wider** — High Courts can issue writs for Fundamental Rights **and** any other legal right.
- 12. **Article 136** Special Leave Petition is the Supreme Court's widest appellate power, but it does **not** apply to judgments of **armed-forces courts**. **Article 137** is review. **Article 143** advisory opinions are **not binding**; under **143(1)** the Court **may** decline, and under **143(2)** it **shall** report on pre-Constitution treaty questions.
- 13. The **42nd Amendment** had tried to cut High Court power over Central laws (**32A / 131A / 226A**). The **43rd Amendment** repealed those bars. High Courts **can** strike down Central laws.
- 14. Every State has a High Court under **Article 214**. A **common** High Court for two or more States needs only an **ordinary law** under **Article 231**, not a special amendment under Article 368 (अनुच्छेद 368). There are **25** High Courts. High Court judges retire at **62** (raised from 60 by the **15th Amendment**).
- 15. A High Court judge takes oath before the **Governor** but resigns to the **President**. Qualification is **10 years** judicial office or **10 years** as High Court advocate — **no** distinguished-jurist route. Salary is charged on the **State Consolidated Fund**; **pension** is charged on the Consolidated Fund of **India**.
- 16. Transfer of High Court judges is under **Article 222** and does **not** need the judge's consent. An **additional** High Court judge under **Article 224** sits for at most **two years** and must leave by age **62**. After retirement a permanent HC judge cannot practise in the **same** High Court (**Article 220**).
- 17. The three **Chartered** High Courts of **1862** are **Calcutta, Bombay, and Madras**. **Allahabad** (इलाहाबाद) High Court began on **17 March 1866** (first at Agra, then Allahabad from 1869). The **Lucknow Bench** (1948) is a **bench** of Allahabad, not a separate High Court. Allahabad has the largest sanctioned strength.
- 18. Judicial independence rests on fixed tenure, charged salaries, bar on discussion of conduct in legislatures (**121 / 211**), no practice after SC retirement (**124(7)**), contempt powers (**129 / 215**), separation under **Article 50**, and control of court staff (**146 / 229**).
- 19. PIL is **not** written in the Constitution; it grew through **Articles 32 and 226**. The key fact for the PIL CJI is **P.N. Bhagwati** (with Krishna (कृष्णा) Iyer). Landmark locus expansion came in **S.P. Gupta (रूपी)** (1981).
- 20. Judicial review draws on **Articles 13, 32, 131, 136, 226, and 227**. Basic structure review survives **Kesavananda** (केशवानंद भारती 1973), **Minerva Mills**, and **L. Chandra Kumar** (एल चंद्र). **Review** is **Article 137**; a **curative** petition (**Rupa Hurra**, 2002) comes only **after** review fails.
- 21. District Judges are appointed by the **Governor in consultation with the High Court (Article 233)**. **Control** over the subordinate judiciary rests with the High Court (**Article 235**). Other than District Judges, appointments follow **Article 234** (Governor + High Court + State PSC).
- 22. Tribunals sit in **Part XIVA (Articles 323A–323B)**, added by the **42nd Amendment** — **not** Part XI. **323A** (administrative tribunals) is **Parliament only**. **323B** (other tribunals) may be used by **Parliament or a State**.
- 23. CAT started on **1 November 1985** at Delhi. **Sampath Kumar** (सम्पथ) (1987) treated tribunals as substitutes for High Courts. **L. Chandra Kumar** (1997) held that tribunals only **supplement** High Courts; **Articles 226 and 227** remain part of the basic structure.
- 24. NALSA rests on the **Legal Services Authorities Act, 1987** (in force **9 November 1995**). A **Lok Adalat** award equals a civil-court **decree** and has **no appeal**. A regular Lok Adalat works only by **compromise**; a **Permanent Lok Adalat** can decide merits in public-utility pre-litigation cases (cap about **₹1 crore**).
- 25. **Gram Nyayalayas** (2008 Act; in force **2 October 2009**) are separate courts, not Gram Panchayat courts, and are **not bound** by the Evidence Act. **Fast Track Courts** are ordinary sessions courts on a fast track — they are **not** ADR. An All-India Judicial Service under **Article 312** is enabled but **not yet created** and cannot go below District Judge rank.
- 26. Contempt of Court is inherent under **Articles 129 and 215**; the **1971 Act** only regulates it. Criminal contempt by a private person needs **Attorney General** (महान्यायवादी) consent under section **15**, but **suo motu** action does not. Truth in public interest became a defence by the **2006** amendment. Limitation is generally **one year**.
- 27. **Fathima Beevi** (1989) was the first woman Supreme Court judge; she later became Governor of **Tamil Nadu (तामिलु)**, not Kerala. **Anna Chandy** was the first woman High Court judge. **Leila Seth** (लीला सेठ) was the first woman High Court Chief Justice. **Indu Malhotra** (2018) was the first woman SC judge elevated directly from the **Bar**.
- 28. An **ad hoc** Supreme Court judge under **Article 127** is a **sitting** (बैठक) High Court judge. A **retired** judge may sit under **Article 128**. Do not swap these two articles.
- 29. Election petitions for MPs and MLAs go to the **High Court** under the Representation of the People Act and **Article 329**, not straight to the Supreme Court. President and Vice-President election disputes stay under **Article 71**.
- 30. The USA Supreme Court does **not** give advisory opinions. India's Supreme Court **does**, under **Article 143**, but those opinions are **not binding** on the President.

Must-score facts — SC, HC, collegium, writs

Supreme Court

Item	Lock
Inaugurated	28 Jan 1950; first CJI H.J. Kania

Item	Lock
Art. 124 / 130	Establishment / seat Delhi
Court of record / binding law	129 / 141
Resignation / oath	To / before President
Removal	100 LS or 50 RS members → inquiry → special majority both Houses

Collegium / NJAC

Item	Lock
Collegium	Judge-made (not in text)
First Judges (1981)	Executive primacy
NJAC	99th Amd — struck down (<i>Fourth Judges</i>)

High Court / writs

Item	Lock
HC for each State	Art. 214 ; age 62 (Art. 217)
226 vs 227	Writs (wider than 32) / superintendence
Common HC	Art. 231
Integrated + independent	One hierarchy; security of tenure / salaries

Topic 10 — Local Government

Consolidated — 34 Must-Score Facts

1. The Constitutional Skeleton

Feature	Panchayati Raj (Rural)	Urban Local Bodies
Amendment	73rd Act, 1992 (Force: 24 Apr 1993)	74th Act, 1992 (Force: 1 June 1993 (1 जून))
Part & Articles	Part IX (भाग IX) (Articles 243 to 243-O)	Part IXA (नगरपालिका) (Articles 243-P to 243-ZG)
Schedule	11th Schedule (11वीं) (contains 29 subjects)	12th Schedule (12वीं) (contains 18 subjects)
Subject List	Entry 5 of State List (राज्य सूची)	Entry 5 of State List

2. Evolution & Committees

Committee / Event	Key Fact / Recommendation
Lord Ripon (रिपन) (1882)	Magna Carta of local self-government; "Father of local self-govt".
Hobhouse (1907)	Royal Commission on Decentralization.
Community Dev. Prog (1952)	Failure of CDP (सीडीपी) & NES (एनईएस) (1953) led to BR Mehta Committee.
Balwant Rai Mehta (1957)	Recommended 3-tier system, democratic decentralization.
Santhanam (1963)	Focused on Panchayati Raj Finances.
Ashok Mehta (1977)	2-tier system, district as first point, official party participation.
Dantwala (1978)	Focused on Block-level planning.
G.V.K. Rao (1985)	District planning; warned of "grass without roots".
L.M. Singhvi (1986)	Constitutional status push, Gram Sabha importance, Nyaya (न्याय) Panchayats.
Thungon (1988)	Constitutional status, 5-year term, State Finance Commission.
Gadgil (1988)	Drafted the skeleton which became the basis of the 73rd AM Act.
64th Bill (1989)	Rajiv Gandhi (गांधी) govt bill passed Lok Sabha (लोकसभा) but failed in Rajya Sabha (राज्यसभा).

3. Must-Know Structural (संरचनात्मक) Facts

- Gram Sabha (243A): Comprises registered voters of the village, not all residents. Powers are fixed by State law, not Central notification.
- Three Tiers (243B): Village, intermediate, and district. Intermediate tier is optional if State population (जनसंख्या) is ≤ 20 lakh.
- Election (243C / 243R): All seats at all levels are filled by direct election. The chairperson's election mode is decided by State law (usually indirect, but UP Pradhan is direct).
- Reservation (243D / 243T): SC/ST reserved in proportion to population. Women get at least 1/3 (floor) of total seats and chairpersons. OBC (अन्य पिछड़ा वर्ग) reservation is optional. UP gives 50% to women by State law.
- Term & Age (243E, 243F / 243U, 243V): 5-year term. Early dissolution (विघटन) requires elections within 6 months, remaining term only. Minimum age is 21 years (not 25).
- State Finance Commission (243-I / 243Y): Constituted by Governor every 5 years to recommend (सिफारिश) tax sharing and grants.
- State Election Commission (243K / 243ZA): Appointed by Governor. Runs PRI and ULB polls (not ECI). Removed like a High Court judge.
- Article 243O / 243ZG: Bars courts from interfering in local electoral matters (similar to Art 329 for Parliament/Assemblies).
- DPC (243ZD): District Planning Committee consolidates rural & urban plans. At least 4/5 members elected.
- MPC (243ZE): Metropolitan Planning Committee for pop ≥ 10 lakh. At least 2/3 members elected.
- Exemptions (243M): Part IX does not apply to Nagaland, Meghalaya (मेघालय), Mizoram, hill areas of Manipur, and Darjeeling Gorkha Hill Council.
- PESA Act, 1996: Extends Part IX to Fifth Schedule (5वीं अनुसूची) areas (10 States) but NOT to Sixth Schedule (6वीं अनुसूची).
- Cooperatives (97th Amd, 2011): Part IXB (243ZH-243ZT). Art 43B DPSP (राज्य के नीति निर्देशक तत्व) and Art 19(1)(c) FR. In 2021, SC struck down its application to State cooperatives.
- Cantonment Board: Set up under Cantonments Act (2006). Falls under Ministry of Defence. Station Commander is ex-officio President (not 74th Amd ULB).

4. Urban Local Bodies (Part IXA) — decidable spine

- Three types (Article 243Q): Nagar Panchayat (transitional area), Municipal Council (smaller urban area), and Municipal Corporation (larger urban area). The Governor classifies; the Constitution does not fix one all-India population cut-off.
- Mayor vs Municipal Commissioner: The Mayor is the political / ceremonial head; the Municipal Commissioner (usually IAS, State-appointed) is the executive. India follows the Commissioner system, not a US strong-mayor model.
- Ward Committee (Article 243S): Mandatory in a municipality with population ≥ 3 lakh. It is a committee of councillors — not an urban Gram Sabha (Part IXA has no urban Gram Sabha).
- First municipal corporation: Madras, 1688; Bombay and Calcutta followed in 1726.

Topic 11 — Centre–State Relations

Consolidated — 30 Must-Score Facts

1. Centre–State rules sit mainly in **Part XI** (legislative and administrative, **245–263**), **Part XII** (finance, **264–293** slice), and **Part XIII** (trade, **301–307**). The **7th Schedule** carries the Union, State, and Concurrent Lists.
2. Under **Article 246**, Union List prevails over Concurrent, and Concurrent prevails over State List. Residuary powers, including residuary taxation, belong to the **Union** under **Article 248** and Union List **Entry 97** — unlike the US model where residuary powers lie with the states.
3. Parliament can legislate on a State List subject under **249** (Rajya Sabha (राज्यसभा) resolution for national interest, lasting **one year**), **250** (during a National Emergency (राष्ट्रीय आपात)), **252** (two or more States request), **253** (treaty or international obligation), and during **President's Rule** under **356**.
4. The Rajya Sabha special majority for **Articles 249 and 312** is **two-thirds (ते-भाग) of members present and voting**, **not** two-thirds of total membership (सदन की कुल सदस्य संख्या का).
5. **Article 252** needs resolutions from **two or more States**; other States may adopt later; only **Parliament** can amend or repeal that law. **Article 253** needs **no** State request — treaties and international conferences are enough.
6. On the Concurrent List (समवर्ती सूची), **Article 254(1)** makes the Union law prevail in a clash. Under **254(2)**, a State law reserved for the President and assented to can prevail in that State **until** Parliament legislates again on the same matter.
7. Key doctrines are **pith and substance** (incidental encroachment can be valid), **colourable legislation** (you cannot do indirectly what you cannot do directly), **repugnancy**, **harmonious construction**, **territorial nexus**, and **occupied field**.
8. **Articles 256 and 257** bind States to comply with Union laws and directions and not to impede Union railways and communications. Ignoring Union directions under **Article 365** is a gateway to **President's Rule (356)**.
9. **Article 258** lets the Union entrust functions to a State (usually with consent). **Article 258A** (7th Amendment) lets a State entrust functions to the Union. **Article 261** is full faith and credit for public acts, records, and judicial proceedings across India.
10. All-India Services under **Article 312** need a Rajya Sabha resolution by **two-thirds present and voting**, then a Parliament law. The three AIS are **IAS, IPS, and IFoS** (IFoS from **1966**). **Article 312A** (28th Amendment) deals with ex-ICS officers.
11. **Article 265** bars tax without authority of law. **Article 271** surcharge on certain Union taxes belongs to the **Union only** and is not shared. **Article 268** stamp duties are levied by the Union but collected by the States.
12. The **Finance Commission (Article 280)** is appointed by the **President** every five years: a Chair and **four** (चातुर्दश) other members. It reports to the **President**, not to NITI Aayog (नीति आयोग). Qualifications are fixed by Parliament through the **1951 Act**.
13. The first Finance Commission was chaired by **K.C. Neogy**. The **14th** Finance Commission set the States' vertical share of the divisible pool at **42%**; the **15th** set it at **41%**. The **16th** is chaired by **Arvind Panagariya**.
14. **Article 275** grants recommended by the Finance Commission are **charged** on the Consolidated Fund of India (भारत की संचित निधि) (with a tribal (आदिवासी) proviso). **Article 282** allows **discretionary** grants by the Union **or** a State for any public purpose — do not swap 275 and 282.
15. A State cannot tax Union property (**285**). The Union cannot tax State property except as allowed (**289**). A State that is indebted to the Centre needs Union consent to borrow further (**293**).
16. GST arrived through the **101st Amendment (2016)** and went live on **1 July 2017**. It is a dual tax (CGST + SGST / IGST) under **Article 246A**, **not** residuary Entry 97. **Liquor** stays out; **five petroleum** items stay out until the Council decides otherwise.
17. The **GST Council (279A)** is chaired by the **Union Finance Minister**. Centre has **one-third** weight and States **two-thirds** (ते-भाग); decisions need **three-fourths** weighted majority; quorum (गणपूर्ति) is **half**. Recommendations are not strictly binding (*Mohit Minerals*, 2022).
18. **Article 301** guarantees freedom of trade, commerce, and intercourse throughout India; it is **not** a Fundamental Right under Article 19. Parliament may restrict under **302**. A State restriction under **304(b)** needs **previous Presidential sanction**.
19. Inter-State migration and inter-State quarantine sit in **Union List Entry 81**, not the State List.
20. The **Inter-State Council (Article 263)** is constitutional: the President **may** establish it; the **1990** order did so on **Sarkaria** advice; the **Prime Minister** chairs; it is recommendatory. Do not credit Punchhi for creating it.
21. **Zonal Councils** are statutory under the **States Reorganisation Act, 1956**. There are **five** zones. The **Union Home Minister** chairs them. Uttar Pradesh (उत्तर प्रदेश) sits in the **Central** Zonal Council (with Uttarakhand (उत्तराखंड), Madhya Pradesh, and Chhattisgarh), not the Northern zone.
22. The **North Eastern Council** is under a **1971 Act**. It is **not** a sixth Zonal Council. The **Prime Minister** chairs it (from 2002).
23. Water is **State List Entry 17**, subject to **Union List Entry 56** for inter-State rivers. **Article 262** lets Parliament bar courts; the **1956 Act** did bar **Article 131**. The 2019 tribunal Bill **lapsed** and is not in force.
24. **Article 131** is the Supreme Court's exclusive original jurisdiction for Union–State or inter-State disputes involving a **legal right**. Private parties are out. River water is out where barred. Faith-and-credit is **261**, not 131.
25. **Rajamannar (1969, Tamil Nadu (तामिल))** wanted residuary powers with States, abolition of All-India Services, and repeal of **356**. **Sarkaria (1983–88)** backed a strong Centre, keeping AIS and 356, and creating the Inter-State Council.
26. **Punchhi (2007–10)** came after Sarkaria. It favoured localising **356**, strengthening the Inter-State Council, and time-capping bills under **Article 201**.
27. NITI Aayog (**2015**) replaced the **Planning Commission** (योजना आयोग). It did **not** replace the Finance Commission under **Article 280**. NITI is the SDG nodal body; it does not allocate the old Plan funds and does not report as if it were the FC.
28. The **42nd (42वाँ) Amendment** moved **five** subjects from the State List to the Concurrent List.
29. Profession tax under **Article 276** has a constitutional ceiling (figure **₹2,500** after the **60th Amendment**). Jute export-duty grants under **273** go to Assam, Bihar, Odisha, and West Bengal.
30. Border and inter-State settlements are often political (Union Home Minister plus Chief Ministers), not automatic **Article 131** cases. Read whether a **legal right** is pleaded before jumping to the Supreme Court's original jurisdiction.

Must-score facts — Lists, 249–263, Finance

Legislative frame

Item	Lock
Parts	XI (245–263) + XII (finance)
Art. 246	Union > Concurrent > State; residuary with Centre (248)
249	RS resolution → Parliament on State List (national interest)
252	Two or more States request; only Parliament legislates
254	Union prevails on Concurrent; State law can prevail with assent under 254(2) until repugnant Union law

Doctrines

Doctrine	Lock
Pith and substance	Incidental encroachment can be valid
Colourable legislation	You cannot do indirectly what you cannot do directly
Repugnancy	Concurrent clash → Union wins (with 254(2) nuance)

Administrative / bodies

Item	Lock
256 / 257	States comply with Union laws / directions
263	Inter-State Council
280	Finance Commission
GST Council	Cooperative federalism example

Topic 12 — Constitutional Bodies

Consolidated — 28 Must-Score Facts

1. A **constitutional body** is created by the Constitution itself. Pay is often **charged** on the Consolidated Fund, and removal is often on the lines of a **Supreme Court judge**.
2. The **Election Commission (Article 324)** superintends elections to Parliament, State legislatures, the President, and the Vice-President. It does **not** elect the Speaker and does **not** run Panchayat or municipality polls (those belong to the **State Election Commission**).
3. Disputes over **President or Vice-President elections** go to the Supreme Court under **Article 71**, not to the Election Commission. **Article 325** creates one general electoral roll. **Article 326** is adult suffrage.
4. The Election Commission began as a **single-member** body in 1950, became multi-member in **1989**, briefly single again in **1990**, and has been **three-member** from **1993**. The Chief Election Commissioner is removed like a Supreme Court judge; other Election Commissioners are removed only on the CEC's recommendation.
5. An Election Commissioner's term is **six years or age 65**, whichever is earlier. The first CEC was **Sukumar Sen**. The first woman CEC was **V.S. Ramadevi (1990)**. The **2023 Act** places selection with the Prime Minister, Leader of Opposition in the Lok Sabha (लोकसभा), and a Union Cabinet Minister — the Chief Justice is **not** on that panel.
6. The **UPSC (Articles 315–323)** is appointed by the **President**. Term is **six years or age 65**. Roughly **half** the members must have at least **ten years** of government service. Removal follows the Supreme Court judge path after a Supreme Court inquiry (**317**).
7. UPSC advice is **not binding**. UPSC functions come from **four** (चतुर्वर्ग) sources: the Constitution, Parliament, rules, and conventions. After leaving office, a UPSC Chairperson cannot take further Union or State office (**319**).
8. A **State PSC** member is appointed by the **Governor** but removed by the **President**, not the Governor. Extra functions for a State PSC need a law of the **State Legislature (321)**. A **Joint PSC** for two or more States needs a **Parliament** law; the President appoints.
9. The **Finance Commission (280)** is a Chair plus **four** members, appointed by the President every five years, reporting to the **President**. It is not NITI Aayog (नीति आयोग). The first Chair was **K.C. Neogy**; the 16th is chaired by **Arvind Panagariya**. Vertical shares moved from **42%** (14th) to **41%** (15th).
10. The **CAG (Articles 148–151)** is appointed by the President for **six years or age 65**, removed like a Supreme Court judge, and barred from further office under the Government of India. Form of accounts follows **150**; reports go under **151**.
11. India's CAG is mainly an **Auditor after spending**, not a UK-style Comptroller who controls issue of money beforehand. The **Public Accounts Committee** examines CAG reports; the Estimates (आकलन समिति) Committee does not. The first CAG of independent India was **V. Narahari Rao**.
12. The **Attorney General (Article 76)** must be qualified to be a Supreme Court judge and holds office during the **pleasure of the President** — there is no impeachment route. The AG may speak in both Houses but has **no vote**. Private practice is allowed except against the Government of India.
13. Salary of the Attorney General is **not charged** on the Consolidated Fund. The Solicitor General and Additional Solicitors General are **not** constitutional offices. Do not confuse the AG with the CAG or with the Advocate General.
14. The **Advocate General (Article 165)** must be qualified to be a High Court judge and holds office during the **pleasure of the Governor**. Article **165** is not an Election Commission article.
15. The **GST Council (279A)** is a constitutional body under the **101st Amendment**. The Union Finance Minister chairs it. Voting (गणपूर्ति) weight is Centre **one-third** and States **two-thirds** (ते-भाग), with **three-fourths** weighted majority and quorum (गणपूर्ति) of **half**.
16. **Articles 350, 350A, and 350B** came through the **7th Amendment (1956)**, not the 9th. **350** allows representation in any language; **350A** (अनु. 350A) protects mother-tongue instruction at the primary stage; **350B** creates **one** Special Officer for Linguistic Minorities for the whole of India.
17. **Article 338** is the National Commission for Scheduled Castes (with list power under **341**). **338A** is the National Commission for Scheduled Tribes (**342**). **338B** is the National Commission for Backward Classes (**342A**), given constitutional status by the **102nd Amendment**.
18. **Article 339** allows an ad hoc commission on Scheduled Areas and Scheduled Tribes administration — it is **not** the standing NCST. **Article 340** is the inquiry article behind Kalelkar/Mandal-type exercises — it is **not** the standing NCBC under **338B**.
19. The **105th Amendment (2021)** restored States' power to identify their own Socially and Educationally Backward Classes after the 102nd had centralised the list logic. Keep **102nd** and **105th** as a confused pair.
20. The Official Language Commission under **Article 344** was to be set up at five years and then ten years (Kher Commission, 1955). English was originally to continue for **fifteen years** under **343**; the Official Languages Acts of **1963/1967** continue English without a hard stop.
21. **NITI Aayog** (नीति आयोग) is an **executive** body (Cabinet Resolution). **NHRC** (राष्ट्रीय मानव अधिकार आयोग) is **statutory**. **NCSC** (राष्ट्रीय अनुसूचित जाति आयोग) is **constitutional**. Sorting bodies by creation source is a standing prelims skill.
22. Representation of the People Acts split the work: **RPA 1950** covers rolls, seats, and delimitation machinery; **RPA 1951** covers conduct, nominations, corrupt practices, and election petitions. ECI opinions under certain RPA sections bind the President/Governor on disqualification questions.
23. The Election Commission does **not** decide Speaker elections inside the House. Interior House offices follow parliamentary procedure (प्रक्रिया); external electoral superintendence stays with **324**.
24. CAG reports are examined by the **Public Accounts Committee**, not by inventing a "CAG committee." Estimates Committee works on estimates, not CAG audit (कैग लेखापरीक्षा) paras.
25. UPSC and SPSC members' independence is protected by charged expenditure (भारित) and difficult removal. Still, their **advice** to the government is recommendatory, not mandatory.
26. The Special Officer for Linguistic Minorities (**350B**) is **one** officer for India. Do not confuse that office with the **National Commission for Minorities**, which is statutory.
27. Joint State PSCs exist only when **two or more States** ask through a **Parliamentary** law. A single State cannot invent a JPSC by State Act alone.
28. Constitutional bodies with "like SC judge" removal include the **CEC**, **UPSC** (संघ लोक सेवा आयोग) members (after SC inquiry), and the **CAG**. The **Attorney General** (महान्यायवादी) is the classic pleasure-doctrine contrast — easy removal, no impeachment.

Must-score facts — EC, UPSC, CAG, FC

What is a constitutional body?

Created by the **Constitution**; often charged expenditure; removal harder than ordinary civil servants.

Body ↔ Article / tag

Body	Lock
Election Commission	Art. 324 ; multi-member; CEC + ECs
EC term	6 years or age 65
First CEC	Sukumar Sen
President/VP election dispute	SC under Art. 71 (not EC)
UPSC	Arts. 315–323 ; President appoints; advice not binding

Body	Lock
SPSC	Appointed by Governor; removed by President
CAG	Arts. 148–151 ; 6 years / age 65
Finance Commission	Art. 280
National Commission for SCs/STs/BCs	Constitutional (related Articles 338 etc.)

Topic 13 — Statutory & Non-Constitutional Bodies

Consolidated — 30 Must-Score Facts

1. A **statutory body** is created by an **Act of Parliament or a State legislature**. It is not created by the Constitution (CAT is the special case that rides on **Article 323A**).
2. The **Lokpal and Lokayuktas Act, 2013** creates a Chairperson and up to **eight** members, with **half** judicial and **half** from SC/ST/OBC (अन्य पिछड़ा वर्ग)/minorities/women. Term is **five years or age 70**. Removal is like a Supreme Court judge.
3. Lokpal's Selection Committee is the **Prime Minister, Lok Sabha (लोकसभा) Speaker, Leader of Opposition in the Lok Sabha**, the **CJI or nominee**, and an **eminent jurist**. The **Chairman of the Rajya Sabha** is **not** on that panel. Search Committee and Selection Committee are different bodies.
4. The first Lokpal was **Justice P.C. Ghose (2019)**. Complaints ordinarily cover acts within about **seven years** and follow a prescribed form. **Lokayukta (लोकायुक्त)** is a **State Act** office; **Maharashtra (1971)** was first; Uttar Pradesh (उत्तर प्रदेश) has a 1975 Act with an Up-Lokayukta.
5. The **Central Vigilance Commission** began from the Santhanam idea (**1962**), became executive in **1964**, and gained statutory status under the **CVC Act, 2003** after Vineet Narain. It has **no constitutional article**. Composition is Chairperson plus **two** Vigilance Commissioners.
6. CVC members are selected by the **Prime Minister, Home Minister, and Leader of Opposition**, for **four (चातुर्यम) years or age 65**. The CVC has superintendence over the CBI in Prevention of Corruption cases, but the CVC itself is **not** a police force. The CBI Director panel is **PM + LoP (LS) + CJI**, not the CVC.
7. The **RTI Act, 2005** (in force **12 October 2005**) creates the CIC and SICs. Normal reply time is **30 days (48 hours)** where life or liberty is at stake. PIO penalty can go up to **₹25,000**. The 2019 amendment lets the Centre prescribe term and salary.
8. CIC selection involves the **Prime Minister, Leader of Opposition, and a Union Cabinet Minister (कैबिनेट मंत्री)**. The RTI movement's grassroots fact is often traced to **MKSS**. Section **8** lists exemptions; section **4** demands suo motu disclosure.
9. The **NHRC (राष्ट्रीय मानव अधिकार आयोग)** is under the **Protection of Human Rights Act, 1993**. It is **statutory**, not Article **338**. Its recommendations are recommendatory. Complaints are ordinarily within **one year**. After 2019, the Chair may be a retired **CJI or Supreme Court judge**; term is **three years or age 70**.
10. An **SHRC** Chair is typically a retired High Court Chief Justice; after 2019 a retired High Court judge may also qualify. Do not treat NHRC/SHRC as constitutional commissions under 338–338B.
11. The **National Green Tribunal (2010)** covers scheduled environment (पर्यावरण) Acts; the **Wildlife Protection (वन्यजीव सुरक्षा) Act** is **not** on that schedule. The Chair is an SC or HC judge; the Principal Bench is in **Delhi**; appeal lies to the Supreme Court; disposal aim is about **six months**.
12. NGT decides with the principles of **sustainable development, polluter pays**, and the **precautionary** principle. It is created by the NGT Act, not by Article 323A.
13. The **National Commission for Women Act** is **1990**. The **National Commission for Minorities Act** is **1992** (Jains notified in **2014**). NCM is **not** the Special Officer under **350B** (अनु. 350B).
14. **NCPCR (2005)** deals with children below **18** and works with State Commissions. The **National Commission for Safai Karamcharis** is statutory (**1993** lineage; PEMSR **2013**) and is **not** Article 338.
15. **NDMA** sits under the **Disaster Management Act, 2005**. The **Prime Minister** chairs NDMA; the **Chief Minister** chairs SDMA; the **District Magistrate** chairs DDMA. The National Executive Committee is headed by the **Cabinet Secretary**.
16. The **Competition Commission of India** works under the Competition Act, **2002** (operations from **2009**). It replaced the old MRTP regime. Appeals go to **NCLAT**. Focus sections include anti-competitive agreements, abuse of dominance, and combinations.
17. **SEBI** began as an executive body in **1988** and became statutory under the **SEBI Act, 1992**. Headquarters is in **Mumbai**. Appeals go to the **Securities Appellate Tribunal**.
18. The **RBI** follows the Hilton Young idea (**1926**), the RBI Act **1934**, and started on **1 April 1935**; it was nationalised in **1949**. Currency notes are an RBI function, but **₹1 notes and coins (रूपक)** are Government of India. The **Monetary Policy Committee** dates to **2016**.
19. The **National Housing Bank Act** is **1987**. From **2019**, the **RBI** regulates housing finance companies while the Government owns NHB — a classic ownership-versus-regulation split.
20. **CAT** was created by the Administrative Tribunals Act, **1985**, with Principal Bench at Delhi, under **Article 323A**. High Court writ power under **226** survives after *L. Chandra Kumar* (एल चंद्र). Armed forces use the **Armed Forces Tribunal (2007)**, not CAT.
21. **NITI Aayog (नीति आयोग)** began by Cabinet Resolution on **1 January 2015**. It is **neither constitutional nor statutory**. The **Prime Minister** is Chair; the first Vice-Chair was **Arvind Panagariya**. It is a think-tank and does **not** replace the Finance Commission (वित्त आयोग).
22. NITI's Governing Council includes Chief Ministers and Lieutenant Governors. It is the **SDG nodal** body. It runs AIM, DMEQ, and Aspirational Districts. It does **not** allocate the old Planning Commission Plan funds.
23. The old **Planning Commission (योजना आयोग)** began on **15 March 1950**. The **National Development Council** began on **6 August 1952** (PM plus Chief Ministers) and approved Five-Year Plans. NITI replaced the Planning Commission, not the NDC's entire political history (इतिहास) overnight, but Plan-era machinery changed.
24. The **CBI** was set up by an MHA resolution on **1 April 1963**. Its investigation power rides on the **Delhi Special Police Establishment Act, 1946**. It is **not** statutory in the same way as the CVC Act body. It needs **State consent** under section **6** unless a High Court or the Supreme Court orders otherwise.
25. CBI is India's National Central Bureau for **Interpol** and runs **BHARATPOL**. The Academy is at **Ghaziabad**. Administrative control links include **DoPT**.
26. The **NIA** was created by the **NIA Act, 2008** after 26/11. It investigates scheduled offences and does **not** need State consent in the CBI sense. The **2019** amendment widened its reach.
27. The **Intelligence Bureau (1887)** is the oldest, for **internal** intelligence under the Home Ministry. **RAW (21 September 1968)**, founded under **R.N. Kao**, handles **external** intelligence under the Cabinet Secretariat. The **Enforcement Directorate (1956)** under the Department of Revenue works FEMA and PMLA.
28. The **National Security Council (1998)** is chaired by the **Prime Minister**. The first National Security Adviser was **Brajesh Mishra**. Related structures include SPG, NSAB, and NSCS.
29. **Zonal Councils** are **statutory** under the **States Reorganisation Act, 1956** (five zones). The **Union Home Minister** is the common chair. Uttar Pradesh sits in the **Central** Zonal Council (HQ Prayagraj). The **North Eastern Council** is a separate **1971** Act body — not a sixth Zonal Council.
30. The **Law Commission of India** is an **executive / extra-constitutional** advisory body (usually a **three-year** term under the Ministry of Law and Justice). The first Law Commission of independent India (**1955**) was chaired by **M.C. Setalvad**. It is **not** a constitutional body and **not** created by a standing statute.

Must-score facts — Lokpal, CVC, RTI, NITI

Constitutional vs statutory vs executive

Type	Lock
Constitutional	Created by Constitution
Statutory	Created by Act
Executive / extra-constitutional	Created by resolution / order (e.g. NITI Aayog)

Body ↔ tag

Body	Lock
Lokpal	Act 2013 ; Chair + ≤8; half judicial; first P.C. Ghose (2019)
Lokpal selection	PM, LS Speaker, LoP LS, CJI (or nominee), eminent jurist
CVC	Santhanam idea; statutory 2003 ; 4 years / age 65
CVC selection	PM, HM, LoP
CIC / SIC	RTI Act 2005 (in force 12 Oct 2005); reply 30 days
NITI Aayog	1 Jan 2015 ; replaced Planning Commission; not constitutional
NHRC	PHRA 1993 ; 1-year complaint limit

Topic 14 — Elections

Consolidated — 28 Must-Score Facts

- 1. **Article 324** gives the Election Commission superintendence over elections to Parliament, State legislatures, the President, and the Vice-President. It does **not** cover the Speaker's election inside the House or Panchayat/ULB polls (those are **SEC**).
- 2. **Article 327** lets Parliament make election law; **Article 328** lets States legislate subject to Parliament. **RPA 1950** covers rolls, seats, and delimitation machinery; **RPA 1951** covers conduct, nominations, corrupt practices, and petitions.
- 3. Bye-elections are ordinarily held within **six months**, but may be skipped if the remainder of the term is less than **one year**.
- 4. **Article 326** is universal adult suffrage. The voting age moved from **21 to 18** by the **61st Amendment (1988)**, in force from **1989**. **Article 325** creates one general electoral roll and forbids communal rolls.
- 5. A person in prison under a sentence of imprisonment generally **cannot vote** under RPA section **62(5)**. A person in **preventive detention** may still be able to vote — do not collapse the two.
- 6. **First Past the Post** elects the Lok Sabha (लोकसभा) and Vidhan Sabhas: most votes win, not proportional representation. Double-member constituencies ended in **1961**. Lok Sabha elected strength is **543**; Anglo-Indian nomination under **331** ended with the **104th Amendment**.
- 7. **Proportional Representation by Single Transferable Vote** is used for the **President, Vice-President, Rajya Sabha (राज्यसभा), and Legislative Councils**. Rajya Sabha party voting uses an **open ballot (2003)**; President and Vice-President use a **secret** ballot.
- 8. An MLA's vote value for the Presidential election uses the **1971** population (जनसंख्या) formula: State population ÷ (elected MLAs × **1000**). Keep 1971 as the freeze year in that formula.
- 9. The **Model Code of Conduct** is an Election Commission **convention**, not a statute. It starts from announcement of the schedule. The **48-hour silence** period is both MCC practice and statutory under RPA section **126**.
- 10. **National Voters' Day** is **25 January** — the day the Election Commission was founded in **1950**. The first National Voters' Day was celebrated in **2011**.
- 11. The **Delimitation Commission** is a **statutory** body separate from the Election Commission, even if the CEC sits on it. Major Delimitation Acts include **1952, 1962, 1972, and 2002**.
- 12. The **42nd (42वाँ) Amendment** froze Lok Sabha seat allocation on the **1971** census until **2000**. The **84th Amendment** extended the freeze until the first census after **2026**. The **87th Amendment** allowed redrawing on the **2001** census **without** changing State-wise Lok Sabha totals.
- 13. A delimitation order has the force of law, and **Article 329** bars courts from questioning delimitation. Election petitions for House seats also live under the **329** bar-and-petition scheme.
- 14. **Article 330** reserves Lok Sabha seats for SC/ST; **332** does the same for Assemblies. All voters in that constituency vote; only SC/ST candidates contest the reserved seat.
- 15. The **104th Amendment (2019)** extended SC/ST reservation to **25 January 2030** and **ended** Anglo-Indian nomination in the Lok Sabha and Assemblies. The **106th Amendment (2023)** reserves **one-third** of seats for women in the Lok Sabha and Assemblies, but only **after** the next delimitation.
- 16. Uttar Pradesh (उत्तर प्रदेश) has the largest Lok Sabha contingent (**80** seats) and an Assembly of **403**. Local body polls in UP are run by the **UP State Election Commission**, not the ECI.
- 17. Political party **registration** is under RPA section **29A**. **Recognition** as a national or State party follows the **Symbols Order, 1968**. National-party tests include vote share across States or Lok Sabha seat share thresholds.
- 18. Anti-defection is in the **10th Schedule**, inserted by the **52nd Amendment (1985)**. The **91st Amendment (2003)** removed the one-third split escape and kept merger only at **two-thirds** (दो-भाग). The Speaker decides; *Kihoto Hollohan* allows limited judicial review.
- 19. A recognised party may name up to **40** star campaigners; an unrecognised party may name **20** (RPA section **77** expenditure rules).
- 20. An election petition for an MP or MLA goes to the **High Court** within **45 days**. Appeal lies to the Supreme Court. Corrupt practices are listed in RPA section **123**. President/VP election disputes stay under **Article 71**.
- 21. **EVMs** were first used in Kerala in **1982** and covered all booths by **2004**. They are made by **BEL** and **ECIL**. **VVPAT** was first used at **Noksen (Nagaland) on 4 September 2013** and nationwide by **2019**; the Supreme Court required verification of **five** VVPAT slips per Assembly constituency.
- 22. **NOTA** came from **PUCL (2013)**. **NOTA** does **not** force a re-poll even if it "wins."
- 23. A useful chronology fact is **EVM (1982) → EPIC (1993) → VVPAT → NOTA**. Keep the order; do not invent a reverse sequence.
- 24. India ran **simultaneous** elections from **1951–67**. The Kovind panel (**2023–24**) studied a return; implementing it would need changes around Articles such as **83, 85, 172, and 174**. It is **not yet law**.
- 25. **Electoral bonds** (2018 scheme) were **struck down** by the Supreme Court in **February 2024**. Do not treat the scheme as still valid.
- 26. Free and fair elections are part of the Constitution's basic electoral design through **324–329**, adult suffrage, one roll, and independent machinery. Delimitation freezes and reserved seats are separate but related facts.
- 27. The Election Commission's multi-member form and the CEC's harder removal protect independence, but day-to-day election law still comes from the **RPA**s and Rules — **Article 324** is not a blank cheque to ignore statute.
- 28. Reserved constituencies change only through delimitation and constitutional extension dates. Women's reservation under the **106th** waits for post-census delimitation; SC/ST reservation currently runs to **2030** under the **104th**.

Must-score facts — suffrage, systems, RPA

Articles

Article	Lock
324	EC superintendence
326	Universal adult suffrage
327 / 328	Parliament / State election law
329	Bar on court interference (election petition path)
61st	Voting age 21 → 18

Systems

System	Used for
First Past the Post	Lok Sabha; Vidhan Sabha (विधानसभा)
PR-STV	President; VP; Rajya Sabha; State Councils

Quick locks

Item	Lock
Prisoner vote	Generally no (RPA 62(5)); undertrial nuance in teaching
Bye-election	Ordinarily within 6 months
Presidential MLA vote value	1971 population formula
Model Code	EC-enforced; not in Constitution text

Topic 15 — Emergency Provisions

Consolidated — 26 Must-Score Facts

- 1. Emergency Provisions sit in **Part XVIII (Articles 352–360)**. There are three proclamations: **National Emergency (352)**, **President’s Rule (356)**, and **Financial Emergency (360)**.
- 2. National Emergency under **352** may be proclaimed for **war, external aggression, or armed rebellion**. The **44th Amendment** replaced the old phrase “**internal disturbance**” with **armed rebellion**.
- 3. A 352 proclamation needs **written advice of the Union Cabinet**, not the Prime Minister alone — a direct lesson from **1975**. Parliamentary approval must come within **one month** by **special majority** in both Houses (majority of total membership (सदन की कुल सदस्य संख्या का) plus two-thirds (ते-भाग) of those present and voting (गणपूर्ति)).
- 4. Once approved, a National Emergency continues for **six months** at a time with fresh approvals. The Lok Sabha (लोकसभा) can force revocation by passing a disapproval resolution. One-tenth of Lok Sabha members can compel a sitting (बैठक) within **fourteen days**.
- 5. National Emergency has been used in **1962** (China), **1971** (Pakistan), and **1975–77** (the Internal Emergency, **25 June 1975 to 21 March 1977**).
- 6. Under **Article 358, Article 19** automatically suspends only when the Emergency is on grounds of **war or external aggression** — **not** for armed rebellion alone. Under **359**, the President may suspend enforcement of named Fundamental Rights, but **Articles 20 and 21** can **never** be suspended (44th Amendment; contrast *ADM Jabalpur*).
- 7. After the 44th Amendment, laws or executive action during Emergency need a real **emergency nexus (358(2) / 359)**. Blanket misuse without nexus is not protected.
- 8. **President’s Rule** uses **Article 356** (अनुच्छेद 356), linked to the Union’s duty under **355** and the directions-gateway under **365**. Parliamentary approval is needed within **two months** by **simple majority** in both Houses.
- 9. President’s Rule runs in **six-month** slices. Beyond **one year**, continuation needs a National Emergency in force in India or that State **and** an Election Commission (निर्वाचन आयोग) certificate that elections cannot be held. Maximum is normally **three years**.
- 10. *S.R. Bommai* (**1994**) made 356 justiciable, insisted on majority on the **floor of the House**, and warned against dissolving the Assembly before Parliament approves the proclamation. The President **cannot** assume High Court powers under 356.
- 11. The first use of President’s Rule was in **Punjab in 1951**. Mass misuse is especially remembered around **1977** and **1980**.
- 12. **Financial Emergency (360)** is for a threat to India’s financial stability or credit. It has **never been used**. Approval window is **two months** by simple majority; it then continues until revoked — there is **no** six-month renewal clock like 352/356.
- 13. During a Financial Emergency the Centre may give directions on financial propriety, reduce salaries even of judges, and require State money bills to be reserved.
- 14. **Martial law** is military control in a locality, with indemnity possible under **Article 34**. It is **not** a substitute for National Emergency. Under 352 the civilian Constitution continues with emergency overlays.
- 15. While a National Emergency is on, **Article 250** lets Parliament legislate on the **State List** (राज्य सूची). Under **353** the Union may direct States on almost any matter — a strong unitary tilt. **354** lets the President modify Centre–State revenue sharing during 352.
- 16. State Assembly life can be extended by **one year at a time** during a National Emergency (**Article 172**), subject to the usual outer limits after Emergency ends.
- 17. Election petitions and the **Article 329** bar continue to matter even in Emergency contexts — Emergency does not invent a free-for-all over electoral disputes.
- 18. Special majority for **352** approval is harder than the **simple majority** used for **356** and **360**. Approval time is **one month** for 352 and **two months** for 356/360.
- 19. Textbook labels “National Emergency” and “State Emergency” map to **352** and **356**; the Constitution itself does not use the phrase “State Emergency.”
- 20. External Emergencies (1962, 1971) rest on war or external aggression. The 1975 proclamation was still under the older **internal disturbance** language before the 44th rewrite.
- 21. **Article 355** is the Union’s **duty** to protect States against external aggression and internal disturbance and to ensure that State government runs with the Constitution. **356** is the **proclamation** that takes over when that machinery fails.
- 22. During 356 the President (through the Governor) can assume State executive powers and Parliament/State law roles as provided, but judicial independence of the High Court is ring-fenced — no takeover of **High Court** powers.
- 23. Financial Emergency directions can reach salary cuts for government servants and judges and can force reservation of money bills — facts that do not appear under ordinary 356 politics.
- 24. The Emergency FR map is simple if memorised as a triangle: **358** auto-hits **19** (war/external only); **359** can suspend enforcement of other named rights by order; **20 and 21** stay awake.
- 25. Cabinet written advice, armed rebellion wording, unsuspendable 20/21, and emergency nexus are the four (चातुर्याम) **44th Amendment** knives every prelims answer should recall together.
- 26. Punchhi (पुंछी आयोग) later suggested **localising** 356 rather than dismissing a whole State government for a local breakdown — useful for mains, while *Bommai* remains the judicial fact for prelims.

Must-score facts — 352, 356, 360

Three Emergencies

Type	Article	Grounds / tag
National	352	War, external aggression, armed rebellion
President’s Rule	356	Failure of constitutional machinery (linked 355)
Financial	360	Threat to financial stability / credit

National Emergency locks

Item	Lock
Advice	Written Cabinet advice (not PM alone) — 44th lesson
Duration	6 months slices with approval; LS can disapprove
Used	1962, 1971, 1975–77
Art. 358	Auto-suspends Art. 19 only for war/external (not armed rebellion alone in refined teaching)
Art. 359	Can suspend enforcement; 20 & 21 never

President’s Rule

Item	Lock
Floor test	<i>Bommai</i> — majority in House

Item	Lock
Approval	Parliament within 2 months ; renewable

Topic 16 — Constitutional Amendments

Consolidated — 28 Must-Score Facts

- 1. Amendment power sits in **Part XX, Article 368** (अनुच्छेद 368). An amendment Bill may start in **either House**. There is **no joint sitting** (संयुक्त बैठक). After the **24th Amendment**, the President **shall** assent.
- 2. There are **three lanes**: **simple majority** changes that are **not** “under 368” (new States, Article 169 Councils, Schedules 5/6 matters, and similar); **special majority** under **368(2)** (majority of total membership (सदन की कुल सदस्य संख्या का) plus two-thirds (ते-भाग) present and voting (गणपूर्ति)); and **special majority plus ratification by half the States** for federal provisions.
- 3. Federal provisions needing State ratification include Presidential election, extent of executive power (**73/162**), Supreme Court and High Courts, the **7th Schedule, Article 368** (अनुच्छेद 368) itself, and State representation in the Rajya Sabha (राज्यसभा).
- 4. The basic-structure chain runs **Shankari Prasad (1951) → Sajjan Singh (1965) → Golaknath (1967) → 24th Amendment (1971) → Kesavananda (1973) → 42nd (1976) → Minerva Mills (1980)**. *Kesavananda* held that Parliament can amend Fundamental Rights (मौलिक अधिकार) but **not** destroy basic structure.
- 5. A shorter chronology trap is **Golaknath → 24th → Kesavananda → 42nd**. *Golaknath* said Fundamental Rights could not be amended; the **24th** asserted Parliament’s power; *Kesavananda* balanced power with basic structure.
- 6. The **1st Amendment (1951)** added **15(4)**, widened **19(2)** for public order, and inserted **31A/31B** with the **9th Schedule** (9वीं अनुसूची) shield for certain laws.
- 7. The **7th Amendment (1956)** reorganised States and added **350A (अनु. 350A)/350B (अनु. 350B)**. Linguistic-minority Articles **350A/350B** are **7th, not 9th**. The **9th Amendment** (9वां संशोधन) is the Berubari boundary amendment.
- 8. The **24th Amendment (1971)** affirmed that Parliament can amend Part III (मौलिक अधिकार) and that the President shall assent. The **25th** inserted **31C** linked to Articles **39(b)/(c)** and spoke of “amount” rather than market value for compensation. The **26th** abolished **privy purses**.
- 9. The **36th Amendment (1975)** made **Sikkim** a State (**371F**). The earlier **35th** had made Sikkim an “associate” State with an old Tenth Schedule device — do not confuse 35th and 36th.
- 10. The **42nd Amendment (1976)** is the **Mini-Constitution**: it added **Socialist, Secular, and Integrity** to the Preamble; inserted Fundamental Duties (मौलिक कर्तव्य) (**51A**); added DPSPs **39A, 43A, 48A**; and moved **five** subjects to the Concurrent List (समवर्ती सूची).
- 11. The 42nd also tried to immunise amendments from review through **368(4)/(5)** and to widen **31C** to all DPSPs — both struck in *Minerva Mills*. The **43rd Amendment (1977)** undid judicial bars such as **32A/131A**.
- 12. The **44th Amendment (1978)** moved property to **Article 300A**, made **Articles 20 and 21** unsuspendable, rewrote Emergency rules (written Cabinet advice, armed rebellion, nexus), and added **38(2)** and **361A**.
- 13. The **39th Amendment (1975)** tried to place the Prime Minister’s election beyond judicial reach; the Supreme Court struck that device in the *Indira Gandhi* (गांधी) election case.
- 14. The **52nd Amendment (1985)** inserted the **present Tenth Schedule** (anti-defection). An earlier Sikkim-related Tenth Schedule had already gone. The **91st Amendment (2003)** killed the one-third split escape, set Council of Ministers size caps (**15%**, Delhi **10%**), and added **361B**.
- 15. The **61st Amendment** lowered voting age to **18** (in force **1989**). Do not confuse it with a **62nd**-style extension of reservation timelines under **334**.
- 16. The **69th Amendment (1991)** created **NCT Delhi** under **239AA**. The **70th** put NCT into the Presidential electoral college. Neither is the same as the wider NCR planning belt.
- 17. The **73rd and 74th Amendments (1992)** created **Parts IX and IXA** (नगरपालिका). They came into force in **1993 — 24 April** for Panchayats and **1 June** for Municipalities.
- 18. The **86th Amendment (2002)** inserted **Article 21A** (RTE), recast **Article 45**, and added duty **51A(k)**. The RTE Act **2009** took effect on **1 April 2010**.
- 19. The **97th Amendment (2011)** constitutionalised cooperatives (**43B, 19(1)(c)**, Part **IXB**). Part IXB was later held **inoperative for State cooperatives (2021)**.
- 20. The **101st Amendment (2016)** introduced GST (**246A, 279A**), live from **1 July 2017**. The **102nd (2018)** constitutionalised NCBC (राष्ट्रीय पिछड़ा वर्ग आयोग) (**338B**) and the Central SEBC list logic (**342A**).
- 21. The **103rd Amendment (2019)** created **EWS** reservation of **10%** through **15(6)/16(6)**; *Janhit Abhiyan* (**2022**) upheld it. The **105th (2021)** restored States’ power to identify their own SEBCs.
- 22. The **104th Amendment** ended Anglo-Indian nomination and extended SC/ST reservation to **2030**. The **106th (2023)** reserves **one-third** seats for women in the Lok Sabha and Assemblies, but only **after** the next delimitation — it is **not yet in force** as seat reservation on the ground.
- 23. The **96th Amendment (2011)** changed **Oriya** to **Odia** in the Eighth Schedule — a pure year-and-name match.
- 24. Simple-majority changes outside Article 368 look ordinary but can still remake the map of States. Special-majority-plus-States is the federal fact when the question names the 7th Schedule or Article 368 itself.
- 25. *Minerva Mills* restored judicial review of amendments and struck the attempt to give DPSPs complete supremacy over Fundamental Rights through an overbroad **31C**.
- 26. Ninth **Schedule** (from the 1st Amendment) is a protective list of laws; Ninth **Amendment** is Berubari. Mixing Schedule and Amendment number is a classic trap.
- 27. Local-government amendments are the pair **73rd + 74th**. Rights-education is **86th**. Goods and services tax is **101st**. EWS is **103rd**. Women reservation awaiting delimitation is **106th**.
- 28. The **42nd (1976)** added **Socialist** and **Secular** to the Preamble. The **44th (1978)** unwound Emergency excesses and moved property out of Part III to **Article 300A**.

Must-score facts — 368 lanes, landmark Amendments

Amendment lanes (Art. 368 / outside)

Lane	Lock
Simple majority (not “under 368”)	Arts. 2–4; Art. 169 Councils, etc.
Special majority (368)	Most amendments
Special + half States	Federal provisions (election of President, Lists, SC/HC, etc.)

Basic-structure chain

Shankari Prasad (1951) → Sajjan Singh (1965) → Golaknath (1967) → 24th (1971) → Kesavananda (1973) → Indira Gandhi (1975) → 42nd (1976) → Minerva Mills (1980)

Landmark Amendments

Amd	Lock
1st (1951)	15(4); 19(2); 31A/31B + 9th Schedule
7th (1956)	States reorganisation; 350A/350B

Amd	Lock
24th (1971)	Parliament can amend Part III; President shall assent
42nd (1976)	Mini-Constitution; Socialist/Secular; Duties
44th (1978)	Property out of FR; Emergency safeguards
61st	Voting age 18
73rd / 74th	Panchayats / Municipalities
86th	21A + Duty 51A(k)
101st	GST
103rd	EWS
104th	Anglo-Indian LS nomination ended

Topic 17 — Language & Special Provisions

Consolidated — 28 Must-Score Facts

- 1. Part XVII (Arts. 343–351) deals with official language. The Constitution **never** names a **national language** (राष्ट्रभाषा).
- 2. The Union official language (संघ राजभाषा) is **Hindi in Devanagari**. The international form of Indian numerals is used for official purposes of the Union.
- 3. The Constitution gave English **fifteen years** from 26 January 1950. The Official Languages Act **1963** (amended **1967**) keeps English in use **with** Hindi without a sunset.
- 4. Article **344** creates an Official Language Commission at **five years** and again at **ten years** from 1950. It is **not** a standing body. A parliamentary committee of **30 MPs (20 Lok Sabha (लोकसभा) + 10 Rajya Sabha (राज्यसभा))** examines its report.
- 5. The **1976** Committee of Parliament on Official Language is a **statutory** standing body chaired by the **Home Minister**. It is **not** the Article 344 Commission (अनु. 344 आयोग).
- 6. A State may adopt one or more languages, or Hindi, as its official language under Article **345**. Under Article **347**, the **President** may direct that a language spoken by a section of the population (जनसंख्या) be officially recognised in that State.
- 7. Until Parliament otherwise provides, the authoritative texts of Acts and proceedings in the Supreme Court and High Courts are in **English** (Article **348**).
- 8. Article **351** places a Union duty to promote Hindi as a medium of expression for India’s composite culture, drawing vocabulary from Eighth Schedule (आठवीं अनुसूची) languages.
- 9. Article **350** lets any person submit a grievance representation in any language used in the Union or the State. Article **350A** (Seventh Amendment) requires States to provide mother-tongue instruction at the **primary** stage.
- 10. Article **350B** creates **one** Special Officer for Linguistic Minorities for the whole of India. It was inserted by the **Seventh** Amendment, **not** the Ninth. It is **not** a per-State office.
- 11. The Eighth Schedule began with **14** languages. **Sindhi** made it **15** (21st Amendment, 1967). **Konkani, Manipuri (मणिपुरी), and Nepali** made it **18** (71st, 1992). **Bodo, Dogri, Maithili, and Santhali** made it **22** (92nd, 2003). The 96th Amendment (2011) renamed **Oriya** as **Odia**.
- 12. **Bhojpuri, English, Rajasthani, Tulu, and Khasi (खासी)** are **not** in the Eighth Schedule. Being in the Eighth Schedule does **not** make a language the Union official language.
- 13. Classical language (शास्त्रीय भाषा) is an **executive** tag, not a constitutional list. **Tamil** was the first (2004). After the 3 October 2024 notifications there are **eleven** classical languages.
- 14. In Uttar Pradesh (उत्तर प्रदेश), **Hindi** is the official language and **Urdu** is the second official language (from **1989**). Under the Official Language Rules **1976**, Uttar Pradesh falls in **Region A**.
- 15. Hindi Diwas is observed on **14 September** (Munshi–Ayyangar formula, 1949). The **58th** Amendment / Article **394A** provides for an authoritative **Hindi** text of the Constitution.
- 16. Parliament may provide for continued English under Articles **343(3), 120, and 348** by **ordinary** law (simple majority). Changing the **text** of Article 343 itself needs Article **368** special majority and is **not** on the federal-consent list.
- 17. Part **X** maps Scheduled and Tribal Areas: Article **244(1)** → Fifth Schedule; Article **244(2)** → Sixth Schedule (Assam, Meghalaya (मेघालय), Tripura, Mizoram).
- 18. Uttar Pradesh has Scheduled Tribes but **no** Fifth Schedule area, so **PESA does not apply** in UP.
- 19. The Fifth Schedule covers **ten** States. A Tribes Advisory Council has up to **20** members with **three-fourths** Scheduled Tribe (अनुसूचित जनजाति) MLAs. **PESA 1996** (पेसा) applies only to Fifth Schedule areas.
- 20. The Sixth Schedule creates Autonomous District Councils. It does **not** cover **Nagaland, Sikkim, Arunachal Pradesh, Manipur, or Ladakh**. Tripura is a Sixth Schedule State; Nagaland is **not**.
- 21. Article **371A** (अनु. 371A) protects Nagaland’s land and customary law. Article **371I** (अनु. 371I) requires Goa (गोवा)’s Assembly to have at least **thirty** seats. Article **371J** covers the **Kalyana-Karnataka** (Hyderabad-Karnataka) region with a development board and local preference.
- 22. Article **370** was made inoperative from **6 August 2019**. Article **35A** was a **1954** Presidential Order on permanent residents; it was **not** a constitutional amendment.
- 23. From **31 October 2019**, Jammu & Kashmir and Ladakh became separate Union Territories. Jammu & Kashmir later held Assembly elections in **2024**.
- 24. The Inner Line Permit system is a **neighbour** control regime for selected north-eastern areas; it is **not** itself a Fifth or Sixth Schedule clause.
- 25. Fifth Schedule = Tribes Advisory Council + PESA path. Sixth Schedule = Autonomous District Councils for AMTM States. Do not swap the tools.
- 26. Linguistic minorities are protected through Articles **350–350B**. The National Commission for Minorities (1992) is a **statutory** body for **religious** minorities — not a substitute for the 350B officer (भाषाई अल्पसंख्यक अधिकारी).
- 27. Classical languages may overlap with Eighth Schedule names, but the tags are **not** one-to-one: classical status does not add a language to the Eighth Schedule, and Eighth Schedule listing does not create classical status.
- 28. Special provisions for States sit mainly in Part **XXI** (Arts. **371–371J**). Memorise the letter facts (**371A** Nagaland, **371I** Goa seats, **371J** Kalyana-Karnataka) rather than treating “371” as one generic article.

📖 Must-score facts — official language, 8th Schedule, 371

Official language (Part XVII)

Item	Lock
National language	Constitution never names one
Union official	Hindi in Devanagari
English	15 years from 1950; continued by Official Languages Act 1963
Art. 344	Official Language Commission (5 yrs / 10 yrs)
Art. 345	State official language(s)
Art. 351	Union duty to promote Hindi (composite culture)
SC / HC authoritative texts	English until Parliament otherwise provides

Eighth Schedule / special

Item	Lock
Languages	22
In	Nepali, Dogri, Bodo, etc.
Out	Bhojpuri (classic trap)
Special States	371–371J (Part XXI)

Item	Lock
UP	No 371-series special article

Topic 18 — Political Parties & Pressure Groups

Consolidated — 26 Must-Score Facts

- 1. The Constitution barely names parties. The main hooks are Article **19(1)(c)** (association), the **Tenth Schedule** (defection), and Article **324** (elections). Parties were largely **extra-constitutional** until the **52nd** Amendment.
- 2. Registration of a political party (राजनीतिक दल) is under **section 29A** of the Representation of the People Act, 1951 (Registered Unrecognised Political Party). **Recognition** as a National or State party is under the Election Symbols Order **1968**. Do not merge the two steps.
- 3. A party becomes a **National** party by any one route: **6% votes in four** (चातुर्यम) States plus **four** Lok Sabha (लोकसभा) seats; or **2% of Lok Sabha seats** from at least **three** States; or State-party status in **four** States.
- 4. A party becomes a **State** party in that State by any one route: **6% votes plus two MLAs or one MP**; or **3% of Assembly seats or three seats** (whichever is higher); or **one** Lok Sabha seat per **25** Assembly seats; or **8% of votes** even with zero seats.
- 5. As of 2024–26 there are **six** national parties: **AAP** (broom), **BSP** (elephant), **BJP** (lotus), **CPI(M)** (hammer-sickle-star), **INC** (hand), and **NPP** (book). **CPI** lost national status in **2023**. **NPP** was the first north-eastern national party (**2019**).
- 6. Reserved symbols go to recognised parties. Free symbols go to unrecognised parties and independents.
- 7. A standard founding-year order is **TDP 1982 → BSP 1984 → SP 1992 → TMC 1998**.
- 8. India has a **multi-party** system, not a classic two-party system. After the Congress-system decades, **1967** brought large state coalitions; **1989–2014** was a long coalition era at the Centre; **2014** returned a single-party majority; **2024** again produced an **NDA coalition** with the BJP on **240** seats.
- 9. A **hung** House means no single party has a majority. A **coalition** means two or more parties govern together. A hung House (त्रिशंकु सदन) may still produce a coalition.
- 10. After *Bommai*, majority is tested on the **House floor**, not by Raj Bhavan arithmetic alone. The President or Governor invites whoever can command confidence.
- 11. Sarkaria (सरकारिया आयोग)'s invite order for a hung House is: **pre-poll alliance → largest single party → post-poll alliance**, then a floor test.
- 12. A **political party** contests elections and seeks office. A **pressure group** (दबाव समूह) usually does not contest and seeks to **influence** policy. An **interest group** (हित समूह) becomes a pressure group when it presses the State.
- 13. The first trade union in India is commonly locked as the **Madras Labour Union (1918)**. **AITUC** (एटक) was formed in **1920** with Lala Lajpat Rai (लाला लाजपत राय) as president and is linked to the **CPI**.
- 14. **INTUC** (इंटक) (**1947**) is linked to the **Congress** (कांग्रेस). **BMS** (बीएमएस) (**1955**) is linked to the **BJP/RSS**. **CITU** (सीटू) (**1970**) is linked to the **CPI(M)**. **UTUC** (यूटीयूसी) (**1949**) is linked to the **RSP**.
- 15. The right to **form** associations and unions is under Article **19(1)(c)**. The right to **strike** is **not** a Fundamental Right.
- 16. Indian party-system features often tested are multi-party competition, weak ideology, dynasty politics, regionalisation after **1967**, weak inner-party democracy, and extra-constitutional origin of parties.
- 17. National parties get an all-India reserved symbol (आरक्षित प्रतीक). State parties get a reserved symbol **only in that State**.
- 18. Electoral bonds were struck down in **February 2024** (*Association for Democratic Reforms*). Party funding transparency remains a live neighbour to registration and recognition.
- 19. Pressure groups include business associations, farmer bodies, trade unions, and professional lobbies. They work through persuasion, media, litigation, and access — not through forming the ministry.
- 20. Do not confuse **AITUC (CPI)** with **CITU (CPI-M)**, or **INTUC (Congress)** with **BMS (BJP/RSS)**.
- 21. Recognition criteria use **votes share and seats**, not merely “old party” or “famous leader.” A registered party without recognition remains a RUPP with a free symbol (मुक्त प्रतीक).
- 22. Coalition governments rest on a common programme and support arithmetic. Withdrawal of support can trigger a floor test and possible change of government.
- 23. In Uttar Pradesh (उत्तर प्रदेश), party founding years for **BSP** and **SP**, and union–party match lists, are high-yield. Keep the national roster and the UP regional set separate.
- 24. The Tenth Schedule punishes defection; it does not itself create the Election Commission (निर्वाचन आयोग)'s recognition rules. Registration, recognition, and defection are three different tools.
- 25. A hung Assembly does not automatically mean President’s Rule. The constitutional path is invitation based on likely majority, then floor test; Article **356** is a last resort, not the first step.
- 26. Multi-party democracy can still produce stable majorities. “Multi-party” describes the system type; it does not mean every election must end in a coalition.

Must-score facts — recognition, symbols, defection

Hooks in Constitution / law

Item	Lock
Association	Art. 19(1)(c)
Anti-defection	Tenth Schedule
Registration	RPA s. 29A

Statutory Criteria for Recognition (Election Symbols Order, 1968)

A party registered under **Section 29A of RPA 1951** is initially a *Registered Unrecognised Political Party (RUPP)*. It gains **recognition** solely by meeting performance thresholds in general elections:

1. Conditions for Recognition as a NATIONAL PARTY (राष्ट्रीय दल)

(A party must fulfill ANY ONE of the following 3 conditions): 1. **Votes + Seats Route**: Polling at least **6% of total valid votes** in **4 or more States** in a Lok Sabha or State Assembly election, **AND** winning at least **4 seats in the Lok Sabha** from any State or States. 2. **Lok Sabha Seats Route**: Winning at least **2% of total seats in the Lok Sabha** (i.e., $543 \times 2\% = 10.86 \approx 11$ seats), and these elected members must represent **at least 3 different States**. 3. **Multi-State Recognition Route**: Being recognized as a **State Party in at least 4 States**.

(Current 6 National Parties in 2024–26: *BJP, INC, BSP, CPI(M), AAP, NPP*; *CPI, TMC, and NCP* lost national status in April 2023).

2. Conditions for Recognition as a STATE PARTY (राज्य / क्षेत्रीय दल)

(A party must fulfill ANY ONE of the following 5 conditions in the concerned State): 1. **6% Votes + 2 MLAs**: Polling at least **6% of valid votes** in the State Assembly election **AND** winning at least **2 Assembly seats (MLAs)**. 2. **6% Votes + 1 MP**: Polling at least **6% of valid votes** in the State during a Lok Sabha election **AND** winning at least **1 Lok Sabha seat (MP)** from that State. 3. **3% Seats or 3 MLAs**: Winning at least **3% of the total Assembly seats** or **3 seats in the Legislative Assembly**, whichever is higher. 4. **1 MP per 25 LS Seats**: Winning at least **1 Lok Sabha seat for every 25 seats** allotted to that State (or any fraction thereof). 5. **8% Vote-Share Alone (2011 Rule)**: Polling at least **8% of the total valid votes** in the State in an Assembly or Lok Sabha election, **even if it wins ZERO seats**.

Master Table — Indian Political Parties (Founding Year, Founder & Symbol)

(High-yield for chronological arrangement & match-the-column PYQs like UPPCS 2022 Q53)

Party Name (दल)	Abbr.	Founded (वर्ष)	Key Founder(s) (संस्थापक)	Official Symbol (प्रतीक)	Level / Status
Indian National Congress	INC	1885 (28 Dec)	A.O. Hume, W.C. Bonnerjee	Hand (हाथ का पंजा)	National Party
Shiromani Akali Dal	SAD	1920 (14 Dec)	Master Tara Singh, Baba Kharak Singh	Scales (तराजू)	State Party (Punjab)
Communist Party of India	CPI	1925 (26 Dec)	M.N. Roy, S.V. Ghatge (Kanpur)	Ears of Corn and Sickle	State Party (lost Nat. status 2023)
J&K National Conference	JKNC	1932/1939	Sheikh Abdullah	Plough (हल)	State Party (J&K)
Dravida Munnetra Kazhagam	DMK	1949 (17 Sep)	C.N. Annadurai, Periyar legacy	Rising Sun (उगता सूरज)	State Party (TN, Puducherry)
CPI (Marxist)	CPI(M)	1964 (7 Nov)	P. Sundarayya, E.M.S., Jyoti Basu	Hammer, Sickle and Star	National Party
Shiv Sena	SS	1966 (19 Jun)	Bal Thackeray	Bow and Arrow (मूल)	State Party (Maharashtra)
AIADMK	AIADMK	1972 (17 Oct)	M.G. Ramachandran (MGR)	Two Leaves (दो पत्तियाँ)	State Party (TN, Puducherry)
Jharkhand Mukti Morcha	JMM	1972 (15 Nov)	Shibu Soren, Binod Bihari Mahato	Bow and Arrow (झारखंड)	State Party (Jharkhand)
Bharatiya Janata Party	BJP	1980 (6 Apr)	Atal Bihari Vajpayee, L.K. Advani	Lotus (कमल)	National Party
Telugu Desam Party	TDP	1982 (29 Mar)	N.T. Rama Rao (NTR)	Bicycle (साइकिल - AP)	State Party (AP, Telangana)
Bahujan Samaj Party	BSP	1984 (14 Apr)	Kanshi Ram	Elephant (हाथी)	National Party
Asom Gana Parishad	AGP	1985 (14 Oct)	Prafulla Kumar Mahanta	Elephant (असम राज्य)	State Party (Assam)
Samajwadi Party	SP	1992 (4 Oct)	Mulayam Singh Yadav	Bicycle (साइकिल - UP)	State Party (UP)
Rashtriya Janata Dal	RJD	1997 (5 Jul)	Lalu Prasad Yadav	Hurricane Lamp (लालटेन)	State Party (Bihar, Jharkhand)
Biju Janata Dal	BJD	1997 (26 Dec)	Naveen Patnaik	Conch (शंख)	State Party (Odisha)
All India Trinamool Congress	AITC/TMC	1998 (1 Jan)	Mamata Banerjee	Flowers and Grass	State Party (lost Nat. status 2023)
Nationalist Congress Party	NCP	1999 (10 Jun)	Sharad Pawar, P.A. Sangma	Clock (घड़ी)	State Party (lost Nat. status 2023)
BRS (formerly TRS)	BRS	2001 (27 Apr)	K. Chandrashekar Rao (KCR)	Car (कार)	State Party (Telangana)
YSR Congress Party	YSRCP	2011 (12 Mar)	Y.S. Jagan Mohan Reddy	Ceiling Fan (पंखा)	State Party (AP)
Aam Aadmi Party	AAP	2012 (26 Nov)	Arvind Kejriwal	Broom (झाड़ू)	National Party (gained 2023)
National People's Party	NPP	2013 (6 Jan)	P.A. Sangma	Book (किताब)	National Party (1st North-East 2019)

UPPCS Classic Trap Sequence: TDP (1982) → BSP (1984) → SP (1992) → TMC (1998).

Topic 19 — Acts & Governance

Consolidated — 32 Must-Score Facts

- Under the Disaster Management Act **2005**, the **NDMA** is chaired by the **Prime Minister**, the **SDMA** by the **Chief Minister**, and the **DDMA** by the **District Magistrate**. The **NEC** is chaired by the **Cabinet Secretary**. The nodal ministry is **Home**.
- NDRF** as a **force** is not the same as the National Disaster **Response Fund**. Do not swap the two.
- The RTI Act **2005** (assent **15 June 2005**; in force from **12 October 2005**) grew from the MKSS campaign. The fee is **₹10** (BPL free). Reply is due in **30 days (48 hours if life or liberty is at stake)**. First appeal is **30 days**; second appeal **90 days**. Penalty can run **₹250** a day up to **₹25,000**.
- RTI section **22** makes RTI override the Official Secrets Act to that extent; it does **not** repeal the Official Secrets Act.
- The RTE Act **2009** (in force **1 April 2010**) covers ages **6–14**. Neighbourhood norms are about **1 km** (primary) and **3 km** (upper primary). Private schools reserve **25%** under section **12(1)(c)**. School Management Committees must be **three-fourths** parents. PTR is **1:30**.
- The National Food Security Act **2013** covers up to **75%** of the rural and **50%** of the urban population (जनसंख्या). Prices are **₹3 / ₹2 / ₹1** for rice, wheat, and coarse grains. Antyodaya gets **35 kg** per household. A woman aged **18 or more** is treated as household head. Do **not** date NFSA as **5 September 2010**.
- The Forest Rights Act **2006** starts recognition (मान्यता) at the **Gram Sabha** (ग्राम सभा). Eligible groups include Scheduled Tribes and Other Traditional Forest Dwellers with a **75-year** occupation test as on **13 December 2005**. Individual rights are capped around **4 hectares**. The nodal ministry is **Tribal Affairs**.
- The Protection of Human Rights Act **1993** has a **one-year** limitation for complaints. After the **2019** change, the NHRC (राष्ट्रीय मानव अधिकार आयोग) Chair must be a **retired Supreme Court judge**. NHRC recommendations are **recommendatory**.
- The Consumer Protection Act **2019** lists **six** consumer rights, creates the **CCPA**, adds product liability and e-commerce coverage, and uses district pecuniary jurisdiction up to **₹50 lakh**. World Consumer Rights Day is **15 March**; National Consumer Day is **24 December**.
- The Whistle Blowers Protection Act **2014** makes identity revelation an offence for disclosures about a **public authority**. It is **not** the same as RTI, Lokpal (लोकपाल), or the PIDPI resolution.
- PESA 1996** (पेसा) (notified **24 December**) extends Part IX (भाग IX) to **Fifth Schedule** (5वीं अनुसूची) areas in **ten** States. It strengthens Gram Sabha control over land, minor forest produce, minerals, and intoxicants. It does **not** apply where there is no Fifth Schedule area.
- The SC/ST (Prevention of Atrocities) Act **1989** (in force **30 January 1990**) uses exclusive special courts (strengthened **2015**). Anticipatory bail bar under sections **18 / 18A** was restored in **2018**.
- POCSO 2012** (पॉक्सो) covers sexual offences against children **under 18**. Section **19** makes reporting mandatory. Investigation has a **two-month** push. Trials are in-camera. The nodal ministry is **Women and Child Development**.
- The Prevention of Corruption Act **1988** (amended **2018**) criminalises **giving** a bribe as well as taking one. Section **17A** needs prior approval for inquiry. Corporate bribery is covered. Trial is aimed at **two years**.
- The Citizenship Act **1955** lists five ways to acquire and three ways to lose citizenship. Naturalisation normally needs **eleven years**; CAA shortens that path for notified groups from Afghanistan, Bangladesh, and Pakistan who entered by **31 December 2014**. **OCI is not dual citizenship**.
- The four (चातुर्थी) Labour Codes are **Wages (2019)** plus **IR, OSH, and Social Security (2020)**. The Wages Code merges minimum wages, payment of wages, bonus, and equal remuneration. It does **not** swallow the old Contract Labour Act as a one-line synonym.
- RPA 1950** covers electoral rolls and seat allocation. **RPA 1951** covers conduct of elections, election petitions, and party registration under section **29A**.
- E-governance modes are **G2C (जी2सी)**, **G2B, G2G (जी2जी)**, and **G2E**. NeGP (**2006**) grew into Digital India's **e-Kranti** pillar. ICT should **cut cost** and **raise citizen input**, not increase red tape.
- Citizen Charters began in the UK (**1991**, John Major). India's Action Plan is **1997** (DARPG). A charter is a **promise document**, not a justiciable Union statute. Right-to-service laws (Madhya Pradesh **2010**, UP Janhit Guarantee **2011**) are **State statutes** with officer liability.
- Good Governance Day is **25 December** (Atal Bihari Vajpayee) from **2014**. UNDP (यूएनडीपी)'s eight principles and the World Bank's 1990s framing are the usual theory facts.
- Transparency** is not the same as **accountability**. Social audit under MGNREGA section **17** is Gram Sabha-led. Meghalaya (मेघालय) (**2017**) passed the first State social-audit Act. Social audit is **not** a CAG (भारत के नियंत्रक-महालेखापरीक्षक) audit (केग लेखापरीक्षा).
- Sevottam** (**2006**, DARPG) has three modules: Citizen Charter, Grievance Redress, and Capability Building. It uses the Charter; it is not merely another name for the Charter.
- Digital India launched on **1 July 2015** under **MeitY**, with three vision areas and **nine** pillars. **e-Kranti** is pillar **5**. Neighbours include UMANG (**2017**), DigiLocker, BharatNet, CSCs, GeM (**2016**), and MyGov (**2014**).
- Mission Karmayogi (**NPCSCB, 2 September 2020**) uses iGOT, the Capacity Building Commission (**2021**), and Karmayogi Bharat SPV. **Adi Karmayogi (2025)** is a **Ministry of Tribal Affairs** drive — **not** the DoPT Mission Karmayogi programme.
- Civil-service neutrality rests on anonymity, permanence, and non-partisanship under the CCS (सुरक्षा कैबिनेट समिति) Conduct Rules **1964**. It is **not** the same as a "committed bureaucracy" slogan.
- A **Code of Conduct** is enforceable rules (CCS **1964**). A **Code of Ethics** (नैतिक संहिता) is values (Nolan seven principles; Second ARC fourth report). Do not swap them.
- Lateral entry (from **2018**) brings specialists at Joint Secretary level on short contracts through DoPT/UPSC (संघ लोक सेवा आयोग). It supplements, and does not replace, the civil services examination stream.
- The **Second ARC** (Veerappa Moily, **2005–09**) issued **15** reports. Report **4** is Ethics; **11** is e-Governance; **12** is citizen-centric administration / Sevottam. The **First ARC** (Morarji Desai (आमिल), then Hanumanthaiah, **1966–70**) issued **20** reports and recommended a Lokpal.
- PRAGATI** (प्रगति) (**25 March 2015**) is a PMO ICT review platform. It is **not** a Digital India pillar. **CPGRAMS** (सीपीजीआरएएमएस) (DARPG) is not the same as the older Cabinet Secretariat **DPG** (लोक शिकायत निदेशालय) window (**1988**).
- ECO Mark (**1991**) is an **environment** (पर्यावरण) label for products. Do not treat it as a consumer-forum hierarchy fact under CPA 2019.
- POSH **2013** is workplace sexual harassment (Internal Committee if **ten or more** workers). POCSO **2012** is child sexual offences under **eighteen**. Keep the two Acts apart.
- The Environment (Protection) Act **1986** is the umbrella environment statute. The National Green Tribunal Act **2010** creates the green tribunal. Match the year to the institution, not the slogan.

Must-score facts — key Acts & chairs

Act ↔ lock

Act	Lock
DM Act 2005	NDMA = PM ; SDMA = CM ; NDRF ≠ Response Fund
RTI 2005 (आरटीआई 2005)	Assent 15 Jun; force 12 Oct 2005 ; s.22 overrides OSA to that extent
RTE 2009 (आरटीई 2009)	Force 1 Apr 2010 ; ages 6–14
NFSA 2013 (खाद्य सुरक्षा 2013)	Up to 75% rural / 50% urban

Act	Lock
FRA 2006	Starts at Gram Sabha
PHRA 1993	NHRC; 1-year complaint limit
Lokpal Act 2013	Statutory anti-corruption apex
CAA 2019	Selected minorities; cut-off 31 Dec 2014

Governance tags

Item	Lock
NITI (नीति) Aayog (नीति आयोग)	2015; think-tank; replaced Planning Commission (योजना आयोग)
GST (वस्तु एवं सेवा कर)	101st Amd; GST Council (जीएसटी परिषद)

Topic 20 — Internal Security

Consolidated — 30 Must-Score Facts

- 1. Police and public order are **State List** (राज्य सूची) subjects. The Union still has a duty under Article **355** to protect States against external aggression and internal disturbance. The **Ministry of Home Affairs** is the internal-security nodal ministry.
- 2. The Army (सेना), Navy, Air Force, and Coast Guard (तटरक्षक बल) sit under the **Ministry of Defence**. CAPFs sit under **Home**. Do not put Coast Guard in the CAPF list.
- 3. The **Intelligence Bureau (1887)** is India's internal intelligence agency under **MHA**. The Multi-Agency Centre sits with the IB. **NATGRID** is also under MHA.
- 4. **RAW** was formed on **21 September 1968** under **R.N. Kao**. It handles **external** intelligence and reports through the **Cabinet Secretariat / NSA** line — **not** MHA.
- 5. The **NIA** was created by the NIA Act **2008** after 26/11. It investigates scheduled offences **without** State consent (unlike CBI under DSPE section **6**). The **2019** amendment strengthened extra-territorial reach.
- 6. India's Interpol National Central Bureau is the **CBI**. **BHARATPOL** is the CBI-linked Interpol channel — not a separate CAPF.
- 7. The **National Security Council (1998)** is chaired by the **Prime Minister**. The first NSA was **Brajesh Mishra**. NSC's Strategic Policy Group is **not** the Special Protection Group.
- 8. The **Cabinet Committee on Security** is a Cabinet committee. The **NSC** is an extra-constitutional security council. Do not treat them as one body.
- 9. The **Special Protection Group Act 1988** protects the Prime Minister (and, after **2019**, the PM's family, with ex-PM cover for **five years**). It is close protection — not the NSC's Strategic Policy Group.
- 10. The **NSG** ("Black Cats") was raised after **1984** and given a statute in **1986**. It has SAG (Army) and SRG (CAPF) components, trains at Manesar, and works under MHA.
- 11. CAPFs under MHA include **CRPF (1939)**, **BSF (1 December 1965)** for Pakistan and Bangladesh borders, **CISF (1969)** for industry/airports, **ITBP (1962)** for the China / LAC belt, and **SSB (1963/2001)** for Nepal and Bhutan borders.
- 12. **Assam Rifles (1835)** is the oldest central paramilitary force. Administration is with **MHA**; operations are with the **Army**. Its north-east HQ is **Shillong**.
- 13. Coastal security is three-tier: marine police → **Indian Coast Guard** → **Navy**. Coast Guard (**1978**) is **MoD**, not a CAPF.
- 14. **NDRF** is a disaster-response force under the Disaster Management Act **2005**. **RPF** belongs to the Railways. Neither is a classic border CAPF.
- 15. **CERT-In (2004)** is under **MeitY** and draws power from IT Act section **70B**. It handles cyber incident response. **2022** directions require reporting in **six hours** and log retention for **five years**.
- 16. **NCIIPC** (राष्ट्रीय महत्वपूर्ण सूचना अवसंरचना) (section **70A**) protects Critical Information Infrastructure and sits under the **NTRO** line. It is **not** CERT-In.
- 17. **I4C** (MHA, **2018/20**) runs the cybercrime.gov.in ecosystem (पारिस्थितिकी तंत्र) and a National Cybercrime Training Centre. That training centre is **not** the never-born counter-terror **NCTC** (एनसीटीसी).
- 18. Proposed **NCTC** (counter-terror) was **never** stood up. **MAC (2001)** lives inside the IB and is the working multi-agency coordination fact.
- 19. IT Act section **66A** was struck down in **2015**. Section **66F** covers cyber-terrorism. Sections **69 / 69A** cover interception and blocking. India's National Cyber Security Policy is **2013** (MeitY). India is **not** a party to the Budapest Convention.
- 20. **UAPA 1967** is the living anti-terror criminal statute. **POTA** was repealed in **2004** and its teeth largely folded into UAPA. After **2019**, individuals can be designated terrorists (Fourth Schedule). Bail is hard under section **43D(5)**.
- 21. **NSA 1980** (रासुका) is a **preventive detention** law (Article **22** track). UAPA is a **criminal trial** statute often used with the NIA. Do not swap them.
- 22. **AFSPA 1958** (अफ़सा 1958) applies in a notified **disturbed area** in the north-east. Section **3** notifies; section **4** gives fire/arrest/search powers; section **6** needs Central sanction for prosecution. Jammu & Kashmir uses a **separate 1990** AFSPA statute.
- 23. AFSPA was lifted from Tripura (**2015**), Meghalaya (मेघालय), and large parts of Assam (**2022**). It still applies in parts of Nagaland, Manipur, Arunachal Pradesh, and under the J&K Act.
- 24. The Jeevan Reddy Committee (**2005**) recommended repeal of AFSPA; that recommendation was **not** enacted. **NPMHR (1997)** upheld AFSPA with limits. Fake encounters are not a licence under later rulings.
- 25. **Left-Wing Extremism (LWE / Naxal)** is fought mainly by **State police** plus **CRPF / CoBRA**, with State units such as Chhattisgarh's **DRG** (Maharashtra's comparable unit is often **C-60**). MHA's **SAMADHAN (2017)** is the LWE strategy acronym — not a new CAPF. In April **2024**, the high-yield district fact is **Kanker (Chhattisgarh)**, not Gadchiroli.
- 26. The Defence Cyber Agency (**2019**) is under **MoD**. Cyber Swachhta Kendra sits with CERT-In. Keep ministry lines clear when matching institutions.
- 27. India's nuclear and cyber neighbours in this chapter are policy facts: strategic forces under Defence, cyber civilian response under MeitY, cybercrime under MHA, and critical infrastructure under NCIIPC/NTRO.
- 28. **TADA (1985–95)** lapsed. **POTA (2002)** was repealed. The living central terror-trial tool for scheduled offences is **UAPA**, often with **NIA**.
- 29. CRPF is the main internal mobile force (including RAF and CoBRA for LWE). BSF holds the western and eastern international land borders. CISF holds static industry and airport security. Do not swap roles.
- 30. Emergency Articles **352, 356, and 360** are constitutional emergency tools. Internal security day-to-day work still runs through police, CAPFs, intelligence, and special statutes — not only through Emergency proclamations.

Must-score facts — agencies, CAPF, NSC

Division of labour

Item	Lock
Police / public order	State List
Union duty	Art. 355
Defence forces	Ministry of Defence
CAPFs	Ministry of Home

Agency ↔ tag

Agency	Lock
IB	Internal intel; 1887 ; under MHA
RAW	External; 21 Sep 1968 ; R.N. Kao
NIA	Act 2008 (post 26/11); scheduled offences without State consent in listed cases
CBI	Interpol NCB India; BHARATPOL channel
NSC	1998 ; Chair PM ; first NSA Brajesh Mishra
CCS (सुरक्षा कैबिनेट समिति)	Cabinet committee (≠ NSC)

Topic 21 — International Relations

Consolidated — 33 Must-Score Facts

- 1. India's foreign policy rests on **independent judgment** — historically called non-alignment and later strategic autonomy. It is **not** isolation and was **not** joining a US or USSR military camp in the Cold War textbook sense.
- 2. **Panchsheel** was signed on **29 April 1954** in the India–China Tibet trade (पञ्चावधि) agreement. The five principles are mutual respect for sovereignty, non-aggression, non-interference, equality and mutual benefit, and peaceful coexistence.
- 3. **Bandung 1955** echoed the same five principles at the Afro-Asian conference. Panchsheel is the India–China five; Bandung is the wider conference that used them.
- 4. **Non-alignment** is a **policy**. **NAM** is a **movement**, founded at **Belgrade 1961** by Nehru (नेहरू), Nasser, Tito (with Sukarno and Nkrumah). India hosted the **7th Summit** in Delhi (**1983**). NAM is **not** a military alliance and is **not** NATO.
- 5. The UN Security Council has **15** members: **P5** (China, France, Russia, UK, USA) plus **10** elected for **two** years. A P5 **veto** blocks substantive drafts. India has been elected **eight** times; the last term was **2021–22**.
- 6. The **G4** (India, Japan, Germany, Brazil) seek permanent seats. The **Uniting for Consensus** (Coffee Club) group resists easy expansion of permanent membership.
- 7. **NATO** was founded on **4 April 1949** in Washington. Article **5** is collective defence. HQ is **Brussels**. Membership is **32** after Finland (**2023**) and Sweden (**2024**). India is **not** a member.
- 8. **AUKUS** (**2021**) is Australia–UK–US (nuclear submarines). **QUAD** is India–Japan–US–Australia as a **dialogue**. Do not merge AUKUS with QUAD.
- 9. The **Djibouti Code of Conduct** (**2009**, IMO) targets piracy in the Western Indian Ocean and Gulf of Aden. The **Jeddah Amendment** (**January 2017**) widens the focus to broader maritime crime. **ReCAAP** (**2006**, Singapore) is the Asian piracy neighbour — not the same instrument.
- 10. Look East (**1991**, Narasimha Rao) became **Act East** (**2014**). **SAGAR** (**2015**) frames Indian Ocean outreach. **Neighbourhood First** and **Gujral Doctrine** (**1996**, non-reciprocity with smaller neighbours) are core neighbourhood lines.
- 11. Foundational US defence pacts with India include **GSOMIA 2002**, **LEMOA 2016**, **COMCASA 2018**, and **BECA 2020**. The civil nuclear **123 Agreement** and NSG waiver came in **2008**.
- 12. India is **not** a signatory to the **NPT** or **CTBT**. **No First Use** is a national doctrine, not a UN treaty India signed.
- 13. **Uniting for Peace** (GA Resolution **377(V)**, **1950**) lets the General Assembly recommend action if a veto paralyses the Security Council. Abstention is **not** a veto. The PRC replaced the ROC in China's UN seat in **1971**.
- 14. Collective **security** is the UN Chapter **VII** idea. Collective **defence** is NATO Article **5**. Swiss-style neutrality is **not** the same as non-alignment.
- 15. The UN has **six** principal organs: General Assembly, Security Council, ECOSOC, ICJ, Secretariat, and Trusteeship Council (inactive since **1994**). HQ is New York except the **ICJ at The Hague**.
- 16. **Bretton Woods 1944** created the **IMF** and **IBRD (World Bank)**. Both have headquarters in **Washington, D.C.** The World Bank is **not** headquartered in New York.
- 17. The **WTO** began in **1995** at Geneva (from **GATT 1947**). Core trade facts are **MFN** and **National Treatment**.
- 18. **WHO** is Geneva (**1948**). **UNESCO** is Paris (**1945**). **ILO** is Geneva (**1919**, tripartite). **ICJ** has **15** judges for **nine**-year terms at The Hague. India is **not** a party to the Rome Statute **ICC**.
- 19. **SAARC** has **eight** members (1985 Dhaka; HQ **Kathmandu**) and includes Pakistan and Maldives. **ASEAN** has **ten** members (HQ **Jakarta**); India is **not** a member. **BIMSTEC** has **seven** members (**1997**) and does **not** include Indonesia, Pakistan, China, or Maldives.
- 20. **G20** is **19 + EU + AU (from 2023)**. India held the presidency (प्रेसीडेंसी) in **2022–23**. The New Delhi logo's lotus with **seven** petals stands for **seven continents**. UP G20 venues included Agra, Varanasi, Greater Noida, and Lucknow — **not** Kanpur.
- 21. **BRICS** leaders' summits began in **2009**; South Africa joined around **2010/11**. The **NDB** is in **Shanghai**. The **10th** summit was Johannesburg **2018**. **2024** expansion brought in Egypt, Ethiopia, Iran, and UAE (Saudi Arabia invited).
- 22. The **SCO** grew from the **Shanghai Five** (**1996**) — China, Russia, Kazakhstan, Kyrgyzstan, Tajikistan (**no Uzbekistan** then). Uzbekistan joined at SCO's **2001** birth. India and Pakistan joined in **2017**; Iran in **2023**. RATS is in **Tashkent**; the Secretariat is in **Beijing**.
- 23. **IORA** HQ is in **Mauritius**. The **Commonwealth** has about **56** members with a London base; republics can remain members after **1949**. India is **out** of **APEC** and **OECD**.
- 24. UN Day is **24 October**. The UN has **six** official languages. Vijaya Lakshmi Pandit was UNGA President in **1953**. **UNDP / UNICEF** are programmes, not specialised agencies. **HDI** is a **UNDP** (यूएनडीपी) product, not an IMF product.
- 25. India's WHO Global Centre for Traditional Medicine is at **Jamnagar** (**2022**). The *Jadhav* case is an **ICJ** matter, not an ICC matter.
- 26. SAARC's last summit was Kathmandu **2014**. India walked out of **RCEP** in **November 2019**. India is **not** in the **G7** (guest only).
- 27. **NDB** (BRICS, Shanghai) is not **AIIB** (Beijing, China-led). India is a member of AIIB but NDB is the BRICS bank fact.
- 28. East Asia Summit includes India. Do not confuse EAS membership with ASEAN membership. ASEAN remains a ten-member club without India.
- 29. OIC membership does **not** include India. The League of Nations saw the US Senate refuse membership — a classic US foreign-policy trap.
- 30. **Five Eyes** is US–UK–Canada–Australia–New Zealand intelligence sharing. **CSTO** is Russia-led. **SEATO / CENTO** are dead. Warsaw Pact ended with the Cold War.
- 31. US foreign-policy milestones often asked are Monroe (**1823**), Truman containment (**1947**), NATO (**1949**), Nixon's China opening (**1972**), unipolar moment (**1991**), Pivot to Asia (**2011**), and later America First / AUKUS–Quad framing.
- 32. Connect Central Asia (**2012**) and the **2+2** format with the US, Japan, Australia, and Russia are standard India outreach facts beside Look/Act East and SAGAR.
- 33. **Article 51** (DPSP) directs the State to promote **international peace and security**, just and honourable relations, respect for international law and treaty obligations, and settlement of disputes by arbitration — the constitutional footing for foreign-policy ideals, not a Fundamental Right.

Must-score facts — Panchsheel, UN, groupings

India doctrine tags

Item	Lock
Panchsheel	29 Apr 1954 India–China Tibet trade
Bandung	1955 Afro-Asian echo
NAM	Movement; Belgrade 1961 (Nehru, Nasser, Tito...)
Non-alignment	Policy (≠ NAM the movement)

UN / alliances

Item	Lock
UNSC	15 = P5 + 10 elected (2 years)
G4	India, Japan, Germany, Brazil

Item	Lock
NATO	4 Apr 1949 ; Art. 5; HQ Brussels
QUAD	India–Japan–US–Australia (dialogue)
AUKUS	Australia–UK–US 2021 (subs)

Topic 22 — Constitutional Philosophy

Consolidated — 30 Must-Score Facts

- 1. The Preamble counts are **Justice 3, Liberty 5, Equality 2, and Fraternity 1**. The word **Federal** is **not** in the Preamble. The **42nd** Amendment added **Socialist, Secular, and integrity**.
- 2. **Constitutionalism** means limited government under a higher law. Merely having a written constitution booklet is **not** enough by itself.
- 3. **Constitutional morality** (Ambedkar (अम्बेडकर) in the Constituent Assembly (संविधान सभा)) means fidelity to constitutional norms, not whatever the street calls “morality.” It is **not** the same as “public morality” in Articles **19 / 25**.
- 4. Dicey’s Rule of Law has three limbs: no arbitrary power, equality before law, and (in the UK) rights from ordinary law rather than a special Bill of Rights. India takes the first two (Article **14**, judicial review, Articles **32 / 226**) and **rejects** the third.
- 5. Rule of Law itself is part of the **Basic Structure** (*Indira Gandhi*, **1975**). PIL is often treated as a practical path that helps weaker sections reach the courts.
- 6. Article **21**’s text is “**procedure established by law**” (Japan source). The US model is **due process** (5th/14th Amendments). India’s text was never rewritten to say “due process.”
- 7. *A.K. Gopalan* (**1950**) read Article 21 (अनुच्छेद 21) as any procedure in a valid law, with Fundamental Rights (मौलिक अधिकार) in silos. *Maneka Gandhi* (**1978**) requires a procedure that is **fair, just, and reasonable**, reading (रीडिंग) Articles **14, 19, and 21** together (the golden triangle).
- 8. After *Maneka*, Article 21 review is both **procedural** and **substantive**. Natural justice (*audi alteram partem, nemo judex*) is poured into Article 21 even though the text still says procedure established by law.
- 9. **Separation of powers** comes from Montesquieu. Vesting lines include Article **53** (executive), **79** (Parliament), and **124** (Supreme Court). The USA is rigid; India is **functional** with **fusion** of executive and legislature (Cabinet in the House).
- 10. *Ram Jawaya Kapur* (**1955**) rejected American-style rigid separation for India. Article **50** (DPSP (राज्य के नीति निर्देशक तत्व)) separates judiciary from executive in the **public services** only. Separation of powers is Basic Structure.
- 11. **Checks and balances** are the restraining teeth: judicial review, impeachment, no-confidence (अविश्वास प्रस्ताव), and the rule that ordinances must return to the House. CAG (भारत के नियंत्रक-महालेखापरीक्षक), Election Commission (निर्वाचन आयोग), and UPSC (संघ लोक सेवा आयोग) are constitutional brakes, not “extra-constitutional” toys.
- 12. The UK classic is **Parliamentary sovereignty**. The US *Marbury* line is strong judicial review. India follows **Constitutional supremacy**: the Constitution’s word is last.
- 13. The **24th** Amendment inserted Article **13(4)** so that a **368** amendment is not “law” under Article 13. The **42nd** tried to bar review of amendments through Articles **368(4)/(5)**; *Minerva Mills* (**1980**) struck that attempt.
- 14. **Judicial review** tests statutes, executive action, and constitutional amendments against the Constitution (including Basic Structure). It is **not** the same claim as “judicial supremacy.”
- 15. A **welfare state** pursues socio-economic goals; a **police state** stops at law and order. Article **38** (with **38(2)** via the 44th) and Part **IV** are the main welfare instruments. Article **37** makes DPSPs fundamental in governance though not directly enforceable.
- 16. High-yield DPSP facts include Article **40** (panchayats), **44** (UCC), **45** (early childhood), **47** (prohibition (प्रतिषेध)), **48** (cattle), and **48A** (environment (पर्यावरण)).
- 17. **Socialism** was named in the Preamble by the **42nd**, but Part IV already carried socialist content. Indian socialism is **democratic / mixed-economy**, not a USSR one-party textbook model. The **1991** reforms did not delete the Preamble word.
- 18. **Secularism** was named by the **42nd**, but Articles **25–28** already operated from 1950. Indian secularism is **positive** — equal respect, with Article **25(2)** reform power. *Bommai* (**1994**) treats secularism as Basic Structure. It is not theocracy and not a hard US “wall.”
- 19. **Democracy** means rule by the people with universal adult franchise and free and fair elections (Basic Structure). A **republic** means an **elected** Head of State (Article **54**), not a hereditary monarch. The UK can be a democracy without being a republic.
- 20. Preamble **Justice** is social, economic, and political. Social maps to Articles **15 / 17**; economic to Article **39**; political to Article **326**.
- 21. Preamble **Liberty** is five words: thought, expression, belief, faith, and worship. It is **not** the same list as Article **19**’s six freedoms, and it is **not** “liberty of person” under Article **21**.
- 22. Preamble **Equality** is equality of **status** and of **opportunity**. Status links to Articles **14 / 15 / 17**; opportunity links to Article **16**.
- 23. **Fraternity** assures dignity of the individual and the unity and integrity of the nation. Ambedkar warned that without fraternity, liberty and equality stay incomplete. The **42nd** added **integrity**. Duties in Article **51A(c)/(e)** echo the theme.
- 24. **Political sovereignty** rests with the people (“We, the People”). **Legal sovereignty** in India rests with the **Constitution**, which is why India is not a Dicey-UK parliamentary-sovereignty state.
- 25. **Sovereign** in the Preamble covers both internal supremacy and external independence. It is the first word in the SSSDR chain.
- 26. The French triad is Liberty, Equality, Fraternity. India prefixes **Justice** and keeps the three. Secular character was already in Basic Structure discussion before *Bommai* applied it to Article **356**.
- 27. Constituent power under Article **368** is not ordinary legislative power under Article **245**. Even Article 368 (अनुच्छेद 368) remains under the Basic Structure ceiling.
- 28. After *Maneka*, Article **21** has been read to include livelihood, privacy, health, shelter, and dignity. Privacy was treated as a Fundamental Right in *Puttaswamy* (**2017**).
- 29. Indian secularism is often summarised as **Sarva Dharma Sambhava** / equal respect — not a US establishment-clause wall and not State indifference to reform needs.
- 30. Rule by law (ruler uses statutes as a whip) is the trap opposite of Rule of Law (law binds the ruler too). Mark the second.

Must-score facts — Rule of Law, Art. 21, Basic Structure

Keywords / counts

Item	Lock
Preamble counts	J3 · L5 · E2 · F1
Federal in Preamble	No
Constitutionalism	Limited government under higher law
Constitutional morality	Ambedkar — fidelity to constitutional norms

Rule of Law / Art. 21

Item	Lock
Dicey limbs	No arbitrary power; equality before law; rights from ordinary law (UK)
Rule of Law	Basic Structure (<i>Indira Gandhi</i> 1975)
Art. 21 text	“Procedure established by law” (Japan)
US contrast	Due process

Item	Lock
<i>Gopalan</i> (1950)	Any procedure in valid law; rights in silos
<i>Maneka</i> (1978)	Fair, just, reasonable; procedural + substantive

Topic 23 — Constitutional & Legal Offices

Consolidated — 30 Must-Score Facts

1. The **Attorney General** (महान्यायवादी) (Article **76**) is the Union's first law officer. Qualification matches a **Supreme Court judge**. Tenure is during the **pleasure of the President**. Removal is **not** by judge-impeachment.
2. Under Article **88**, the Attorney General may speak in **both** Houses and their committees but has **no vote**. Private practice is allowed except against the Government of India or in a matter already advised on.
3. The Attorney General's oath is **not** a Third Schedule form. Pay is fixed by the President and is **not** a Second Schedule charged office like the CAG. The first AG was **M.C. Setalvad**.
4. The **Solicitor General** is **not** in the Constitution. The SG assists the AG, has **no** Article **88** right by that office, and is regulated by executive / Law Officers rules.
5. The **Advocate General** (महाधिवक्ता) (Article **165**) is the State's first law officer. Qualification matches a **High Court judge**. Appointment and pleasure are of the **Governor**. Article **177** allows speaking in the State House(s) without a vote.
6. There is **no** office called "Advocate General of India." Do not invent a Union AdvG.
7. The **CAG** (Articles **148–151**) is appointed by the President for **six years or age 65**, whichever is earlier. Removal is **like a Supreme Court judge**. Article **148(4)** bars further Union or State office after leaving the post.
8. The CAG takes a **Third Schedule** oath before the President. Salary is in the **Second Schedule** and charged. Union reports go President → Parliament; State reports go Governor → Legislature (Article **151**).
9. The Indian CAG audits **after** expenditure. The classic UK Comptroller could **block** payment first. The Public Accounts Committee examines CAG reports. An **Accountant General** is the CAG's field officer — not the Advocate General.
10. The Third Schedule covers ministers, House candidates/members, Supreme Court and High Court judges, and the CAG. It does **not** cover the President, Vice-President, Governor, AG, SG, Advocate General, or CEC.
11. The **Chief Election Commissioner** is appointed by the President. Under the **2023** Act, selection is by the Prime Minister, Lok Sabha (लोकसभा) Leader of Opposition, and a Cabinet Minister. The **CJI is not** on this panel (unlike the Lokpal (लोकपाल) panel).
12. CEC tenure is **six years or age 65**. The CEC is removed **like a Supreme Court judge**. Other Election Commissioners and Regional Commissioners are removed only on the **CEC's recommendation**. Votes are equal; removal protection is not.
13. The first CEC was **Sukumar Sen**. The first woman CEC was **V.S. Ramadevi (1990)**. An Election Commissioner may become CEC, with combined service capped at six years.
14. The **UPSC** (संघ लोक सेवा आयोग) Chairman is appointed by the President for **six years or age 65**. Removal under Article **317** follows a Supreme Court inquiry path. Under Article **319**, a UPSC Chair may take **no** further Union or State office.
15. A **State PSC** Chair is **appointed by the Governor** but **removed by the President** (after Supreme Court inquiry on misbehaviour). Extension of SPSC functions under Article **321** is by the **State Legislature**. A Joint PSC needs **Parliament** if the States request it.
16. UPPSC headquarters is **Prayagraj** (प्रयागराज). Do not confuse UPPSC with UPSC (Delhi) or with the State Election Commission (निर्वाचन आयोग).
17. The **Chief Justice of India** retires at **65**, takes oath before the **President**, and resigns to the **President**. Appointment convention is seniority (broken in **1973** and **1977**). If President and Vice-President are both vacant, the CJI can act as President and then takes the Article **60** oath.
18. The Supreme Court Collegium is **CJI + four** (चातुर्गम). The High Court Collegium is **CJI + two**. The **99th** Amendment's NJAC was struck on **16 October 2015**.
19. A High Court Chief Justice retires at **62**, takes oath before the **Governor**, and resigns to the **President**. Article **223** covers an acting Chief Justice. Outsider Chief Justices are a convention, not a constitutional bar.
20. Resignation facts: Supreme Court / High Court judges, CJI, High Court CJ, CAG, CEC, and UPSC resign to the **President**. An SPSC member or Advocate General resigns to the **Governor**. High Court **oath** (Governor) is not the same as High Court **resignation** (President).
21. The President resigns to the **Vice-President** (Article **56**). The Vice-President resigns to the **President** (Article **67**). A Governor resigns to the **President** (Article **156**). The Lok Sabha Speaker resigns to the **Deputy Speaker** (Article **94**), **not** to the President.
22. Article **319** rows: UPSC Chair = total further-office bar; UPSC member may become UPSC Chair or an SPSC Chair; SPSC Chair may become UPSC Chair or another SPSC Chair.
23. The State Election Commission under Article **243K** is **not** the Election Commission under Article **324**. Local-body polls are SEC; Parliament and State legislature polls are ECI.
24. A 2024 trap mixes Article **324** (ECI) with Article **165** (Advocate General). Keep the numbers with the offices.
25. AG and Advocate General hold office during **pleasure**. CAG and judges have hard removal paths. Pleasure is not impeachment.
26. Contempt motions under Contempt of Courts Act section **15** may need AG/SG consent in some criminal-contempt paths. That consent power does **not** make the law officer a judge.
27. Regional Commissioners under Article **324** share the "removal only on CEC recommendation" fact with other Election Commissioners.
28. CAG form of accounts advice sits in Article **150**. Do not invent a separate "Advocate General of accounts."
29. Solicitor General has no Article **88** speaking right by constitutional text. If the SG appears in Parliament contexts, that is not the AG's Article 88 status.
30. Study every office on six axes: appointment, removal, qualification, tenure, oath, and resign-to-whom. One missing axis is the usual prelims trap.

Must-score facts — AG, SG, AdvG, CAG

Union law officers

Office	Lock
Attorney General	Art. 76 ; SC-judge qualification
Art. 88	Speak in both Houses / committees; no vote
AG oath / pay	Not Third Schedule; pay fixed by President
Solicitor General	Not in Constitution; assists AG; no Art. 88

State / audit

Office	Lock
Advocate General	Art. 165 ; HC-judge qualification
"AdvG of India"	Does not exist
CAG	Arts. 148–151 ; 6 yrs / age 65
CAG oath / salary	Third Schedule; Second Schedule; charged

Topic 24 — Important Supreme Court Judgments

Consolidated — 32 Must-Score Facts

1. *A.K. Gopalan* (1950) held that Article 21 is satisfied by any procedure (प्रक्रिया) in a valid law and read Fundamental Rights (मौलिक अधिकार) in silos. *Maneka Gandhi* (1978) requires a **fair, just, and reasonable** procedure and reads Articles 14, 19, and 21 together.
2. *ADM Jabalpur* (1976) held that habeas corpus (बन्दी प्रत्यक्षीकरण) fails if Article 21 (अनुच्छेद 21) is suspended in Emergency; Justice **Khanna** dissented. The **44th (44वाँ संशोधन) Amendment** (44वाँ संशोधन) later blocked suspension of Articles 20 and 21. *Puttaswamy* (2017) said the *Jabalpur* majority was wrong.
3. *Shankari Prasad* (1951) upheld the First Amendment and said Article 368 can amend Fundamental Rights. *Sajjan Singh* (1965) upheld the Seventeenth Amendment; Mudholkar hinted at “basic features.”
4. *Golaknath* (1967, 11-judge, 6:5) held that Fundamental Rights **cannot** be amended, with prospective overruling. It is **not** the Basic Structure case.
5. The **24th Amendment** (1971) inserted Article 13(4) so a 368 amendment is not “law” under Article 13. It came **before** *Kesavananda*.
6. *Kesavananda Bharati* (24 April 1973, 13-judge, 7:6) held that Parliament **can** amend Fundamental Rights but **cannot** destroy the **Basic Structure**. This is the Basic Structure fact.
7. The four-case amendment order is 1951 → 1965 → 1967 → 1973 (*Shankari* → *Sajjan* → *Golaknath* → *Kesavananda*).
8. *Indira Nehru Gandhi* (1975) struck the Thirty-ninth Amendment’s Article 329A(4)/(5) election-shield clauses and added Rule of Law / free-fair elections themes to Basic Structure talk.
9. *Minerva Mills* (1980) struck the Forty-second Amendment’s Articles 368(4)/(5) and kept Article 31C limited to Article 39(b)/(c). It locked limited amending power and FR–DPSP (राज्य के नीति निदेशक तत्व) harmony.
10. *Berubari* (1960) held that ceding Indian territory needs a **constitutional amendment**, not an ordinary Act, and then treated the Preamble (प्रस्तावना) as **not** part of the Constitution. *Kesavananda* later held the Preamble **is** part.
11. The **Ninth Schedule** (नौवीं अनुसूची) (First Amendment, 1951) is a list-shield for laws. The **Ninth Amendment** (1960) is the *Berubari* boundary amendment. Do not swap Schedule and Amendment.
12. After **24 April 1973**, parking a law in the Ninth Schedule does not save it if it damages Basic Structure (*Waman Rao* 1981; *I.R. Coelho* 2007).
13. Judges Cases: **1981** First Judges gave executive primacy; **1993** Second Judges created Collegium (**CJI + 2**); **1998** Third Judges expanded SC Collegium to **CJI + 4** and HC to **CJI + 2**.
14. The **99th Amendment’s NJAC** was struck on **16 October 2015 (4:1)** because judicial independence is Basic Structure. Collegium is judge-made and not written into the original text; NJAC was written and fell.
15. *S.R. Bommai* (1994) made Article 356 justiciable, locked majority to the **floor test**, barred dissolving the Assembly before parliamentary approval, and treated secularism as Basic Structure for misuse of 356.
16. *Rameshwar Prasad* (2006) struck Bihar Assembly dissolution based on a mere fear of horse-trading. *Nabam Rebia* (2016) held that a Governor cannot scramble the House calendar to help one faction defeat the Speaker.
17. *Kihoto Hollohan* (1992) upheld the Tenth Schedule, struck paragraph 7’s total court ouster, and held that the Speaker’s defection order is judicially reviewable.
18. *Lily Thomas* (2013) struck RPA section 8(4)’s three-month cushion for sitting (बैठक) legislators. A conviction of **two years or more** under section 8(3) brings immediate disqualification.
19. *Indra Sawhney* (1992) upheld **27% OBC** (अन्य पिछड़ा वर्ग) reservation, locked a **50% ceiling**, excluded the creamy layer, and barred reservation in **promotion**. The **77th Amendment** later restored SC/ST promotion via Article 16(4A).
20. *K.S. Puttaswamy* (2017, nine judges) held that **privacy** is a Fundamental Right under Article 21.
21. *Shreya Singhal* (2015) struck IT Act section 66A as vague and as chilling Article 19(1)(a).
22. *Vishaka* (1997) laid workplace sexual-harassment guidelines under Articles 14 / 15 / 19 / 21 until the **POSH Act 2013** took over as statute.
23. *Navtej Singh Johar* (2018) held section 377 IPC unconstitutional for consensual adult sex. It is **not** “Article 377” (a transitory CAG (भारत के नियंत्रक-महालेखापरीक्षक) provision).
24. *Joseph Shine* (2018) struck section 497 IPC adultery as a crime. Adultery can still matter as a **civil** matrimonial ground.
25. *M.C. Mehta* Oleum (1986) locked **absolute (निरपेक्ष) liability** for hazardous industry and read a clean environment (पर्यावरण) into Article 21. Absolute liability is stricter than English *Rylands* strict liability.
26. Sikri’s early Basic Structure list included constitutional supremacy, republican and democratic form, secular character, separation of powers, and federal character. Later cases added Rule of Law, judicial review, free and fair elections, limited amending power, FR–DPSP harmony, and judicial independence.
27. *Golaknath* froze Part III (मौलिक अधिकार); *Kesavananda* restored amending power with a Basic Structure ceiling. Marking *Golaknath* as “Basic Structure invented” is the classic trap.
28. Emergency rights line: *Gopalan* → *Jabalpur* → *Maneka* / 44th / *Puttaswamy*. Amendment line: *Shankari* → *Sajjan* → *Golaknath* → 24th → *Kesavananda* → *Indira* → *Minerva*.
29. Ninth Schedule review after the *Kesavananda* date is still open for Basic Structure damage. Pre-cut-off and post-cut-off timing matters in *Waman Rao* / *Coelho* questions.
30. Collegium versus NJAC is not “which is older in the text.” Collegium is precedent; NJAC was constitutional text and was struck for independence reasons.
31. Floor test (*Bommai*) is the majority fact for Assembly confidence. Raj Bhavan letters and media claims do not replace a House vote.
32. Rights-expansion neighbours often tested together are privacy (*Puttaswamy*), expression online (*Shreya Singhal*), sexual autonomy (*Navtej*), gender equality in adultery law (*Joseph Shine*), and environmental absolute liability (*Mehta*).

Must-score facts — case ↔ holding

Amendment / Basic Structure chain

Case / step	Lock
<i>Shankari Prasad</i> (1951)	368 can amend FR
<i>Golaknath</i> (1967)	FR cannot be amended (6:5)
24th (1971)	13(4) — 368 amendment not “law” under 13
<i>Kesavananda</i> (1973)	Can amend FR but not Basic Structure (7:6)
<i>Indira Gandhi</i> (1975)	Struck 39th election-shield clauses; Rule of Law in BS
<i>Minerva Mills</i> (1980)	Restored limits after 42nd excesses

Rights / Emergency / privacy

Case	Lock
<i>A.K. Gopalan</i> (1950)	Art. 21 = any procedure in valid law

Case	Lock
<i>Maneka Gandhi</i> (1978)	Fair, just, reasonable procedure
<i>ADM Jabalpur</i> (1976)	Habeas fails if 21 suspended (later overruled line)
<i>Puttaswamy</i> (2017)	Privacy = FR under 21
<i>Bommai</i> (1994)	Floor test for majority; federalism

Order trap

1951 → 1965 → 1967 → 1973 (*Shankari* → *Sajjan* → *Golaknath* → *Kesavananda*)

Consolidated — 32 Must-Score Facts

- 1. Uttar Pradesh's **capital** is **Lucknow** (लखनऊ) (Raj Bhavan and Vidhan Bhavan). The High Court's **principal seat** is **Prayagraj** (प्रयागराज). Lucknow hosts a **Bench**, not a second High Court.
- 2. The first Governor of the United Provinces / Uttar Pradesh was **Sarojini Naidu (15 August 1947)**. She was the first woman Governor of an Indian State and died in office on **2 March 1949**.
- 3. The first Chief Minister was **Govind Ballabh Pant**. The first woman Chief Minister was **Sucheta Kripalani (1963)**. Do not swap Governor and CM firsts.
- 4. Under the **91st** Amendment, the Council of Ministers (including the Chief Minister) cannot exceed **15%** of the Assembly strength. For UP's **403**, that is about **60**. The floor is **12**.
- 5. Uttar Pradesh has **no Article 371–371J** special provision. The State Secretariat is at **Lucknow**.
- 6. The Legislative Assembly has **403** elected members — the largest in India. Before **9 November 2000** it was **425**. Assembly membership age is **25**; term is **five years**. Money Bills originate only here.
- 7. The Legislative Council has **100** members. It cannot be dissolved; **one-third** retire every **two years**; membership age is **30**.
- 8. Council composition is **36** local bodies + **8** graduates + **8** teachers + **36** MLAs + **12** Governor nominees = **100**. Article **171** caps a Council at one-third of the Assembly (**134**) and a minimum of **40**; UP chose **100**.
- 9. India has **six** bicameral States: Andhra Pradesh, Bihar, Karnataka, Maharashtra, Telangana, and Uttar Pradesh.
- 10. Uttar Pradesh sends **80** Lok Sabha members and **31** Rajya Sabha members — both the largest State contingents. Before Uttarakhand the figures were **85** and **34**.
- 11. Lok Sabha reserved seats from UP are **17 SC and 0 ST**. Rajya Sabha members from UP are elected by the **403** MLAs through STV. UP MLA Presidential-vote value is the highest among States (textbook **208** on the 1971-population formula).
- 12. Allahabad High Court traces to the Indian High Courts Act **1861** and Letters Patent of **17 March 1866** for the North-Western Provinces. It first sat at **Agra (1866)**, moved to Allahabad in **1869**, and took the "at Allahabad" name style in **1919**. First Chief Justice was **Walter Morgan**.
- 13. The Lucknow Bench comes from the United Provinces High Courts (Amalgamation) Order **1948**, merging the Chief Court of Oudh (**1925**). Sanctioned strength is about **160** — the largest High Court. Jurisdiction is UP only; Uttarakhand has the **Nainital** (नैनीताल) High Court from **2000**.
- 14. Allahabad High Court is **not** one of the **1862** Chartered High Courts (Bombay, Calcutta, Madras).
- 15. Official language is **Hindi in Devanagari** (UP Official Language Act **1951**). **Urdu** became the second official language in **1989**. Under Union Official Language (संघ राजभाषा) Rules **1976**, UP is **Region A**.
- 16. Uttarakhand was created by the UP Reorganisation Act **2000** on **9 November 2000** (then named **Uttaranchal**). The rename to **Uttarakhand** (उत्तराखंड) took effect on **1 January 2007**. It was the **27th** State; **13** districts were carved out.
- 17. After reorganisation, UP Assembly fell **425 → 403**, Lok Sabha **85 → 80**, Rajya Sabha **34 → 31**. Uttarakhand's Assembly is **70**.
- 18. Uttar Pradesh has **18** Commissioner divisions and **75** districts. Faizabad division was renamed **Ayodhya** (अयोध्या). Devipatan division (HQ **Gonda**) covers Bahraich, Balrampur, Gonda, and Shravasti.
- 19. A common Assembly-strength trap pairs Manipur with **62**; Manipur's Assembly is **60**. UP **403** and Uttarakhand **70** are the correct neighbours in that set.
- 20. **UPPSC** HQ is **Prayagraj** (from **1937**). The Governor appoints; the **President** removes after a Supreme Court path on misbehaviour. Age limit is **62** / six years. Functions are extended by the **UP Legislature** under Article **321**.
- 21. **UPPSC** is not **UPSC** (संघ लोक सेवा आयोग) (Delhi), not **UP SEC** (राज्य निर्वाचन आयोग) (Lucknow), and not the Accountant General.
- 22. The **UP State Election Commission** (Lucknow) works under Articles **243K and 243ZA**. The Governor appoints; removal is like a **High Court judge**. It conducts **Panchayat and urban local body** polls — **not** MLA, MP, or Presidential elections.
- 23. There is no "Panchayati Raj Commission of India" running UP local polls. Local polls are SEC; legislature polls are ECI.
- 24. The **UP State Finance Commission** is constituted by the Governor every **five years** (Article **243I**) and also reviews municipal finances (Article **243Y**). The report goes Governor → both Houses with an action-taken note. It is not the Union Finance Commission (Article **280**).
- 25. The **UP Lokayukta** is under the U.P. Lokayukta and Up-Lokayukta Act **1975**. Appointment involves the Governor after the Chief Justice of Allahabad High Court and the Leader of Opposition. It is statutory, not a criminal court, and not the Union **Lokpal** (लोकपाल) (**2013**). Maharashtra (**1971**) had the first State Lokayukta Act in India.
- 26. Panchayati Raj tiers are Gram Panchayat (**Pradhan**) → **Kshetra Panchayat** (क्षेत्र पंचायत) (**Pramukh**) → Zila Panchayat (**Adhyaksha**). Statutes are the **1947** village Act and the **1961** Kshetra-Zila Act. There are **75** Zila Panchayats.
- 27. Women get **50%** reservation in UP PRIs/ULBs by State law (Constitution's floor remains one-third). Panchayat member age is **21**. Gram Sabha (ग्राम सभा) means **registered voters**, not every resident. Nyaya (न्याय) Panchayat is not a 73rd constitutional tier.
- 28. UP has **no Fifth Schedule** (5वीं अनुसूची) areas, so **PESA does not apply**. Every district has a District Planning Committee (Article **243ZD**, at least four-fifths elected).
- 29. Urban local bodies are **Nagar Nigam** (Municipal Corporation Act **1959**), **Nagar Palika Parishad**, and **Nagar Panchayat** (नगर पंचायत) (Municipalities Act **1916**). The Mayor (महापौर) is the political head; the **Nagar Ayukt / Commissioner** is the executive.
- 30. Cantonment Boards are under **Defence**, not the 74th municipal track. Development authorities such as **Noida, Greater Noida, and YEIDA** are industrial township exceptions under Article **243Q** — **not** Nagar Nigams.
- 31. Lucknow runs the political executive; Prayagraj runs the High Court and UPPSC. That geography-of-power split is a recurring prelims trap.
- 32. Reorganisation arithmetic (**425/85/34 → 403/80/31**) plus Council **100** and bicameral status are the densest number facts on this sheet.

Must-score facts — UP polity tags

Capitals / firsts

Item	Lock
Capital	Lucknow (Raj Bhavan / Vidhan Bhavan)
HC principal seat	Prayagraj (Allahabad)
First Governor	Sarojini Naidu (15 Aug 1947)
First CM	Govind Ballabh Pant
First woman CM	Sucheta Kripalani

Legislature / CoM

Item	Lock
Assembly	403 elected (largest in India)

Item	Lock
Council	100 ; 1/3 retire every 2 years
Council mix	36 local + 8 graduates + 8 teachers + 36 MLAs + 12 Governor nominees
CoM size cap	15% of Assembly (91st)
Art. 371 series	None for UP
Secretariat	Lucknow

Pre-Uttarakhand

Item	Lock
Before 9 Nov 2000	Larger Assembly strength (Uttarakhand carved out)

Topic 26 — One-Liner Revision

Current Affairs (what the year actually tests)

Year	Fact
2025	Part XI ≠ Municipalities; 8th Schedule (अष्टम अनुसूची) Bhojpuri OUT ; 42nd (42वाँ) Preamble (प्रस्तावना) = Socialist + Secular
2024	<i>Kesavananda</i> (केशवानंद भारती 1973) chronology; 42nd = 1976 ; GST (वस्तु एवं सेवा कर) = 101st
2023	Schedule NOT-matched (9th ≠ RS seats); Panchayat polls = SEC
2022	3rd/4th/7th/8th match; RTE = 86th not 103rd
2021	<i>Golaknath</i> (गोलकनाथ 1967) → 24th → <i>Kesavananda</i> → 42nd
2023	106th women 33% — not yet in force

Current Affairs (bodies · Parliament)

Year	Fact
2024	NCBC (राष्ट्रीय पिछड़ा वर्ग आयोग) matched to 340 as the paper's "least-wrong" — still learn 338B vs 340
2024	UPSC (संघ लोक सेवा आयोग) functions = four (चातुर्धर्म) sources ; Zero Hour (शून्य काल) already locked 2021
2023	Panchayat polls = SEC , not ECI, not a "PR Commission of India"
2023	CEC Act panel without CJI
2021	ISC = Sarkaria (सरकारिया आयोग); UPPSC (उत्तर प्रदेश लोक सेवा आयोग) extend = Legislature
2018	<i>Navtej</i> (नवतेज जौहर) = s.377 IPC

Quick Revision — Spine Only

PARTS: III=FR · IV=DPSP · IVA=Duties · V=Union · VI=States · VIII=UTs
IX / IXA / IXB = Panchayats / Municipalities / Cooperatives
X=Scheduled & Tribal Areas · XI=Union-State (NOT municipalities/tribunals)
XIVA=Tribunals · XV=Elections · XVIII=Emergency · XX=Amendment · XXI=371-series
VII=repealed. Count = 25 Parts (lettered ones included). Original 1950 = 22.

SCHEDULES (1→12): Territories · Emoluments · Oaths · RS seats · 5th Areas/STs · 6th AMTM
· Lists · 22 languages · 9th validation (1st Amd) · 10th defection (52nd) · 11th=29 · 12th=18
8th: Bhojpuri OUT. Nepali, Dogri, Bodo, Maithili, Santhali IN.

ARTICLES (must): 1 Union of States · 3 Parliament alters States · 12 State · 13 void laws
14–18 equality · 19 six freedoms · 21 life · 21A RTE · 32 SC writs · 51A duties
72/161 pardon · 74 aid-advice · 76 AG · 110 Money Bill · 123 Ordinance
148 CAG · 226 HC writ (wider) · 263 ISC · 280 FC · 300A property
312 AIS · 324 EC · 352/356/360 Emergency · 368 Amendment · 371–371J · 393 short title

WRITS: Habeas Corpus = produce the detained body · Mandamus = compel a public duty
Prohibition = stop a lower court BEFORE it decides · Certiorari = quash AFTER it has decided
Quo Warranto = by what authority do you hold this public office
Art. 32 = Supreme Court, Fundamental Rights only (itself a FR). Art. 226 = High Court, FR + any other purpose (wider). Habeas even against

EMERGENCY: 352 war/aggression/armed rebellion · 356 State machinery · 360 finance (never used)
358 = Art.19 auto (war/aggression only) · 359 = enforceability; 20 & 21 never sleep (44th)

ELECTIONS: 324 ECI · 325 one roll · 326 adult suffrage 18 (61st) · 329 bar + election petition
54 President = elected MPs + elected MLAs · 66 VP = both Houses, no MLAs
243K / 243ZA = SEC (not ECI)

AMENDMENTS: 1st 1951 (15(4)+9th Sch) · 7th 1956 SRC · 24th 1971 13(4) · 42nd 1976 mini
44th 1978 undo · 52nd 1985 10th Sch · 61st 18y · 73/74 1992 · 86th 21A · 101st GST · 103rd EWS · 106th women

BORROWED: UK Parliament/writs · USA FR/judicial review · Ireland DPSP · Canada residuary/strong Centre
Australia Concurrent + joint sitting · Japan “procedure established by law” · France LEF + Republic
Weimar FR-suspend · USSR Duties + justice triad · South Africa 368 procedure + RS election

PRECEDENCE (Warrant 1979, ceremonial): 1 Pres · 2 VP · 3 PM · 4 Gov(in state) · 5 ex-Pres · 6 CJI=Speaker
7 CabMin/CM(in state)/ex-PM/LoP · 9 SC judges · 9A CEC/CAG/UPSC · 10 Dy RS/LS · 11 AG — NOT succession

Confused pairs

A	B	Fact	Hindi Terminology
Part XI	Part IXA / XIVA	Union-State relations · not Municipalities · not Tribunals	भाग XI (संबंध) / भाग IXA (नगरपालिका)
4th Schedule	9th Schedule	RS seats vs validation of Acts	चौथी (राज्यसभा सीट) / 9वीं अनुसूची
5th Schedule	6th Schedule	Scheduled Areas (many States) vs AMTM Autonomous Councils	5वीं (अनुसूचित क्षेत्र) / 6वीं अनुसूची (AMTM)
11th / 12th	counts	29 Panchayat vs 18 Municipality	11वीं (29 विषय) / 12वीं (18 विषय)

A	B	Fact	Hindi Terminology
Art. 32	Art. 226	SC, FR only vs HC, wider	अनु. 32 (सर्वोच्च न्यायालय) / अनु. 226 (उच्च न्यायालय)
Art. 54	Art. 66	President: MPs+MLAs · VP: Parliament only	राष्ट्रपति निर्वाचन मण्डल / उपराष्ट्रपति
Precedence	Succession	Warrant 1979 ceremonial · not Art. 56–62 line	वरीयता क्रम / उत्तराधिकार क्रम
CJI	Speaker	Same rank — 6	मुख्य न्यायाधीश एवं लोकसभा अध्यक्ष (समान रैंक 6)
Cabinet Minister	AG	Minister 7 · AG 11	कैबिनेट मंत्री (7) / महान्यायवादी (11)
SC judge	CEC/CAG	9 vs 9A	सर्वोच्च न्यायालय न्यायाधीश (9) / कैग व चुनाव आयुक्त (9A)
Art. 352	356 / 360	National vs State vs Financial	राष्ट्रीय / राज्य (राष्ट्रपति शासन) / वित्तीय आपातकाल
Prohibition	Certiorari	Before the order vs after	प्रतिषेध (निर्णय पूर्व) / उत्प्रेषण (निर्णय पश्चात)
3rd Schedule	Arts. 60 / 69 / 159	Ministers/MPs/judges/CAG vs President / VP / Governor	तीसरी अनुसूची शपथ / संवैधानिक विशिष्ट शपथ
42nd	44th	Mini-Constitution 1976 vs Emergency rewrite 1978	42वां (1976) / 44वां संशोधन (1978)
9th Amendment	9th Schedule	Berubari 1960 vs 1st Amd 1951 list of Acts	9वां संशोधन (1960) / 9वीं अनुसूची (1951)
35th's old 10th Sch	52nd's 10th Sch	Sikkim associate-State terms (repealed 36th) vs defection	सिक्किम सह-राज्य / दल-बदल विरोधी कानून

Frame

Every row below is meant to be readable **alone**. If a cell only said “12 State” or “HC = produce body”, that is the confusion this sheet now kills: **Habeas Corpus** (बन्दी प्रत्यक्षीकरण) is the writ; **High Court** is the court. Abbreviations are expanded in the tables.

Parts of the Constitution

Originally **22** Parts (1950). Now **25** (IVA, IXA (नगरपालिका), IXB (सहकारिता), XIVA added; **VII repealed**).

Part	Subject
I	Union and its Territory
II	Citizenship
III	Fundamental Rights (मौलिक अधिकार)
IV	Directive Principles (राज्य के नीति निदेशक तत्व) of State Policy
IVA	Fundamental Duties (मौलिक कर्तव्य) (42nd)
V	The Union — President, VP, Council of Ministers, Attorney-General, Parliament, Supreme Court, CAG (भारत के नियंत्रक-महालेखापरीक्षक)
VI	The States — Governor, State CoM, Advocate-General, State Legislature, High Courts
VII	Repealed (Part-B States)
VIII	Union Territories
IX	Panchayats (73rd)
IXA	Municipalities (74th)
IXB	Cooperative Societies (97th)
X	Scheduled and Tribal (आदिवासी) Areas
XI	Relations between the Union and the States (legislative / administrative / Arts. 245–263). Not municipalities, not tribunals
XII	Finance, Property, Contracts, Suits
XIII	Trade (पण्यध्वक्ष), Commerce and Intercourse within India (Arts. 301–307). Attorney-General is not here — he is Part V , Art. 76
XIV	Services under the Union and the States
XIVA	Tribunals (42nd)
XV	Elections
XVI	Special Provisions relating to certain Classes
XVII	Official Language
XVIII	Emergency Provisions
XIX	Miscellaneous
XX	Amendment of the Constitution
XXI	Temporary, Transitional and Special Provisions (371–371J)
XXII	Short Title, Commencement, Authoritative Text, Repeals

Schedules (1 to 12)

Originally **8**. Now **12**.

Sch.	Subject	Born
1	Names / territories of States & UTs	Original
2	Emoluments — President, Governors, Speakers, SC/HC judges, CAG	Original
3	Forms of Oaths or Affirmations	Original
4	Rajya Sabha (राज्यसभा) seat allocation	Original
5	Administration of Scheduled Areas and Scheduled Tribes in States other than the 6th-Schedule areas. Governor + Tribes Advisory Council. UP is not in it	Original
6	Autonomous District / Regional Councils in the tribal areas of Assam, Meghalaya (मेघालय), Tripura, Mizoram only (remember AMTM). Not UP, not the Fifth-Schedule States	Original
7	Union List (संघ सूची) / State List (राज्य सूची) / Concurrent List (समवर्ती सूची) — who may legislate on what (Art. 246)	Original
8	Languages recognised by the Constitution — now 22 (started with 14)	Original
9	Acts parked here were meant to be immune from Fundamental-Rights attack (land reform). Added by the 1st Amendment, 1951 with 13 Acts. Not the 9th <i>Amendment</i> (that is Berubari 1960)	1st Amd, 1951

Sch.	Subject	Born
10	Anti-defection — when an MP/MLA is disqualified for leaving the party. 52nd Amendment, 1985 . (An older 10th Schedule for Sikkim's "associate State" terms was repealed by the 36th)	52nd Amd, 1985
11	Panchayats — 29 subjects	73rd, 1992
12	Municipalities — 18 subjects	74th, 1992

8th Schedule — 22 languages. Original **14**. Additions: **Sindhi** (21st, 1967) · **Konkani, Manipuri (मणिपुरी), Nepali** (71st, 1992) · **Bodo, Dogri, Maithili, Santhali** (92nd, 2003). **Oriya** renamed **Odia** (96th, 2011). **Not in it:** Bhojpuri, Rajasthani, English. The 22: Assamese, Bengali, Bodo, Dogri, Gujarati, Hindi, Kannada, Kashmiri, Konkani, Maithili, Malayalam, Manipuri, Marathi, Nepali, Odia, Punjabi, Sanskrit, Santhali, Sindhi, Tamil, Telugu, Urdu.

9th Schedule (9वीं अनुसूची) judicial review: *I.R. Coelho* (2007) — entries **after 24 Apr 1973** still face **basic structure**.

Two different 10th Schedules: 35th Amd's Sikkim-associate terms (repealed by **36th**) ≠ today's **defection** 10th (**52nd**).

5th vs 6th: UP has **neither**. 6th = AMTM only.

Important Articles — number → one line

Union, territory, citizenship, FR, DPSP (राज्य के नीति निर्देशक तत्व), duties

Art.	One-liner
1	India, that is Bharat, is a Union of States (indestructible Union; States can be reorganised)
2	Parliament may by law admit new States into the Union or establish new States
3	Parliament may form a new State, change area/boundary/name. President's recommendation needed. The concerned State Legislature's view is sought, not binding
4	A law under Arts. 2–3 may amend the 1st and 4th Schedules and is not treated as a constitutional amendment under 368
5	Who was a citizen on 26 Jan 1950 (domicile + birth / parent / 5 years' residence)
6–8	Migrants from Pakistan (cut-off 19 July 1948) and persons of Indian origin abroad
9	Taking a foreign citizenship voluntarily → not a citizen under 5–8
11	Parliament decides acquisition/termination of citizenship — Citizenship Act, 1955 lives here
12	Who is "State" for Fundamental Rights: Union and State governments and legislatures, local bodies, and other authorities under Gol's control
13	A law inconsistent with Fundamental Rights is void to that extent. 13(4) (24th Amd): a 368 amendment is not "law" under 13 — so it is not automatically void for touching FR. Basic Structure still caps it
14	Equality before law (UK idea) + equal protection of laws (US idea). Reasonable classification allowed; class legislation not
15	No discrimination on religion, race, caste, sex, place of birth . 15(4) = special provision for SEBCs/SC/ST (1st Amd, after <i>Champakam</i>). 15(6) = EWS (103rd). Residence is not a 15 ground (that extra ground is in 16)
16	Equality of opportunity in public employment . 16(4) backward-class reservation; 16(6) EWS. Parliament may add a residence condition
17	Untouchability abolished; practice is a punishable offence (Protection of Civil Rights Act, 1955)
18	No titles except military/academic. Bharat Ratna (भारत रत्न) / Padma (पद्म) are not "titles" in this sense
19	Six freedoms, citizens only: speech, assembly, association, movement, residence, profession. 19(1)(f) property was deleted by the 44th (44वां संशोधन) . Each freedom has reasonable restrictions in 19(2)–(6)
20	Three criminal protections, for citizens and foreigners : (1) no ex post facto criminal law (2) no double jeopardy (3) no self-incrimination
21	No person shall be deprived of life or personal liberty except according to procedure (प्रक्रिया) established by law (Japanese phrase). <i>Gopalan</i> 1950 = any procedure in a valid Act. <i>Maneka</i> 1978 = that procedure must be fair, just, reasonable . The Constitution still does not use the US words "due process"
21A	Free and compulsory education for children 6–14 . Inserted by 86th Amendment, 2002 ; RTE Act 2009
22	Ordinary arrest: grounds, lawyer, produce before a magistrate within 24 hours . 22(3)–(7) = separate regime for preventive detention
23	Traffic in human beings, <i>begar</i> (बेगार) and forced labour banned
24	No child below 14 in a factory (फैक्टरी), mine, or other hazardous employment
25	Freedom of conscience — profess, practise, propagate religion (subject to public order, morality, health)
26	Every religious denomination may manage its own religious affairs and institutions
27	No one can be forced to pay a tax whose proceeds go to a particular religion
28	No religious instruction in a school wholly maintained by the State
29	Any section of citizens may conserve its language/script (लिपि)/culture. No denial of admission to State-aided institutions on religion/race/caste/language
30	Religious or linguistic minorities may establish and administer educational institutions
31A	Saves laws taking estates (zamindari / agrarian reform) from being struck under Arts. 14 and 19
31B	An Act listed in the 9th Schedule cannot be void only for violating Fundamental Rights — later limited by <i>I.R. Coelho</i> : entries after 24 Apr 1973 still face basic structure
31C	A law giving effect to DPSP 39(b) and 39(c) (resources for the common good / no concentration of wealth) is saved from Arts. 14 and 19 . 42nd tried to extend this to all DPSP; <i>Minerva Mills</i> cut it back to 39(b)(c)
32	Right to move the Supreme Court for Fundamental Rights — five writs (पाँच प्रकार की रिटें). Ambedkar (अम्बेडकर): heart and soul. Itself a Fundamental Right
33	Parliament may restrict/abrogate FR of armed forces, police, intelligence, to keep discipline
34	Parliament may indemnify acts done when martial law is in force in an area
35	Only Parliament (not States) can make the laws needed for 16(3), 32, 33, 34 and punishments for 17/23
36	"State" in Part IV (नीति निर्देशक) has the same meaning as Art. 12
37	DPSP are not enforceable in court, but are fundamental in the governance of the country
38	Secure a social order for welfare; 38(2) (44th) minimise inequalities of income/status
39	Livelihood; 39(b) ownership of resources distributed for the common good; 39(c) no concentration of wealth. These two are the 31C pair
39A	Equal justice and free legal aid — 42nd
40	Organise village panchayats — the seed of the 73rd / Part IX (भाग IX)
43A	Workers' participation in management — 42nd

Art.	One-liner
43B	Promotion of cooperative societies — 97th
44	State shall endeavour to secure a Uniform Civil Code
45	After 86th: early childhood care and education for children below 6 (6–14 moved to 21A)
48A	Protect and improve the environment (पर्यावरण); safeguard forests and wildlife — 42nd
50	Separate the judiciary from the executive in the State's public services
51	International peace, just relations, respect for international law, settlement of disputes by arbitration
51A	11 Fundamental Duties. 42nd added 10 ; 51A(k) (parent to educate the child 6–14) added by 86th

Union / State organs, local bodies, Centre–State, finance, services

Art.	One-liner
52	There shall be a President of India
53	Union executive power is vested in the President
54	President is elected by elected MPs of both Houses + elected MLAs of States (and of Delhi & Puducherry). Nominated members do not vote. This is not how the Vice-President is elected
55	Manner: proportional representation by single transferable vote ; secret ballot
60	President's oath — administered by the Chief Justice of India — form is in Art. 60 itself, not the 3rd Schedule
61	Impeachment only for violation of the Constitution . Charge by either House; passed by two-thirds (ते-भाग) of the total membership (सदन की कुल सदस्य संख्या का) of that House; the other House investigates
63–64	There shall be a Vice-President; he is ex-officio Chairman of the Rajya Sabha
66	VP is elected by members of both Houses of Parliament (elected and nominated). State MLAs do not vote — that is the 54/66 trap
69	VP's oath — before the President — not in the 3rd Schedule
72	President may pardon / commute etc. for Union-law offences, court-martial , and every death sentence
74	President acts on the aid and advice of the Council of Ministers. 44th Amendment (44वाँ संशोधन): he may send the advice back once for reconsideration; then he must act
75	PM appointed by the President; CoM collectively responsible to the Lok Sabha (लोकसभा). Size cap 15% of LS (91st Amd)
76	Attorney-General of India — qualified to be an SC judge; holds office during the pleasure of the President; may speak in Parliament but not vote ; salary is not charged on the CFI
79	Parliament = President + Lok Sabha + Rajya Sabha
80	Rajya Sabha: maximum 250 (238 States/UTs + 12 nominated by the President — literature, science, art, social service). The 12 are a Union nomination, not a State quota
81	Lok Sabha: maximum 550 (530 States + 20 UTs). Anglo-Indian nomination of up to 2 ended with the 104th (25 Jan 2020)
83	RS is a continuing House; 1/3 retire every 2 years . LS = 5 years unless dissolved. During a National Emergency (राष्ट्रीय आपात), LS may be extended one year at a time (83(2)) , not beyond 6 months after the Emergency ends
85	President summons, prorogues, dissolves LS. Maximum 6 months between two sessions
108	Joint sitting (संयुक्त बैठक) only for an ordinary Bill on which the Houses disagree. Speaker presides. Never for a Money Bill or a 368 Amendment Bill. Actually used only three times (1961, 1978, 2002)
109	Procedure (प्रक्रिया) for a Money Bill: introduced in LS only ; RS has 14 days to return recommendations; LS may accept or reject them
110	Definition of a Money Bill (tax, borrowing, Consolidated Fund, charged expenditure (भारित)...). Speaker's certificate is final . Do not swap 109 and 110
112	Annual Financial Statement (वार्षिक वित्तीय विवरण) — the Constitution's name for the Union Budget
123	President's Ordinance when both Houses are not in session (पेंगु सत्र) . Same force as an Act; laid before Parliament; dies 6 weeks after reassembly unless approved
124	Supreme Court. Judge retires at 65 . Removed by the same special-majority address as impeachment (124(4))
131	SC original jurisdiction: Centre vs State(s), State vs State
136	SC may grant special leave to appeal from any court/tribunal (except armed-forces courts)
141	Law declared by the Supreme Court is binding on all courts in India
143	President may ask the SC for an advisory opinion — the opinion is not binding
148	CAG appointed by the President; 6 years or age 65 ; removed like an SC judge; no further office under Union or State
151	CAG's Union reports go to the President (laid in Parliament); State reports go to the Governor (laid in the State legislature)
153	There shall be a Governor; one person may be Governor of two or more States
155–156	Governor appointed by the President ; term 5 years ; holds office during the pleasure of the President
159	Governor's oath — before the Chief Justice of that State's High Court (not the CJI) — form in Art. 159, not the 3rd Schedule
161	Governor's pardon: only for offences against State law . No court-martial. Death sentence: he may commute/remit; pardon of death sits with the President under 72
163	State CoM aids and advises the Governor, except where the Constitution gives the Governor discretion
164	CM appointed by the Governor; CoM collectively responsible to the Legislative Assembly . Size cap 15% of the LA (floor 12) — 91st Amd
165	Advocate-General of the State — qualified to be an HC judge; pleasure of the Governor . This is not the Election Commission (निर्वाचन आयोग) (that is 324)
168	Every State has a Legislature; some are bicameral (Assembly + Council)
169	Parliament may create or abolish a Legislative Council if the State Assembly so resolves (special majority). A Council is abolished , never "dissolved"
200	Governor may assent to a State Bill, withhold, return (except Money Bill), or reserve it for the President
201	On a reserved Bill the President may assent, withhold, or direct a return
213	Governor's Ordinance when the State Legislature is not in session (parallel to 123)
214	A High Court for each State (a common HC for two or more States is allowed)
217	HC judge appointed by the President; retires at 62 (SC is 65)
226	High Court writs for Fundamental Rights and for any other purpose — wider than Art. 32
239	A UT is administered by the President through an Administrator
239AA	NCT Delhi Assembly and CoM (69th Amd, 1991). Public order, police and land stay with the Centre
243A	Gram Sabha (ग्राम सभा) = persons on that village's electoral roll , exercising such powers as the State law gives

Art.	One-liner
243D	Reservation in Panchayats: SC/ST in proportion to population (जनसंख्या); women not less than one-third (many States, including UP, have raised this to 50% by State law)
243E	Panchayat term 5 years ; if dissolved, election within 6 months
243K	State Election Commission — Panchayat rolls and elections. Governor appoints; removed like a High Court judge . Not the ECI (324)
243ZA	The same SEC conducts municipal elections
243ZD	District Planning Committee in every district; at least 4/5 of members elected from PRI + ULB members
243ZE	Metropolitan Planning Committee for a million-plus area; at least 2/3 elected
244	244(1) = Fifth Schedule (5वीं अनुसूची) (Scheduled Areas). 244(2) = Sixth Schedule (6वीं अनुसूची) (AMTM tribal areas)
245	Parliament may make laws for the whole or any part of India; a State Legislature for that State
246	Subject-matter: 7th Schedule — List I Union, List II State, List III Concurrent. In a clash, Union law prevails (with 254 nuances)
248	Residuary (अवशिष्ट) matters (not in State or Concurrent Lists) = Parliament . Same idea as Union List Entry 97 . Borrowed from Canada , not the USA (where residuary is with the States)
249	If Rajya Sabha resolves by 2/3 of members present and voting (गणपूर्ति) that a State-List matter is in national interest, Parliament may legislate on it for one year (renewable)
250	During a 352 Emergency, Parliament may legislate on the State List (राज्य सूची) for the emergency area; such laws lapse six months after the Emergency ends
252	If two or more State Legislatures pass resolutions, Parliament may legislate for those States on a State-List matter; other States may adopt later
253	Parliament may make any law to implement a treaty / international agreement — even on a State-List subject
254	Concurrent List clash: Union law prevails . A State law reserved for and assented to by the President can operate in that State until Parliament legislates again
262	Parliament may provide for inter-State river dispute adjudication and may bar the Supreme Court and other courts
263	President may establish an Inter-State Council . Actually set up by Presidential Order on 28 May 1990 , on Sarkaria's recommendation — not Punchhi (पुंछी आयोग)'s
265	No tax except by authority of law
266	266(1) Consolidated Fund of India / of each State (revenues, loans). 266(2) Public Account (लोक लेखा) (provident funds, deposits — not voted as tax)
267	Contingency Fund (आकस्मिकता निधि) — advances pending authorisation of Parliament/Legislature
280	Finance Commission (वित्त आयोग): President constitutes every 5th year (or earlier). Chair + 4 members. Recommends how to share Union taxes with States. Report goes to the President , not to NITI (नीति) Aayog (नीति आयोग). First chair: K.C. Neogy
300A	No person shall be deprived of property save by authority of law. A legal / constitutional right , not a Fundamental Right. 44th deleted old Art. 31 and 19(1)(f)
310	Civil servants hold office during the pleasure of the President / Governor
311	Pleasure is limited: no dismissal by an authority subordinate to the appointing authority; reasonable opportunity of hearing (with listed exceptions)
312	All-India Services (IAS, IPS, IFoS). Rajya Sabha must resolve by 2/3 present and voting ; then Parliament may create a new AIS
315	UPSC for the Union; SPSC for a State; a Joint PSC for two or more States if those States request and Parliament so provides
316	UPSC: President appoints. SPSC: Governor appoints. Term 6 years or 65 (UPSC) / 6 years or 62 (SPSC)
317	A PSC member is removed by the President (even an SPSC member) after a Supreme Court inquiry on misbehaviour
321	Extra functions may be given to a PSC by the Legislature of that State (or Parliament for UPSC). 2021 fact : UPPSC's functions are extended by the UP Legislature , not the President
323A	Parliament may set up administrative tribunals (CAT/SAT) for service disputes — Part XIVA
323B	Tribunals for other listed matters (tax, land reforms, elections to the Legislature, etc.)
324	Election Commission (निर्वाचन आयोग) — superintendence of elections to Parliament, State Legislatures, President and Vice-President . Not Panchayat/ULB polls. CEC removed like an SC judge ; other ECs only on the CEC's recommendation
325	One general electoral roll ; no special roll on religion, race, caste or sex
326	LS and Assembly elections on adult suffrage . Citizen, 18 years (61st Amd, in force 28 Mar 1989) ; originally 21)
327	Parliament may make law on LS/LA elections — RPA 1950 (rolls) and RPA 1951 (conduct) live here
329	Courts shall not interfere in electoral matters except by an election petition as provided by law
330 / 332	SC/ST reserved seats in the Lok Sabha (लोकसभा) / State Assembly , in proportion to population
335	Claims of SC/ST to services, consistent with efficiency of administration
338	National Commission for Scheduled Castes (constitutional). SC list = Art. 341
338A	National Commission for Scheduled Tribes (89th Amd, 2003). ST list = Art. 342
338B	National Commission for Backward Classes as a standing constitutional body (102nd Amd, 2018). Central SEBC list = Art. 342A . This is not Art. 340
340	President may appoint an ad hoc commission to investigate the condition of backward classes (Kalelkar 1953, Mandal 1979). It is not the standing NCBC
343	Official language of the Union = Hindi in Devanagari script; international form of Indian numerals
348	Authoritative language of the Supreme Court, High Courts and Bills/Acts is English , unless Parliament / the Governor (with the President's consent) provides otherwise
351	Union's duty to promote Hindi as a medium of the composite culture of India
365	If a State fails to comply with Union directions , the President may hold that the government of the State cannot be carried on — a ground for 356
368	Parliament's power and procedure to amend the Constitution. Special majority; some federal clauses also need half the State Legislatures . <i>Kesavananda</i> : this power cannot destroy basic structure . No joint sitting, no Ordinance
370	Temporary provisions for Jammu & Kashmir. Made inoperative on 5 Aug 2019 ; J&K and Ladakh (लद्दाख) became UTs
393	Short title: "the Constitution of India"
394	Some articles in force from 26 Nov 1949 ; the rest from 26 Jan 1950
395	Repeals the Indian Independence Act (अधिनियम), 1947 and the Government of India Act, 1935 (as specified)

Art. 371–371J — which State (UP has none)

Art.	State / fact
371	Maharashtra and Gujarat — development boards (Vidarbha, Marathwada, Saurashtra, Kutch...)
371A (अनु. 371A)	Nagaland — Parliament's Act on Naga (नागा) religion/custom/land applies only if the Assembly agrees
371B	Assam — committee of MLAs from tribal areas
371C	Manipur — Hill Areas committee; Governor's responsibility

Art.	State / fact
371D	Andhra Pradesh and Telangana — equitable public employment and education
371E	Andhra Pradesh — Parliament may establish a Central University
371F	Sikkim (statehood 1975)
371G	Mizoram — parallel to 371A for Mizo (मिज़ो) custom/land
371H	Arunachal Pradesh — Governor’s special responsibility for law and order
371I (अनु. 371I)	Goa (गोवा) — Assembly not less than 30 members
371J	Karnataka — Hyderabad-Karnataka / Kalyana-Karnataka development board

Emergency Articles

Art.	Fact
352	National Emergency. Grounds today: war, external aggression, or armed rebellion (44th dropped “internal disturbance” after 1975). President acts only on the written recommendation of the Union Cabinet (not the PM alone). Each House must approve within 1 month by special majority = majority of total membership (सदन की कुल सदस्य संख्या का) + 2/3 of members present and voting . Then it runs 6 months at a time
353	Union may give States executive directions ; Parliament’s power extends while 352 is on
354	President may modify 268–279 revenue distribution while 352 is on
355	Union’s duty to protect States and ensure constitutional government (use before 356 — Punchhi)
356	President’s Rule — constitutional machinery failed. Both Houses, 2 months, simple majority, 6 months ; max 3 years . First: Punjab 1951
357	Parliament / President legislates for the State under 356
358	During a 352 Emergency on war or external aggression (not armed rebellion), Art. 19 is automatically suspended — no separate Presidential order needed. When the Emergency ends, 19 revives
359	The President may by order suspend the right to move a court to enforce named Fundamental Rights, during any National Emergency. After the 44th he cannot name Arts. 20 or 21 . So: 358 = Art. 19 goes to sleep by itself (war/aggression only). 359 = other FRs’ enforcement can be frozen by order, except 20 and 21
360	Financial Emergency (वित्तीय आपात) — threat to financial stability/credit. Both Houses, 2 months, simple majority . Until revoked. Never imposed . Can cut even judges’ salaries
83(2)	LS life + 1 year at a time during 352; not beyond 6 months after it ends
250	Parliament on State List during 352; such laws lapse 6 months after
365	Disobeying Union directions → may treat 356 as attracted

Used 352:1962 (China) · 1971 (Pakistan) · 1975–77 (internal disturbance). 360: never.

Election Articles

Art.	Fact
54–55	President — elected MPs + elected MLAs; STV; nominated out
66	VP — both Houses including nominated; no State MLAs
80 / 81	RS composition · LS composition
324	ECI — superintendence of President, VP, Parliament, State Legislature elections. CEC removed like SC judge
325	One general electoral roll — no special roll on religion/race/caste/sex
326	LS / LA on adult suffrage; citizen, 18 (61st , in force 28 Mar 1989 ; was 21)
327	Parliament may make election law for LS/LA (RPA 1950/1951 live here)
328	State Legislature may fill gaps if Parliament has not
329	Courts barred; election of a member only by election petition
329A	39th Amd’s election-of-PM shield — struck in <i>Indira Gandhi (राज्य)</i> 1975; later repealed
330 / 332	SC/ST reserved seats LS / LA
243K	SEC — Panchayat polls; Governor appoints; removed like HC judge
243ZA	Same SEC — municipal polls
243D / 243T	Reservation in PRIs / ULBs

Trap: Panchayat polls = **324. No — 243K, SEC**. Trap: VP college = same as President. **No MLAs**.

Writs

Writ	Literal	When
Habeas Corpus	to have the body	Illegal detention; public or private respondent
Mandamus (परमादेश)	we command	Compel a public duty . Not vs President/Governor personally, private person, or a mere contract
Prohibition (प्रतिषेध)	to forbid	Lower judicial / quasi-judicial body exceeding jurisdiction — issued before the order
Certiorari (उल्लेखण)	to be certified	Quash an order already made — after
Quo Warranto (अधिकार-पूच्छा)	by what authority	A person in a substantive public office created by law; any person may ask
	Art. 32	Art. 226
–	-----	-----
Court	Supreme Court	High Court
Scope	FR only	FR + any other purpose (wider)
Itself a FR?	Yes	No
During 359	Enforcement can be suspended (except 20/21)	Same Presidential order can reach HC too

Constitutional Amendments — year one-liners

Amd	Year	One-liner
1st	1951	Nehru (नेहरू)'s reply to <i>Champakam</i> (caste quotas vs 15/29) and zamindari strikes. Inserted 15(4) (SEBC/SC/ST special provision), widened 19(2)/(6) , added 31A/31B and the 9th Schedule (first 13 Acts). <i>Shankari Prasad</i> upheld it
7th	1956	States Reorganisation (in force 1 Nov 1956): killed Part A (८/B/C/D States; picture then 14 States + 6 UTs . Also 350A (अनु. 350A) (mother-tongue at primary stage) and 350B (अनु. 350B) (one Special Officer for linguistic minorities for all India). 350B is 7th, not 9th
9th	1960	India–Pakistan Berubari boundary transfer. This is an amendment number , not the 9th Schedule
21st	1967	Sindhi added to the 8th Schedule (14 → 15 languages)
24th	1971	Parliament's answer to <i>Golaknath</i> . Inserted 13(4) : a 368 amendment is not "law" under 13. 368(1) : Parliament may amend any provision. President shall assent to a 368 Bill (no pocket veto)
25th	1971	After <i>R.C. Cooper</i> (Bank Nationalisation): "compensation" in old Art. 31 became "amount" . Born 31C for laws giving effect to 39(b) and 39(c)
26th	1971	Privy purses of former princes abolished (Art. 363A). Not "26 January"
35th / 36th	1974 / 1975	35th = Sikkim as an "associate State" (old 10th Schedule). 36th = Sikkim full statehood, 22nd State, 26 Apr 1975 , Art. 371F ; that old 10th Schedule repealed
38th / 39th	1975	Emergency-era insulation of the President's satisfaction; 39th put the PM's election beyond judicial review via 329A — <i>Indira Gandhi struck 329A(4)(5)</i>
42nd	1976	Called the Mini-Constitution (Swaran Singh). Preamble: added Socialist, Secular , and "unity and integrity ". Added Fundamental Duties (51A , then 10). Added DPSP 39A, 43A, 48A . Added Part XIVA (tribunals). Stretched 31C to all DPSP (<i>Minerva</i> struck that stretch). Inserted 368(4)(5) "amendment cannot be questioned in court" (<i>Minerva</i> struck those too). Year cue 1976 , not 1978
44th	1978	The Janata undo of the Emergency. "Internal disturbance" → armed rebellion . National Emergency only on written Cabinet advice. Arts. 20 and 21 can no longer be suspended. Property ceases to be a FR → 300A . Lok Sabha can force-revoke a 352 proclamation
52nd	1985	10th Schedule anti-defection
61st	1988 (w.e.f. 28 Mar 1989)	Voting age 21 → 18
69th	1991	NCT Delhi (239AA)
71st	1992	Konkani, Manipuri, Nepali
73rd / 74th	1992 (in force 1993)	Part IX / IXA · 11th=29 · 12th=18
86th	2002	21A + 51A(k) + 45 recast
89th	2003	NCST (राष्ट्रीय अनुसूचित जनजाति आयोग) split (338A)
91st	2003	CoM 15% ; defection merger = 2/3
92nd	2003	Bodo, Dogri, Maithili, Santhali
96th	2011	Oriya → Odia
97th	2011	Co-ops, Part IXB , 43B — State co-ops later clipped (<i>Rajendra N. Shah</i>)
99th	2014	NJAC — struck 16 Oct 2015
101st	2016	GST; levy from 1 Jul 2017; 279A
102nd	2018	NCBC 338B
103rd	2019	EWS 10% (15(6)/16(6)) — upheld <i>Janhit Abhiyan</i>
104th	2019 (effect 25 Jan 2020)	Anglo-Indian LS/LA nomination ends ; SC/ST reservation in Houses extended
105th	2021	Restores State power to identify SEBCs
106th	2023	Women 33% in LS/LA — after delimitation , 15 years

Basic-structure ladder (2024/2021): *Shankari* 1951 → *Sajjan* 1965 → *Golaknath* 1967 → **24th** 1971 → *Kesavananda* **24 Apr 1973** 13-judge **7:6** → *Indira Gandhi* 1975 → *Minerva* 1980.

Important Constitutional Timelines

Date	Fact
1773	Regulating Act (रेगुलेटिंग एक्ट) — GG of Bengal (Hastings (हेस्टिंग्स)); SC Calcutta 1774
1784	Pitt — Board of Control
1833	GG of India ; Law Member (Macaulay)
1858	Crown; GG also Viceroy (वायसराय)
1861	Indian Councils + Indian High Courts Act (Allahabad (इलाहाबाद) HC 1866)
1892	Budget discussion; questions
1909	Morley-Minto (मॉर्ले-मिंटो) — separate electorates
1919	Montagu-Chelmsford (मॉटेय्यू-चेम्सफोर्ड) — dyarchy (द्वैध शासन) in provinces; Chamber of Princes
1935	Provincial autonomy; federal scheme (never fully); RBI; Federal Court 1937
9 Dec 1946	Constituent Assembly (संविधान सभा) first sitting (Sinha; later Rajendra Prasad)
29 Aug 1947	Drafting Committee — Ambedkar (अम्बेडकर) Chair; adviser B.N. Rau
26 Nov 1949	Adopted (अंगीकृत). Some Arts. in force the same day (5–9, 60, 324, 366, 367, 393...)
26 Jan 1950	Constitution in force. Republic Day (Purna Swaraj (पूर्ण स्वराज) date 1930)
18 Jun 1951	1st Amendment
1951–52	First general election
1 Nov 1956	SRC (आयोग) / 7th Amd

Date	Fact
1962 / 1971 / 25 Jun 1975	Three National Emergencies; last revoked 21 Mar 1977
24 Apr 1973	<i>Kesavananda</i> — basic structure; 9th Sch. review cut-off (<i>Coelho</i>)
1976 / 1978	42nd / 44th
1985	52nd — 10th Schedule
28 Mar 1989	Voting age 18
24 Apr 1993 / 1 Jun 1993	73rd / 74th in force
9 Nov 2000	Uttarakhand (उत्तराखण्ड) (not 1 Nov — that is Chhattisgarh)
2002	86th — 21A
1 Jul 2017	GST levy
5 Aug 2019	Art. 370 inoperative; J&K + Ladakh UTs
16 Oct 2015	NJAC struck
2023	106th women reservation (not yet operational)

Constitutional Doctrines

Doctrine	One-liner
Basic Structure	<i>Kesavananda</i> 24 Apr 1973 , 13-judge 7:6 — Parliament may amend any article; cannot destroy basic structure
Eclipse	A pre-1950 law that clashes with a Fundamental Right is not wiped out — it goes dormant . If the FR is later amended so the clash disappears, the old law wakes up (<i>Bhikaji Narain</i>). Post-Constitution laws that clash are simply void , not eclipsed
Severability	If only one clause of an Act is unconstitutional, that clause is struck and the rest of the Act survives if it can stand alone (<i>R.M.D. Chamarbaugwalla</i>)
Waiver	You cannot sign away your Fundamental Rights. They exist for public interest, not as a private bargain (<i>Basheshar Nath</i>)
Pith and substance	To decide whether a law belongs to the Union List or the State List, look at its true character , not at a stray incidental overlap with the other list
Colourable legislation	If the Constitution forbids the legislature to do X, it cannot do X by dressing it up as Y. "What you cannot do directly , you cannot do indirectly "
Territorial nexus	A State tax may reach an extra-territorial fact if a real nexus exists
Repugnancy (254)	On Concurrent List, Union law prevails (President-assented State law can operate in that State until Parliament re-enters)
Occupied field	Once Union occupies a Concurrent field, State law must not collide
Harmonious construction	Read FR and DPSP so both live (<i>Minerva</i> — 31C cannot swallow 14/19 for <i>all</i> DPSP)
Incidental / ancillary	A list-entry carries power reasonably needed to make it work
Prospective overruling	<i>Golaknath</i> — the 1967 rule applied forward , old amendments stood
Pleasure (310)	Union/State civil servants hold office during pleasure — subject to 311
Procedure established by law	Art. 21's words (Japan). <i>Gopalan</i> = any valid procedure; <i>Maneka</i> = fair, just, reasonable. Still not the US due-process clause
Proportionality	Restriction on 19/21 must be suitable, necessary, balanced
Essential religious practices	<i>Shirur Mutt</i> — what is essential to a religion is protected; secular activity is regulable
Constitutional morality	<i>Navtej</i> line — Constitutional values bind even a popular majority
Rule of Law	Dicey: no arbitrary power · equality before law · Constitution (in India, <i>result</i> of rights) as the source. <i>Kesavananda</i> listed it in basic structure
Separation of powers	Not the US wall. Functions are distinct; <i>Kesavananda</i> still treats the doctrine as basic
Checks and balances	Each organ can restrain the others (review, no-confidence (अविश्वास प्रस्ताव), impeachment, Ordinance limits)
Stare decisis	Art. 141 — SC declares the law
Reading (रीडिंग) down	Save a statute by narrowing it rather than striking it
Manifest arbitrariness	A law can fail Art. 14 for being arbitrary (<i>Shayara Bano</i> / triple talaq line)

Oaths & Affirmations

Who	Form lives in	Swears before
President	Art. 60 — not 3rd Sch.	CJI (or senior-most SC judge)
Vice-President	Art. 69 — not 3rd Sch.	President
Governor	Art. 159 — not 3rd Sch.	Chief Justice of that State's High Court (or senior-most HC judge)
Union / State Ministers	3rd Schedule — office + secrecy (two forms)	President / Governor
MPs / MLAs (and candidates)	3rd Schedule	President or person appointed / Governor or person appointed
SC judges (incl. CJI)	3rd Schedule	President
HC judges (incl. CJ)	3rd Schedule (Art. 219)	Governor
CAG	3rd Schedule	President
AG / SG / AdvG / CEC / EC / UPSC–SPSC	Not named in 3rd Sch.	Appointing-authority practice

Resignation one-liners (oath's twin): President → **VP (56)**. VP → **President (67)**. Governor → **President (156)**. SC/HC judge → **President**. Speaker LS/LA → **Deputy**. RS Chairman **is** the VP → resigns as VP to the **President**, not to the Deputy Chairman.

Trap: Governor's oath = CJI. **State HC Chief Justice**. Trap: President's oath is in the 3rd Schedule. **Art. 60, outside it**.

Borrowed Features (Country-wise)

Largest structural (संरचनात्मक) source is not a country:Government of India Act, 1935 — federal scheme, office of Governor, judiciary, Public Service Commissions, Emergency provisions, administrative detail.

Source	What India took
UK	Parliamentary government · Cabinet · Rule of Law · legislative procedure · single citizenship · bicameralism · parliamentary privileges · prerogative writs
USA	Fundamental Rights · judicial review · independence of judiciary · impeachment of President · removal of SC/HC judges · Preamble's form · Vice-President's office · equal protection
Ireland	DPSP (राज्य के नीति निदेशक तत्व) · nomination of RS members · method of electing the President
Canada	Federation with a strong Centre · residuary powers with the Centre · Centre appoints Governors · advisory jurisdiction of the Supreme Court
Australia	Concurrent List (समवर्ती सूची) · freedom of trade and commerce (Part XIII) · joint sitting of the two Houses
USSR / Russia	Fundamental Duties (मौलिक कर्तव्य) · Preamble's social, economic and political justice
France	Republic · Preamble's Liberty, Equality, Fraternity
Weimar Germany	Suspension of Fundamental Rights during Emergency
South Africa	Amendment procedure (368) · election of Rajya Sabha members
Japan	Procedure established by law (Art. 21)

Trap: Residuary = USA (States). **Canada / Centre**. Trap: DPSP = USA. **Ireland**. Trap: Duties = Ireland. **USSR**. Trap: Joint sitting = UK. **Australia**. Trap: "Procedure established by law" = USA due process. **Japan**; USA is due process.

Common Traps

Trap	Correct
Part XI = Municipalities / Tribunals	IXA / XIVA
AG sits in Part XIII	Part V , Art. 76
9th Schedule = RS seats	4th Schedule
8th has Bhojpuri	22 , Bhojpuri out
11th = 18 subjects	29 / 12th = 18
6th Schedule includes UP	AMTM only
Art. 32 wider than 226	226 is wider
VP elected like the President	No MLAs
352 ground still "internal disturbance"	Armed rebellion (44th)
360 has been used	Never
358 kills all FR	Only Art. 19 , and only war/aggression
359 can freeze 21	Cannot (44th)
Panchayat polls = ECI / 324	SEC / 243K
President's oath = 3rd Schedule	Art. 60
Governor oath = CJI	State HC CJ
42nd = 1978	1976 ; 44th is 1978
9th Amd = 9th Schedule	Amd = Berubari ; Schedule = 1st Amd
106th is already filling seats	Waits delimitation
Residuary = USA/States	Canada / Centre
DPSP = USA	Ireland
Joint sitting = UK	Australia

Practice Zone — UPPCS Format Drill

Answers hidden. Full stems (not cryptic stubs). **155 questions** (Q1–70 number map · Q71–140 name map · Q141–155 gap-fill). ≥60% multi-statement / application. Mix: A/R, Match List, chronology, NOT-correctly-matched.

Complete PYQ Bank (Topic 26) — Parts, Schedules, Amendments

- UPPCS Prelims 2025, Q24 — Part XI — Municipalities is **NOT** matched. Municipalities = **IXA**.
- UPPCS Prelims 2025, Q102 — 8th Schedule: Nepali, Dogri, Bodo **in**; **Bhojpuri out**.
- UPPCS Prelims 2025, Q113 — Seventh / Eighth / Ninth / Tenth → Lists / Languages / Validation of Acts / Defection.
- UPPCS Prelims 2023, Q1 — Tribunals ≠ Part XI. Tribunals = **XIVA**.
- UPPCS Prelims 2023, Q7 — Ninth ≠ RS seats. RS seats = **Fourth**.
- UPPCS Prelims 2022, Q89 — 3rd Oaths · 4th RS · 7th Lists · 8th Languages.
- UPPCS Prelims 2020, Q110 — Attorney-General ≠ Part XIII. **Part V**.UPPCS Prelims 2024 — *Kesavananda* chronology; 42nd = **1976**.
- UPPCS Prelims 2025 — 42nd Preamble words = **Socialist, Secular** (not Sovereign / Republic — those were original).
- UPPCS Prelims 2021 — *Golaknath* → 24th → *Kesavananda* → 42nd.
- UPPCS Prelims 2022 — RTE = **86th**, not 103rd; NCT Delhi = **69th**.
- UPPCS Prelims 2024 — GST = **101st**; local bodies = **73rd + 74th**.

Mains link (one frame)

A one-liner sheet is a **match-list**, not a second Laxmikanth. **Number map:** Part XI is not municipalities; 4th Schedule (चौथी) is RS, 9th is land-reform validation; 226 is wider than 32; 352/356/360 are three switches; 324 is not 243K. Ireland DPSP, Canada residuary, Japan procedure, Australia joint sitting. Oaths: President **60** / VP **69** / Governor **159** live outside the Third Schedule.

Bodies • Committees • Offices • Cases • Parliament • UP

Quick Revision — Spine Only (bodies • Parliament • cases • UP)

CONSTITUTIONAL: 76 AG • 148 CAG • 165 AdvG • 243I/Y SFC • 243K/ZA SEC • 263 ISC
279A GST Council • 280 FC • 315 UPSC/SPSC • 324 ECI • 338/A/B NCSC/ST/BC • 350B linguistic
NITI is NOT here. NHRC/NCW are NOT here.

STATUTORY: Lokpal 2013 • CVC 2003 (Santhanam 1962 → exec 1964) • CIC RTI 2005 • NHRC 1993
NGT 2010 • CAT 1985 (rides 323A) • NCW 1990 • NCM 1992 • SEBI 1992 • RBI Act 1934
EXECUTIVE: NITI 1 Jan 2015 • NDC 1952 • CBI = 1963 resolution + DSPE 1946 (not “like CVC”)

OFFICES: CEC like SC judge; other ECs only on CEC rec. UPSC 6y/65; SPSC Governor appoints, PRESIDENT removes.
CAG 6y/65, no further office. AG = pleasure, private practice OK, salary NOT charged. SG = no Article.

COMMITTEES: BR Mehta 1957 3-tier • Ashok Mehta 1977 2-tier • Singhvi 1986 constitutional PR
Santhanam 1962 = CVC (1963 = PRI finance) • Swaran Singh 1976 duties
Rajamannar 1969 abolish AIS/356 • Sarkaria 1983–88 keep Centre, ISC • Punchhi 2007–10 localise 356
ISC constituted 1990 = Sarkaria NOT Punchhi. 1st FC = K.C. Neogy NOT Rajamannar.

PARLIAMENT: PAC 22 (15+7) Opposition chair, CAG. Estimates 30 LS-only, NO CAG. COPU 22 CAG-PSU.
DRSC 24 × 31 (21+10) 1993. Zero Hour AFTER Question Hour. Adjournment / censure / no-conf = LS only.
110 = Money Bill definition; 109 = RS 14 days. CAB: either House, no joint sitting, President shall assent.

CASES: Gopalan 1950 → Maneka 1978. Golaknath 1967 ≠ Basic Structure. Kesavananda 24 Apr 1973 7:6.
Jabalpur 1976 Khanna dissent. Bommai 1994 floor test. NJAC struck 16 Oct 2015. Navtej = s.377 IPC.

UP: Capital Lucknow • HC Prayagraj (Lucknow Bench 1948) • LA 403 • LC 100 • LS 80 • RS 31
Hindi 1951 / Urdu 1989 • UK 9 Nov 2000 • 18 divisions / 75 districts • UPPSC Prayagraj
SEC Lucknow • CoM ≈ 60 • no 371 • no PESA • Noida ≠ Nigam • 17 SC / 0 ST LS seats

Confused pairs (bodies • Parliament • cases • UP)

A	B	Fact	Hindi Terminology
338B NCBC	340 commission	338B = the standing National Commission for Backward Classes (102nd, 2018). 340 = President <i>may</i> name a one-off inquiry (Kalelkar, Mandal). The 2024 paper used 340 as a match — know both	राष्ट्रीय पिछड़ा वर्ग आयोग (338B) / पिछड़ा वर्ग जाँच आयोग (340)
ECI 324	SEC 243K	Parliament / State Houses / President / VP vs PRI + ULB	भारतीय निर्वाचन आयोग / राज्य निर्वाचन आयोग
NHRC	NCSC	Statutory 1993 vs Constitutional 338	राष्ट्रीय मानवाधिकार आयोग / राष्ट्रीय अनुसूचित जाति आयोग
NITI	FC 280	Executive think-tank 2015 vs tax-share Commission	नीति आयोग (2015) / वित्त आयोग (अनु. 280)
CAG	PAC	Audits and reports vs examines the report	कैग (लेखापरीक्षक) / लोक लेखा समिति (समीक्षा)
PAC	Estimates	22, both Houses, CAG, Opposition chair vs 30, LS only, no CAG	लोक लेखा समिति / प्राकलन समिति
Art. 110	Art. 109	Money Bill definition vs RS 14-day procedure	धन विधेयक परिभाषा / धन विधेयक विशेष प्रक्रिया
Sarkaria	Punchhi	ISC 1990 vs 2007–10 (Council already existed)	सरकारिया आयोग (1983) / पुंछी आयोग (2007)
Santhanam 1962	Santhanam 1963	CVC vs PRI finances	संथानम समिति (सीवीसी) / संथानम समिति (पंचायती राज वित्त)
Golaknath	Kesavananda	FR cannot be amended vs FR can, basic structure cannot	गोलकनाथ 1967 / केशवानंद भारती 1973
Navtej	Art. 377	s.377 IPC vs transitory CAG clause	नवतेज जौहर (धारा 377) / अनुच्छेद 377 (कैग संक्रमण)
UPPSC	UP SEC	Prayagraj, recruitment vs Lucknow, local polls	उत्तर प्रदेश लोक सेवा आयोग / राज्य निर्वाचन आयोग

Frame

Number map first, then the **name map**: who is constitutional, who is only an Act, which committee said what, which case held what, which House device does what — plus the **UP pin**.

Constitutional Bodies

Art.	Body	One-liner
76	Attorney-General	SC-judge qualify; pleasure of President; speak, no vote ; private practice OK except vs Gol; salary not charged
148	CAG	6y or 65 ; removed like SC judge ; no further office; reports → President/Governor → House; India is Auditor after spend , not UK Comptroller

Art.	Body	One-liner
165	Advocate-General	HC-judge qualify; pleasure of Governor
243I / 243Y	State Finance Commission	Governor , every 5 years ; same body for PRIs and ULBs
243K / 243ZA	State Election Commission	PRI + ULB polls; Governor appoints; removed like HC judge
263	Inter-State Council	President may ; set up 28 May 1990 ; PM chairs; Sarkaria , not Punchhi
279A	GST Council (जीएसटी परिषद)	Union FM chairs; Centre 1/3 + States 2/3 ; 3/4 weighted; 101st
280	Finance Commission	President; Chair+ 4 ; every 5th year ; 1st = K.C. Neogy ; report to President , not NITI
315	UPSC / SPSC / JPSC	UPSC: President; 6y/ 65 . SPSC: Governor appoints, President removes. JPSC: Parliament if States request
321	Extra SPSC functions	State Legislature (2021 UP fact) — not President / DoPT
324	Election Commission	Parliament + State Legislatures + President + VP. Not PRI/ULB. First CEC Sukumar Sen . First woman CEC V.S. Ramadevi (1990) . CEC like SC judge; other ECs only on CEC's recommendation
338 / 338A / 338B	NCSC (राष्ट्रीय अनुसूचित जाति आयोग) / NCST / NCBC	Lists 341 / 342 / 342A . NCBC constitutional from 102nd, 2018 (was statutory 1993)
339(1)	Ad hoc Scheduled-Areas commission	Not NCST
340	Ad hoc BC investigating commission	Kalelkar / Mandal — not standing NCBC
344	Official Language Commission	Time-bound (Kher 1955)
350B	Special Officer, Linguistic Minorities	One officer for all India; 7th Amd , not 9th

Independence toolkit (not every body gets all): charged salary · removal like SC judge · conditions not varied to disadvantage · bar on further office.

Trap: ECI = Art. 165. **165 = AdvG**. Trap: FC = 263. **263 = ISC**. Trap: standing NCBC = 340. **338B**; 340 = inquiry.

Statutory · Executive bodies

Kind	Test	Raata
Constitutional	Born in the Constitution	ECI, UPSC, FC, CAG, AG, GST Council, NCSC/ST/BC, SEC, SFC, ISC, 350B
Statutory	Born in an Act	Lokpal (लोकपाल) 2013 · CVC 2003 · CIC/SIC RTI 2005 (अरटीआई 2005) · NHRC (राष्ट्रीय मानव अधिकार आयोग) 1993 · NGT 2010 · CAT 1985 · NCW 1990 · NCM (असहयोग) 1992 · NCPCR · NCSK · SEBI 1992 · RBI Act 1934 · NIA (राष्ट्रीय अन्वेषण एजेंसी) 2008 · Delimitation Commission
Executive	Resolution / order	NITI 1 Jan 2015 · Planning Commission (योजना आयोग) 1950 · NDC 1952 · Law Commission of India
Body	One-liner	
-----	-----	
Lokpal (लोकपाल)	2013 Act. Chair + ≤8. Selection: PM + LS Speaker + LoP LS + CJI/nominee + jurist — not RS Chairman. 5y/70. First: P.C. Ghose, 2019	
Lokayukta (लोकायुक्त)	State Act. First Maharashtra 1971 . UP 1975 + Up-Lokayukta	
CVC	Santhanam 1962 → executive 1964 → Act 2003 (<i>Vineet Narain</i>). No constitutional article (2020). Chair+2; 4y/65	
CIC	RTI 12 Oct 2005 . 30 days (48h life/liberty). PIO penalty ≤ ₹25,000	
NHRC (राष्ट्रीय मानव अधिकार आयोग)	PHRA 1993 — statutory, not 338 . Recommendatory	
NGT	2010. Principal Bench Delhi . Wildlife Protection (वन्यजीव सुरक्षा) Act not in its Schedule	
CAT	1985 Act; enabled by 323A — the tribunal itself is still statutory . Art. 226 survives	
NITI (नीति)	Cabinet Resolution 1 Jan 2015 . PM chairs. Not FC, not constitutional, does not allocate Plan funds	
CBI (केन्द्रीय अन्वेषण ब्यूरो)	MHA resolution 1 Apr 1963 + DSPE Act 1946 . Needs State consent (s.6) unless court orders	
NIA	Act 2008 . No State consent for scheduled offences	
IB / RAW (रॉ) / ED	IB 1887 MHA · RAW 1968 Kao, Cabinet Secretariat · ED 1956 FEMA/PMLA, Revenue	

Look-alike: “National Commission for ...” is **not** automatically constitutional. **NCW / NCM / NCPCR / NCSK = statutory**. **NCSC / NCST / NCBC = constitutional**.

Upgrade path: CVC executive → statutory 2003 · NCBC statutory 1993 → constitutional **2018** · Planning Commission → **NITI** (still executive).

Important Committees

Committee	Year	One-liner
Fazl Ali (SRC)	1953–55	States Reorganisation; 7th Amd / 1 Nov 1956 . Members Kunzru, Panikkar
Kalelkar	1953	First BC commission (340). Report not fully accepted
Balwant Rai (राई) Mehta (बलवंत राय)	1957	Three-tier PR; block as the pivot
Santhanam (CVC)	1962	Prevention of corruption → CVC 1964
Santhanam (PRI)	1963	Panchayat finances — do not mix with 1962
Kothari	1964–66	Education; 10+2+3. Not the ISC
1st ARC (प्रथम एआरसी)	1966	Morarji Desai (आमिल) (then Hanumanthaiah). ~20 reports; Lokpal idea
Rajamannar	1969 (TN)	Residuary to States ; abolish AIS ; repeal 356 ; asked for ISC

Committee	Year	One-liner
Mandal	1979 (report 1980)	27% OBC (अन्य पिछड़ा वर्ग). Implemented 1990 → <i>Indra (इन्द्र) Sawhney</i>
Swaran Singh	1976	Fundamental Duties (proposed 8; Constitution took 10)
Ashok Mehta (अशोक मेहता)	1977	Two-tier (Zila + Mandal); parties; constitutional status; district first
G.V.K. Rao (जीवीके राव)	1985	District as the first point; PRIs “grass without roots”
L.M. Singhvi	1986	Constitutional status for PR; Gram Sabha as the base
P.K. Thungon	1988	Constitutional status + fixed 5-year term for PR — feeds 73rd
Tarkunde	1975	Jayaprakash Narayan era — electoral reforms (independent ECI, voting age)
Sarkaria	1983–88	Strong Centre; keep AIS & 356 ; residuary with Union ; constitute ISC
Punchhi	2007–10	Localised 356; strengthen ISC; Art. 201 time-cap. Did not set up the ISC
2nd ARC (द्वितीय एआरसी)	2005–09	Veerappa Moily ; 15 reports
NCRWC	2000	Justice Venkatachaliah — Constitution review
Dinesh Goswami	1990	Electoral reforms
Indrajit Gupta (गुप्त)	1998	State funding of elections
Anandpur (आनंदपुर) Sahib	1973	Akali: Centre limited to defence, foreign, communications, currency

Chronology PR: BR Mehta **1957** → Ashok Mehta **1977** → GVK Rao **1985** → Singhvi **1986**.

Centre–State polarity, in one sentence each: Rajamannar (TN, 1969) wanted residuary powers with **States, AIS abolished, 356 repealed**. Sarkaria (Union, 1983–88) wanted a **strong Centre, AIS and 356 kept**, and an **Inter-State Council** — which is why the Council that actually appeared in **1990** is tagged Sarkaria. **Punchhi** (2007–10) came **after** that Council already existed; he wanted **localised** 356 and a **time-cap on Art. 201**, not a new ISC.

Trap: ISC = Punchhi. **Sarkaria, 1990**. Trap: 1st FC = Rajamannar. **K.C. Neogy**. Trap: Santhanam = only CVC. There is also a **1963 PRI-finance** Santhanam.

Constitutional Offices (identity one-liners)

Office	Appoint	Age / term	Remove	Resigns to
President	Electoral college (54)	5y	Impeachment 61	VP
VP	Both Houses (66)	5y	RS resolution + LS agree	President
Governor	President	5y / pleasure	Pleasure	President
PM / CM	President / Governor	House confidence	House	President / Governor
CJI / SC judge	President (Collegium)	65	Impeachment 124(4)	President
CJ HC / HC judge	President	62	Same as SC	President (oath was Governor)
CEC	President (2023 panel sans CJI)	6y / 65	Like SC judge	President
EC	Same	6y / 65	Only on CEC’s recommendation	President
CAG	President	6y / 65	Like SC judge	President
UPSC Chair	President	6y / 65	Like SC judge	President
SPSC Chair	Governor	6y / 62	President (SC inquiry on misbehaviour)	Governor
AG	President	Pleasure	Pleasure	President
AdvG	Governor	Pleasure	Pleasure	Governor
SG	Executive	—	—	No Article
SEC	Governor	As State law	Like HC judge	—
Speaker LS / LA	House	House life	House	Deputy Speaker

Oath twin: President **60**/CJI · VP **69**/President · Governor **159**/State **HC CJ**. Ministers/MPs/judges/CAG = **3rd Schedule**.

Supreme Court Cases (one-liners)

Year	Case	What was challenged · what the Court held
1950	<i>A.K. Gopalan</i>	Preventive detention under a valid Act. Held: Art. 21 is satisfied by any procedure in a valid law . Arts. 19, 21 and 22 were read separately (“silos”) — not as one liberty code
1951	<i>Shankari Prasad</i>	Was the 1st Amendment (9th Schedule, 15(4)) void as “law” under Art. 13? Held: No . Art. 368 can amend Fundamental Rights
1951	<i>Champakam Dorairajan</i>	Madras caste-based medical admissions vs Arts. 15/29. Held: the quota failed. Directly produced the 1st Amd / Art. 15(4)
1960	<i>Berubari</i> (Art. 143 reference)	Giving the Berubari Union to Pakistan. Held: cession of Indian territory needs a constitutional amendment , not an ordinary Act. Also held (then) that the Preamble is not part of the Constitution — <i>Kesavananda</i> later reversed that bit
1965	<i>Sajjan Singh</i>	17th Amendment (more Acts into the 9th Schedule). Held: valid, same as <i>Shankari</i> . Justice Mudholkar first hinted at “basic features”
1967	<i>Golaknath</i>	11-judge, 6:5 . Held: Fundamental Rights cannot be amended ; a 368 amendment is “law” under 13. Applied prospectively (old amendments stood). This is not the Basic Structure case — that is <i>Kesavananda</i>
1973	<i>Kesavananda Bharati</i>	24 April 1973 , 13-judge, 7:6 . Held: Parliament may amend any article, including FR, but cannot destroy the basic structure . Preamble is part of the Constitution. 24th Amd upheld, with that cap
1975	<i>Indira Nehru Gandhi vs Raj Narain</i>	39th Amd had put the PM’s election beyond court review (329A(4)(5)). Held: that clause struck . Free and fair election is basic structure
1976	<i>ADM Jabalpur (Habeas Corpus case)</i>	During the Emergency, could a detainee ask for habeas if Art. 21 was suspended? Majority: no . Justice H.R. Khanna dissented. <i>Puttaswamy</i> 2017 says the majority was wrong . 44th later locked Arts. 20 and 21 as unamendable
1978	<i>Maneka Gandhi</i>	Passport impounded without a fair hearing. Held: the “procedure” in Art. 21 must be fair, just and reasonable . Arts. 14, 19 and 21 are read together . Still not the US due-process clause
1980	<i>Minerva Mills</i>	42nd Amd had said a 368 amendment cannot be questioned in court (368(4)(5)) and had stretched 31C to all DPSP. Held: both struck . 31C survives only for 39(b) and 39(c) . Limited amending power + FR–DPSP harmony = basic structure

Year	Case	What was challenged · what the Court held
1981	<i>Waman Rao</i>	Cut-off for 9th Schedule review = 24 Apr 1973 (<i>Kesavananda</i> date)
1981	First Judges (<i>S.P. Gupta</i>)	On appointing HC/SC judges, “consultation” with the CJI did not mean concurrence. Executive primacy
1992	<i>Indra Sawhney</i> (Mandal)	27% OBC quota in Union services upheld . Ceiling 50% (except extraordinary). Creamy layer of OBCs excluded. No reservation in promotion (77th Amd later restored SC/ST promotion via 16(4A))
1992	<i>Kihoto Hollohan</i>	10th Schedule (anti-defection) valid . But para 7 (total bar on courts) struck . The Speaker’s defection order can be reviewed by a court
1993	Second Judges	“Consultation” = concurrence . SC appointments by a Collegium of CJI + 2 senior-most SC judges
1994	<i>S.R. Bommai</i>	President’s Rule (356) is justiciable . Majority is tested on the floor of the House , not in Raj Bhavan. Do not dissolve the Assembly before Parliament approves 356. Secularism is basic structure, so a communal ministry can justify 356
1997	<i>Vishaka</i>	No statute yet on workplace sexual harassment. Court laid binding guidelines under 14/15/19/21 until Parliament passed the POSH Act, 2013
1998	Third Judges (Art. 143 advice)	SC Collegium enlarged to CJI + 4 . For HC judges: CJI + 2
2006	<i>Rameshwar Prasad</i>	Bihar Assembly dissolved on a mere apprehension of horse-trading, without a floor test. Struck
2007	<i>I.R. Coelho</i>	9-judge. A law put in the 9th Schedule after 24 Apr 1973 can still be struck if it damages basic structure . 9th Schedule is not a “law-free island” after that date
2013	<i>Lily Thomas</i>	RPA s.8(4) gave sitting MPs/MLAs a 3-month cushion after a conviction. Struck . A conviction of 2 years or more (s.8(3)) disqualifies at once
2013	<i>PUCL</i>	Voters must be able to reject all candidates. NOTA button on the EVM. NOTA counts ; it does not elect anyone
2015	<i>Shreya Singhal</i>	IT Act s.66A (arrest for “offensive” online speech) struck as vague and as chilling Art. 19(1)(a)
16 Oct 2015	NJAC (<i>Supreme Court Advocates-on-Record Association</i> , Fourth Judges)	99th Amendment (NJAC) struck 4:1 . Judicial independence is basic structure. Collegium returns ; NJAC text is dead
2016	<i>Nabam Rebia</i>	Arunachal. A Governor cannot advance or summon (अहित करना) a sitting so as to help one faction remove the Speaker
2017	<i>Puttaswamy</i>	9-judge. Privacy is a Fundamental Right inside Art. 21 (and 14/19). <i>Jabalpur</i> majority expressly disapproved
2018	<i>Navtej Johar</i>	Section 377 of the Indian Penal Code — criminalising consensual adult same-sex relations — unconstitutional . This is not Article 377 of the Constitution. Art. 377 is a transitory clause about the Auditor-General / CAG
2018	<i>Joseph Shine</i>	IPC s.497 (adultery as a crime, husband as the only aggrieved person) struck . Adultery can still be a civil ground in matrimonial law
1986	<i>M.C. Mehta</i> (<i>Oleum gas leak</i>)	A hazardous industry owes absolute (निरपेक्ष) liability (no <i>Rylands</i> exceptions). A clean environment is read into Art. 21

Ladder: *Shankari* 1951 → *Sajjan* 1965 → *Golaknath* 1967 → 24th 1971 → *Kesavananda* 1973 → *Indira* 1975 → *Minerva* 1980.

Judges: 1981 executive → 1993 CJI+2 → 1998 CJI+4 → 2015 NJAC dead.

Parliamentary Terms

Term	One-liner
Question Hour (प्रश्न काल)	First hour . Starred = oral + supplementary. Unstarred = written
Zero Hour (शून्य काल)	Immediately after Question Hour. Indian innovation 1962 . No voting (2021)
Calling Attention	Indian innovation. Minister states; no voting. Both Houses
Adjournment (स्थगन) Motion (स्थगन प्रस्ताव)	Lok Sabha only (Rajya Sabha has no such motion). To drop listed business and discuss a definite, factual, urgent public matter. Needs 50 members to admit. Implies censure of the government. Not admitted if the matter is sub judice
Censure Motion	Lok Sabha only. Must state reasons . May target one minister , a group, or the whole Council. If passed, resignation is not automatic in theory — unlike no-confidence — but it is politically fatal
No-confidence (अविश्वास प्रस्ताव)	Lok Sabha only (Art. 75(3)). Need not state reasons . Needs 50 members to admit. If passed, the entire Council of Ministers must resign . Only one such motion at a time
Privilege Motion	Breach of privilege / contempt → Privileges Committee
Cut motions (कटौती प्रस्ताव)	On Demands , LS only: Policy ₹1 · Economy specified · Token ₹100
Guillotine	Remaining demands voted en bloc when time is up
Point of Order	Rules / Constitution inside the House — not merits. Chair final
Motion of Thanks	On Art. 87 address. Defeat in LS = loss of confidence
Whip	Party direction to vote. 10th Schedule: defy a whip on a confidence / money / 10th-Sch. vote → defection
Quorum (गणपूर्ति)	1/10 of total membership (Art. 100 / 189)
Lame-duck session	Sitting after a new LS is elected but before the old House is done — India rarely uses the US sense
Hung House (त्रिशंकु सदन)	No party/pre-poll alliance has a majority. Sarkaria invite: pre-poll → largest party → post-poll , then floor test
Snap poll	Early general election after dissolution (विघटन)
Crossing the floor	Leave the party you were elected on — 10th Schedule territory
Pro tem Speaker	Administers oath to new LS; elected by convention as senior-most; not in the Constitution by that name
Leader of Opposition	Largest opposition party with ≥ 10% of House strength (salary statute). Recognised by Speaker/Chairman
Prorogation (सत्रावसान)	Ends a session . Bills do not lapse. Dissolution (विघटन) ends the LS — some Bills lapse
Vote on Account	Advance grant for a few months (usually ~2/12 of annual) when the full Budget cannot be passed before 31 Mar. LS only
Vote of Credit	Blank-cheque grant for an unexpected demand (war) — amount not specified in detail
Exceptional Grant	One-off special purpose, not part of ordinary service of the year
Excess Grant	Spent more than voted — PAC (लोक लेखा समिति) first, then LS vote, then Appropriation
Charged vs voted	Charged (President, judges, CAG, debt...) is discussed, not voted . Voted = Demands for Grants
Three funds	CFI 266(1) · Public Account 266(2) · Contingency Fund 267
Joint sittings held	Only three : Dowry Prohibition 1961 · Banking Companies 1978 · POTA 2002 . Presiding = Speaker
Office of profit	Arts. 102 / 191 . Parliament/State law may exempt . Joint Committee advises
NOTA	<i>PUCL</i> 2013 . Counts; cannot elect a candidate

Term	One-liner
Speaker's casting vote	Only on a tie (Art. 100). Does not vote in the first instance

Parliamentary Committees

Committee	Strength	Chair / fact
PAC	22 = 15 LS + 7 RS	Opposition LS member (since 1967). CAG reports. Born 1921
Estimates (प्राकलन समिति)	30 — all LS, no RS	Ruling party. No CAG . Born 1950 . Often "largest" among the financial three
COPU	22 = 15+7	CAG on PSUs . Born 1964
DRSC	24 committees × 31 (21 LS + 10 RS)	1993 . 16 under Speaker, 8 under RS Chairman. Recommendatory
BAC	LS 15 incl. Speaker	Allots time
Privileges	LS 15 / RS 10	Breach / contempt
Ethics	RS 1997 , LS 2000	Conduct of members
Subordinate Legislation	LS 15 / RS 15	Rules under an Act — intra vires?
Government Assurances	LS from 1953	Promises on the floor
Petitions	—	Public petitions
Office of Profit	Joint	Which offices are exempt from DQ
Consultative Committees	—	Extra-constitutional ; Ministry of Parliamentary Affairs — not a House committee

Standing = continuous. **Ad hoc** = Select (one House) / Joint (both) on a **specific Bill**, then die.

No minister on PAC / Estimates / COPU / DRSC. Members by PR-STV, usually **1 year**.

Trap: Estimates has RS members. **No**. Trap: PAC chair = ruling party. **Opposition**. Trap: DRSC can move cut motions. **Cannot**.

Bills

Bill	Where introduced	RS power	Joint sitting	President
Ordinary (107)	Either House	Amend / reject	Yes (108)	Assent / withhold / return once
Money (110 def / 109 proc)	LS only + President's rec.	14 days , recommendatory	Never	Cannot return
Financial I (117(1))	LS only + rec. for introduction	Amend / reject	Yes	Can return
Financial II (117(3))	Either House; rec. for consideration	Amend / reject	Yes	Can return
Finance Bill (वित्त)	Annual tax Bill with Budget; usually certified Money Bill ; 75 days	as Money Bill	No	as Money Bill
Appropriation (114)	Money Bill . No amendment of amount/destination	14 days	No	Cannot return
CAB (368)	Either House . Special majority each; some need half the States	Equal House	Never	Shall assent (24th)
Art. 3	Either House + President's rec.	Equal	Yes (ordinary)	—
Private Member	Non-minister; Fridays ; 1 month's notice	Same stages	—	—

Expressly NOT a Money Bill (110(2)): fines · licence fees · **local** taxes.

Lapse on LS dissolution: pending in LS · passed by LS pending in RS. **Does not lapse**: pending only in RS (never passed LS) · pending **assent** · joint sitting already summoned. **Prorogation does not lapse Bills**.

Trap: 109 = definition. **110 = definition**; **109 = procedure**. Trap: CAB in RS is illegal. **Either House**. Trap: Money Bill can start in RS. **Never**.

UP Polity Quick Facts

Pin	Fact
Capital / Raj Bhavan / Vidhan Bhavan	Lucknow (लखनऊ)
High Court	Principal seat Prayagraj (प्रयागराज) (Letters Patent 17 Mar 1866 ; first sat Agra (आगरा), to Allahabad 1869). First CJ Walter Morgan
Lucknow Bench	1948 amalgamation; Chief Court of Oudh 1925 . Permanent Bench , not a second HC. Classical 12 Avadh districts
LA	403 (was 425). Largest in India. Age 25. Speaker resigns to Deputy
LC	100 = 36 local + 8 graduates + 8 teachers + 36 MLAs + 12 nominated. Cannot be dissolved (can be abolished , 169). Age 30
LS / RS from UP	80 / 31 (were 85 / 34). 17 SC , 0 ST LS seats
CoM cap	15% of 403 ≈ 60 including CM (91st)
Presidential vote-value	UP MLA = highest (textbook 208)
Language	Hindi Devanagari 1951 ; Urdu second 1989 . Region A
Uttarakhand (उत्तराखंड)	9 Nov 2000 (not 1 Nov). Born Uttaranchal ; rename 1 Jan 2007 . First Governor Barnala , first CM Nityanand Swami (स्वामी). 13 districts. HC Nainital (नैनीताल)
Divisions / districts	18 / 75 . Faizabad → Ayodhya (अयोध्या). Devipatan HQ Gonda
UPPSC	Prayagraj , 1937 . Governor appoints; President removes; 62/6y ; functions by UP Legislature (321)
UP SEC (राज्य निर्वाचन आयोग)	Lucknow . 243K+ZA. Removed like HC judge
UP SFC	Governor, 5y, 243I+Y
Lokayukta	UP Act 1975 (Maharashtra 1971 first). Classically 8 years , no reappointment
PR	Gram (Pradhan) → Kshetra (Pramukh) → Zila (Adhyaksha). Acts 1947 / 1961 . Women 50% (State; Constitution floor 1/3). No PESA . Gram Sabha = electoral roll
ULB	Nigam 1959 · Palika/Panchayat 1916. Mayor (महापौर) ≠ Nagar Ayukt . Cantonment = Defence. Noida / GNIDA / YEIDA ≠ Nigam (243Q)
Not UP	No Art. 371 . No 5th/6th Schedule (6वीं अनुसूची). Manipur LA is 60 not 62

First Governor **Sarojini Naidu** (1947). First CM **G.B. Pant**. First woman CM **Sucheta Kripalani** (1963).

Common Traps (bodies · Parliament · cases · UP)

Trap	Correct
Standing NCBC = 340	338B ; 340 = Kalelkar/Mandal inquiry
NHRC / NCW = constitutional	Statutory
NITI = FC / constitutional	Executive, 2015
ECI conducts Nagar Nigam polls	SEC
SPSC removed by Governor	President
AG salary charged / impeached	Pleasure ; not charged
SG is in Art. 76	No Article
ISC = Punchhi	Sarkaria, 1990
Rajamannar = 1st FC	K.C. Neogy
Estimates = both Houses / CAG	LS only, no CAG
PAC chair = ruling party	Opposition since 1967
Zero Hour = first hour	After Question Hour
109 = Money Bill definition	110
CAB needs joint sitting	Forbidden
<i>Golaknath</i> = Basic Structure	Kesavananda 1973
<i>Navtej</i> = Art. 377	s.377 IPC ; Art. 377 = CAG
UP LA = 425 / LS = 85	403 / 80 after 9 Nov 2000
Noida = Nagar Nigam	243Q industrial township
Joint sitting used for every deadlock	Only three times; never for Money/CAB
NOTA wins the seat	Counts; elects nobody
Vote on Account = Vote of Credit	Advance months vs blank-cheque emergency

Complete PYQ Bank (Topic 26) — Bodies, Parliament, Cases, UP

UPPCS Prelims 2024, Q125 — Body–article match. 165 = AdvG, 148 = CAG, 263 = ISC. Standing NCBC = **338B**; **340** = investigating commission — learn both.

UPPCS Prelims 2021 — Inter-State Council constituted after **Sarkaria**, not Punchhi.

UPPCS Prelims 2021, Q133 — UPPSC functions extended by **UP Legislature** (321).

UPPCS Prelims 2021, Q81 — SPSC member removed by **President** after SC enquiry.

UPPCS Prelims 2021, Q141 — Zero Hour = time **immediately after** Question Hour.

UPPCS Prelims 2019, Q33 — Money Bill **defined** in **Art. 110**.

UPPCS Prelims 2021, Q37 — Money Bill **cannot** be first introduced in RS.

UPPCS Prelims 2023, Q17 — Panchayat elections = **SEC**. No “Panchayati Raj Commission of India.”

UPPCS Prelims 2023, Q14 — UP RS **31** and LS **80**. Both true.

UPPCS Prelims 2022, Q14 — Manipur **62** is the NOT-matched pair (actual **60**).

UPPCS Prelims 2018, Q148 — LC can be **abolished**, not dissolved.

UPPCS Prelims 2018 — *Navtej* = **s.377 IPC**, not Art. 377.

UPPCS Prelims 2020 — CVC has **no** constitutional article.

UPPCS Prelims 2025, Q42 — PAC reports to the **Lok Sabha** (CAG-examining, Opposition chair).

Practice Zone — Bodies, Parliament, Cases, UP

Mains link (one frame)

Number map then **name map**. Close on: **338B is not 340**; **ECI is not SEC**; **PAC has the CAG**, **Estimates does not**; **110 defines a Money Bill** (धन विधेयक), **109 times the Rajya Sabha**; **Kesavananda 1973 is Basic Structure**, **Golaknath is not**; **Navtej is s.377 IPC**. Joint sitting has been used only **three** times. UP pin: **403 / 100 / 80 / 31** · Lucknow = government + SEC · Prayagraj = HC + UPPSC · **9 Nov 2000**.

 Must-Score Facts (High-Yield UKPCS)

1. **Assembly Reservation Architecture:**
 $\text{Total Seats: } 70 = \text{General (55)} + \text{SC Reserved (13)} + \text{ST Reserved (2: Chakrata \& Nanakmatta)}$
2. **Lok Sabha Representation (5 Seats):**
Out of 5 Lok Sabha seats, **Almora** (अल्मोड़ा) is exclusively reserved for **Scheduled Castes (SC)**. The remaining four (चातरुयामि) (Tehri, Garhwal, Haridwar, Nainital-US Nagar) are unreserved general constituencies.
3. **State Executive Composition (UKPCS 2025 Q139):** The executive consists of the Governor (Head of State under Article 153/154) and the Council of Ministers headed by the Chief Minister (Article 163/164). Both arms are co-constitutive of the executive branch.
4. **Harbans Kapoor Record (UKPCS 2025 Q141):** Senior Dehradun legislator who uniquely discharged the duties of **Speaker** (2007–2012) and **Protem Speaker** on more than one occasion in the Uttarakhand Assembly.
5. **N. D. Tiwari Landmark:** The only Chief Minister in the entire history (इतिहास) of Uttarakhand to complete an unbroken full 5-year tenure (2002 to 2007).

 Must-Score Facts

- 1. UKPSC = state PSC.
 - 2. Advocate General ≠ Attorney General of India.
 - 3. First AG often listed as Nanda Ballabh Tiwari — still verify against the specific stem.
 - 4. Do not confuse State Finance Commission (वित्त आयोग) chair with PSC chair.
 - 5. Fund articles belong with the Funds chapter, not this PSC card.
-

► ⚡ **Confused Pairs** (Click to Expand)

 Must-Score Facts

- 1. High Court seat = **Nainital**.
 - 2. Mobile vans = courtroom + IT connectivity.
 - 3. Aim = doorstep justice for remote areas.
 - 4. Working description and purpose of mobile courts can both be true in the same stem.
 - 5. Do not relocate the High Court to Dehradun in a seat stem.
-

► ⚡ **Confused Pairs** (Click to Expand)

 Must-Score Facts

- 1. Five STs = Jaunsari, Tharu, Bhotia, Buksa, Raji.
- 2. Declared ST in **1967**.
- 3. Do not pick 1969/1970 on year stems.
- 4. Official language card = Hindi.
- 5. Raji geography detail → Geography UK Topic 6.

► ⚡ **Confused Pairs** (Click to Expand)

 Must-Score Facts

- 1. Consolidated Fund ≠ Contingency Fund.
 - 2. Contingency Fund = unforeseen advances (Art. 267(2) idea).
 - 3. Assembly polls → EC; local polls → SEC.
 - 4. State Finance Commission ≠ UKPSC.
 - 5. Do not invent UK-only fund articles beyond the general state pattern.
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► ⚡ **Confused Pairs** (Click to Expand)

Must-Score Facts (High-Yield UKPCS)

1. **Uttarakhand Panchayati Raj Amendment Act, 2019:** - Educational Qualification:

- General Candidates: Must have passed **Class 10th (High School)**.
- SC/ST & Female Candidates: Must have passed **Class 8th** (Class 5th for SC/ST women in Gram Panchayat).
- **Two-Child Norm:** Anyone having more than two living children after the notified cut-off date is legally disqualified from contesting elections to any tier of Panchayati Raj.
- **Household Sanitation:** Must have a functional residential toilet.

2. **Panchayat Register Ratta (UKPCS 2025 Q134):** Gram Panchayats are statutorily required to maintain: - *Kutumb / Parivar Register* (Family Register) - *Janam-Mrityu Register* (Birth and Death Register) - *Anudan Register* (Grant / Financial Register) - *(The Health Register is maintained by ANMs / Primary Health Centres, NOT Panchayats)*.

3. **50% Women Reservation Benchmark (2008):** In March 2008, Uttarakhand became one of the earliest states to enhance women's reservation in all three tiers of Panchayati Raj from 33% to **50%**.

4. **Van Panchayats (Forest Councils):** Uttarakhand is the **only state in India** with statutory, democratic community forestry institutions. Established under the **Forest Grievances Committee (1921)** headed by P. Wyndham; first formalized under the **Kumaon (कुमाऊँ) Van Panchayat Rules, 1931**. Over 12,000 Van Panchayats manage community forests today.

Must-Score Facts (High-Yield UKPCS)

- 1. Uniform Civil Code (UCC) of Uttarakhand (2024) Milestones:** - *Drafting Committee Head:* Retired SC Judge **Justice Ranjana Prakash Desai** (constituted May 2022). - *Vidhan Sabha (विधानसभा) Passed:* **7 February 2024**. - *Presidential Assent (Droupadi Murmu):* **11 March 2024**. - *Key Highlights:*
 - Prohibits polygamy and bigamy across all religions.
 - Abolishes practices like *Halala*, *Iddat*, and triple talaq.
 - Guarantees **equal inheritance rights** for sons and daughters.
 - Mandates **registration of live-in relationships** within 1 month.
 - Sets uniform marriageable age: **21 for males, 18 for females**.
 - Explicit Exemption:** The tribal (आदिवासी) communities (Scheduled Tribes under Art. 366(25)) are excluded from its purview to protect customary tribal traditions.
 - 2. Uttarakhand Human Rights Commission (UHRC) (UKPCS 2025 Q140):** - Formally constituted on **13 May 2013**. - Headquartered at Dehradun (देहरादून). - 1st Chairperson: **Justice Vijender Jain** (former Chief Justice of Punjab & Haryana High Court). - Core statutory mandate: Inquire into human rights violations and enforce accountability and transparency in public governance.
 - 3. Uttarakhand Right to Service Act, 2011:** - Enacted on **4 October 2011** (under CM B. C. Khanduri). - Created the **Uttarakhand Right to Service Commission**. - Imposes a daily financial penalty (₹250 to ₹5,000) deducted from the salary of a delinquent Designated Officer who fails to deliver public services (domicile, caste certificates, water connections) within the specified timeframe.
 - 4. Anti-Cheating / Anti-Paper Leak Act, 2023:** - Enacted as the *Uttarakhand Competitive Examination (Measures for Prevention and Redressal of Unfair Means in Recruitment) Act, 2023*. - Provisions: Offences are non-bailable and cognizable; organizers of paper leaks face **life imprisonment and ₹10 Crore fine** plus property confiscation; candidates caught cheating are debarred for **10 years**.
 - 5. Sanskrit as Second Official Language:** In January 2010, Uttarakhand became the **first state in India** to accord **Sanskrit** the status of second official language alongside Hindi.
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